



Focus Policy document

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Arranged by



Underwritten by



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Data protection statement

Who controls your personal information

This notice tells you how Zurich Insurance plc ('Zurich'), as data controller, will deal with your personal information. Where Zurich introduces you to a company outside the group, that company will tell you how your personal information will be used.

You can ask for further information about our use of your personal information, or complain about its use in the first instance, by contacting our Data Protection Officer at: Zurich Insurance Group, Tri-centre 1, Newbridge Square, Swindon, SN1 1HN or by emailing the Data Protection Officer at GBZ.General.Data.Protection@uk.zurich.com.

If you have any concerns regarding our processing of your personal information, or are not satisfied with our handling of any request by you in relation to your rights, you also have the right to make a complaint to the Information Commissioner's Office. Their address is: First Contact Team, Information Commissioner's Office, Wycliffe House, Water Lane, Wilmslow, SK9 5AF.

What personal information we collect about you

We will collect and process the personal information that you give us by phone, email, filling in forms, including on our website, and when you report a problem with our website. We also collect personal information from your appointed agent such as your trustee, broker, intermediary or financial adviser in order to provide you with the services you have requested and from other sources, such as credit reference agencies and other insurance companies, for verification purposes. We will also collect information you have volunteered to be in the public domain and other industry-wide sources.

We will only collect personal information that we require to fulfil our contractual or legal requirements unless you consent to provide additional information. The type of personal information we will collect includes: basic personal information (i.e. name, address and date of birth), occupation and financial details, health and family information, claims and convictions information and where you have requested other individuals be included in the arrangement, personal information about those individuals.

If you give us personal information on other individuals, this will be used to provide you with a quotation and/or contract of insurance and/or provision of financial services. You agree you have their permission to do so. Except where you are managing the contract on another's behalf, please ensure that the individual knows how their personal information will be used by Zurich. More information about this can be found in the 'How we use your personal information' section.

How we use your personal information

We and our selected third parties will only collect and use your personal information (i) where the processing is necessary in connection with providing you with a quotation and/or contract of insurance and/or provision of financial services that you have requested; (ii) to meet our legal or regulatory obligations, or for the establishment, exercise or defence of legal claims; (iii) for our "legitimate interests". It is in our legitimate interests to collect your personal information as it provides us with the information that we need to provide our services to you more effectively including providing you with information about our products and services. We will always ensure that we keep the amount of information collected and the extent of any processing to the absolute minimum to meet this legitimate interest.

Examples of the purposes for which we will collect and use your personal information are:

- to provide you with a quotation and/or contract of insurance
- to identify you when you contact us
- to deal with administration and assess claims
- to make and receive payments
- to obtain feedback on the service we provide to you
- to administer our site and for internal operations including troubleshooting, data analysis, testing, research, statistical and survey purposes
- for fraud prevention and detection purposes.

We will use your health information and information about any convictions for the purposes of providing insurance, and this includes arranging, underwriting, advising on or administering an insurance contract between you and us.

We will contact you to obtain consent prior to processing your personal information for any other purpose, including for the purposes of targeted marketing unless we already have consent to do so.

Who we share your personal information with

Where necessary, we share personal information for the purposes of providing you with the goods and services you requested with the types of organisations described below:

- associated companies including reinsurers, suppliers and service providers
- brokers, introducers and professional advisers
- survey and research organisations
- credit reference agencies
- healthcare professionals, social and welfare organisations
- other insurance companies
- comparison websites and similar companies that offer ways to research and apply for financial services products
- fraud prevention and detection agencies.

Or, in order to meet our legal or regulatory requirements, with the types of organisations described below:

- regulatory and legal bodies
- central government or local councils
- law enforcement bodies, including investigators
- credit reference agencies
- other insurance companies.

We may also share the following data with the types of organisations outlined above, for the purpose of statistical analysis, research and improving services:

- anonymised data – data encrypted to make it anonymous, which protects an individual's privacy by removing personally identifiable information
- pseudonymised data – personally identifiable information replaced with a pseudonym to make the data less identifiable, such as replacing a name with a unique number
- aggregated data – similar groups of data, such as age, profession or income which are expressed as a summary for statistical analysis.

How we use your personal information for websites and email communications

When you visit one of our websites we may collect information from you such as your email address or IP address. This helps us to track unique visits and monitor patterns of customer website traffic, such as who visits and why they visit.

We use cookies and/or pixel tags on some pages of our website. A cookie is a small text file sent to your computer. A pixel tag is an invisible tag placed on certain pages of our website but not on your computer. Pixel tags usually work together with cookies to assist us to provide you with a more tailored service. This allows us to monitor and improve our email communications and website. Useful information about cookies, including how to remove them, can be found on our websites.

How we transfer your personal information to other countries

Where we transfer your personal information to countries that are outside of the UK and the European Union (EU) we will ensure that it is protected and that the transfer is lawful. We will do this by ensuring that the personal information is given adequate safeguards by using 'standard contractual clauses' which have been adopted or approved by the UK and the EU, or other solutions that are in line with the requirements of European data protection laws.

A copy of our security measures for personal information transfers can be obtained from our Data Protection Officer at: Zurich Insurance Group, Tri-centre 1, Newbridge Square, Swindon, SN1 1HN, or by emailing the Data Protection Officer at GBZ.General.Data.Protection@uk.zurich.com.

How long we keep your personal information for

We will keep and process your personal information for as long as necessary to meet the purposes for which it was originally collected.

There are a number of factors influencing how long we will keep your personal information, and these are shown below:

- to comply with applicable laws and regulations or set out in codes issued by regulatory authorities or professional bodies
- our business processes, associated with the type of product or service that we have provided to you
- the type of data that we hold about you
- if your data relates to any ongoing, pending, threatened, imminent or likely dispute, litigation or investigation
- to enable us to respond to any questions, complaints, claims or potential claims
- if you or a regulatory authority require us to keep your data for a legitimate purpose.

Your data protection rights

We will, for the purposes of providing you with a contract of insurance, processing claims, reinsurance and targeted marketing, process your personal information by means of automated decision making and profiling where we have a legitimate interest and/or you have consented to this.

You have a number of rights under the data protection laws, namely:

- to access your data (by way of a subject access request)
- to have your data rectified if it is inaccurate or incomplete
- in certain circumstances, to have your data deleted or removed
- in certain circumstances, to restrict the processing of your data
- a right of data portability, namely to obtain and reuse your data for your own purposes across different services
- to object to direct marketing
- not to be subject to automated decision making (including profiling), where it produces a legal effect or a similarly significant effect on you
- to claim compensation for damages caused by a breach of the data protection legislation
- if we are processing your personal information with your consent, you have the right to withdraw your consent at any time.

You can exercise your rights by contacting our Data Protection Officer at: Zurich Insurance Group, Tri-centre 1, Newbridge Square, Swindon, SN1 1HN or by emailing the Data Protection Officer at GBZ.General.Data.Protection@uk.zurich.com.

What happens if you fail to provide your personal information to us

If you do not provide us with your personal information, we will not be able to provide you with a contract or assess future claims for the service you have requested.

Important notes

Fraud prevention and detection

In order to prevent and detect fraud we may at any time:

- check your personal data against counter fraud systems
- use your information to search against various publicly available and third party resources
- use industry fraud tools including undertaking credit searches and to review your claims history
- share information about you with other organisations including but not limited to the police, the Insurance Fraud Bureau (IFB), other insurers and other interested parties.

If you provide false or inaccurate information and fraud is identified, the matter will be investigated and appropriate action taken. This may result in your case being referred to the Insurance Fraud Enforcement Department (IFED) or other police forces and fraud prevention agencies. You may face fines or criminal prosecution. In addition, Zurich may register your name on the Insurance Fraud Register, an industry-wide fraud database.

Claims history

We may pass information relating to claims or potential claims to the Claims and Underwriting Exchange Register (CUE), where the data is controlled by the Motor Insurers' Bureau, and other relevant databases.

We and other insurers may search these databases when you apply for insurance, when claims or potential claims are notified to us or at time of renewal to validate your claims history or that of any other person or property likely to be involved in the policy or claim.

This helps to check information provided and prevent fraudulent claims.

Employers' Liability Tracing Office (ELTO)

We are members of the Employers' Liability Tracing Office (ELTO), an independent industry body who maintains a centralised database that helps those who have suffered injury or disease in the workplace to identify the relevant Employers' Liability insurer quickly and efficiently.

It is important, for the services of ELTO to be fully effective, that you inform us of your ERN (Employer Reference Number also known as the Employer PAYE reference) and all subsidiary company names and their ERNs if applicable.

As members of ELTO we will forward details of your policy if it contains Employers' Liability cover to ELTO together with details of any ERNs you have supplied to us.

Our complaints procedure

Our commitment to customer service

We are committed to providing a high level of customer service. If you feel we have not delivered this, we would welcome the opportunity to put things right for you.

Who to contact in the first instance

Many concerns can be resolved straight away. Therefore in the first instance, please get in touch with your usual contact at Zurich or your broker or insurance intermediary, as they will generally be able to provide you with a prompt response to your satisfaction.

Contact details will be provided on correspondence that we or our representatives have sent you.

Many complaints can be resolved within a few days of receipt

If we can resolve your complaint to your satisfaction within the first few days of receipt, we will do so. Otherwise, we will keep you updated with progress and will provide you with our decision as quickly as possible.

Next steps if you are still unhappy

If you are not happy with the outcome of your complaint, you may be able to ask the Financial Ombudsman Service to review your case.

We will let you know if we believe the ombudsman service can consider your complaint when we provide you with our decision. The service they provide is free and impartial, but you would need to contact them within 6 months of the date of our decision.

More information about the ombudsman and the type of complaints they can review is available via their website www.financial-ombudsman.org.uk.

You can also contact them as follows:

Post: Financial Ombudsman Service, Exchange Tower, London, E14 9SR

Telephone: 08000 234567 (free on mobile phones and landlines)

Email: complaint.info@financial-ombudsman.org.uk

If the Financial Ombudsman Service is unable to consider your complaint, you may wish to obtain advice from the Citizens Advice Bureau or seek legal advice.

The Financial Services Compensation Scheme (FSCS)

We are covered by the Financial Services Compensation Scheme (FSCS) which means that you may be entitled to compensation if we are unable to meet our obligations to you. Further information is available on www.fscs.org.uk or by contacting the FSCS directly on 0800 678 1100.

Your “Focus” Combined ‘All Risks’ Media policy

This is a contract between **you** and **us**.

This policy and any schedule, endorsement and certificate should be read as if they are one document.

We will insure **you** under those sections stated in the schedule during any period of insurance for which **we** have accepted **your** premium. **Our** liability will in no case exceed the amount of any sum insured or limit of indemnity stated in this policy, the schedule or any endorsement to this policy.

Any reference to the singular will include the plural and vice versa.

Any reference to any statute or statutory instrument will include any amendments thereto or re-enactment thereof.

Any heading in this policy is for ease of reference only and does not affect its interpretation.

Law applicable to this contract

In the UK the law allows both **you** and **us** to choose the law applicable to this contract. This contract will be subject to the relevant law of England and Wales, Northern Ireland, Scotland, the Isle of Man or the Channel Islands depending upon **your** address stated in the schedule. If there is any dispute as to which law applies it will be English law.

This is a legal document and should be kept in a safe place.

Please read this policy and any schedule and endorsement carefully and if they do not meet **your** needs contact Tysers Insurance Brokers Limited or **your** insurance intermediary.

General Definitions

Certain words in this policy have special meanings. These meanings are given below and apply where the words appear in bold.

Average

If at the time of the **damage** the sum insured is less than the full reinstatement value of the property insured the amount **we** will pay will be reduced in proportion to the amount of the underinsurance.

For the avoidance of doubt solely in respect of the application of **average** to any item under this policy clause c) iii) of General Condition 7 – Fair Presentation of the Risk will not apply.

Bodily Injury

Death, injury, illness or disease.

Business

The business stated in the schedule including:

- a) the provision and management of canteen, social, sports and welfare organisations for the benefit of **your employees**; and
- b) first aid, fire and ambulance services maintenance of property and premises owned or occupied by **you**.

Business Interruption

Loss resulting from interruption of or interference with the **business** carried on by **you** at the **premises** in consequence of **damage** to property used by **you** at the **premises** for the purpose of the **business**.

Damage

Accidental loss, destruction or damage.

Data Processing System

Any computer or data processing equipment or media or microchip or integrated circuit or any similar device or any computer software or computer firmware.

Defined Peril

Fire, lightning, explosion, aircraft or other aerial devices or articles dropped therefrom, riot, civil commotion, strikers, locked-out workers, persons taking part in labour disturbances, malicious persons (excluding thieves), earthquake, storm, flood, escape of water from any tank apparatus or pipe or impact by any mechanically propelled vehicle or by goods falling therefrom or animal.

Denial of Service Attack

Any actions or instructions constructed or generated with the ability to damage, interfere with or otherwise affect the availability of networks, network services, network connectivity or information systems. Denial of service attacks include but are not limited to the generation of excess traffic into network addresses, the exploitation of system or network weaknesses and the generation of excess or non-genuine traffic between and amongst networks.

Employee

Any natural person who is:

- a) under a contract of service or apprenticeship with **you**
- b) a labour master or labour only subcontractor or persons supplied by any of them
- c) self employed
- d) under a work experience or similar scheme
- e) hired or borrowed by **you** from another employer
- f) a volunteer operating under **your** control or supervision

and working for **you** in connection with the **business**.

Excess

The amount stated in this policy, the schedule or any endorsement for which **you** will be responsible and which will be deducted from any payment under this policy after all other terms and conditions have been applied.

Hacking

Unauthorised access to any computer or other equipment or component or system or item which processes stores, transmits, retrieves or receives data whether belonging to **you** or not.

Money

Any current coinage, current bank and currency note, postal order, cheque, banker's draft, bill of exchange, unused unit in any postage stamp franking machine, postage stamp, revenue stamp, National Savings certificate, Holiday-with-Pay stamp, Premium Savings Bond, luncheon voucher, trading stamp, phonecard (excluding any phonecard held in stock for resale), credit card sales voucher, consumer redemption voucher and gift token accepted by **you** and VAT purchase invoice all pertaining to the **business** and belonging to **you** or **your** responsibility.

Nuclear Installation

Any installation of such class or description as may be prescribed by regulations made by the relevant Secretary of State from time to time by statutory instrument being an installation designed or adapted for:

- a) the production or use of atomic energy
- b) the carrying out of any process which is preparatory or ancillary to the production or use of atomic energy and which involves or is capable of causing the emission of ionising radiation
- c) the storage, processing or disposal of nuclear fuel or of bulk quantities of other radioactive matter being matter which has been produced or irradiated in the production or use of nuclear fuel.

Nuclear Reactor

Any plant including any machinery, equipment or appliance whether affixed to land or not designed or adapted for the production of atomic energy by a fission process in which a controlled chain reaction can be maintained without an additional source of neutrons.

Pollution or Contamination

- a) All pollution or contamination of buildings or other structures or of water or land or the atmosphere; and
- b) all loss or **damage** or **bodily injury** directly or indirectly caused by such pollution or contamination.

Premises

The premises as stated in the schedule.

Production

Any film, video, multimedia production or conference or event (excluding where income is generated by speculative ticket sales) undertaken by **you**.

Reinstatement

- a) The rebuilding or replacement of property suffering **damage** which provided always that **our** liability is not increased may be carried out:
 - i) in any manner suitable to **your** requirements
 - ii) upon another site
- b) the repair or restoration of property suffering **damage**
- c) in either case to a condition equivalent to or substantially the same as but not better or more extensive than its condition when new.

Special Definitions

Wherever words commencing with a capital letter appear in a section following Special Definitions they will have the same defined meaning within that section of this policy.

Territorial Area

Area 1 – Premises

At the **premises**.

Area 2 – UK and Europe

At the **premises** or anywhere in the United Kingdom, Isle of Man, Channel Islands, any other member state of the European Union, Norway, Andorra, Switzerland, Monaco, Liechtenstein, Gibraltar, San Marino, Iceland, Turkey west of the Bosphorus Strait and the city of Istanbul.

Area 3 – Worldwide

At the **premises** or anywhere in the world.

Terrorism

- a) In respect of England including the Channel Tunnel up to the frontier with the Republic of France as set out by the Treaty of Canterbury 1986, Wales, Scotland, Northern Ireland, the Isle of Man and Channel Islands but not the territorial seas adjacent thereto as defined by the Territorial Sea Act 1987, the Territorial Sea Act 1987 (Isle of Man) Order 1991, the Territorial Sea Act 1987 (Jersey) Order 1997 and Territorial Sea Act 1987 (Jersey) (Amendment) Order 2002:
- acts of persons acting on behalf of or in respect of any organisation which carries out activities directed towards the overthrowing or influencing by force or violence of Her Majesty's government in the United Kingdom or any other government de jure or de facto
- b) in respect of elsewhere than as described in a) above:
- any act or preparation in respect of action or threat of action designed to influence the government de jure or de facto of any nation or any political division thereof or in pursuit of political, religious, ideological or similar purposes to intimidate the public or a section of the public of any nation by any person or group whether acting alone or on behalf of or in respect of any organisation or government de jure or de facto and which:
- i) involves violence against one or more persons
 - ii) involves damage to property
 - iii) endangers life other than that of the person committing the action
 - iv) creates a risk to health or safety of the public or a section of the public
 - v) is designed to interfere with or to disrupt an electronic system
- c) any action in controlling, preventing, suppressing, retaliating against or responding to any act or preparation in respect of action or threat of action described in a) or b) above.

Virus or Similar Mechanism

Program code, programming instruction or any set of instructions intentionally constructed with the ability to damage, interfere with or otherwise adversely affect computer programs, data files or operations, whether involving self-replication or not. The definition of virus or similar mechanism includes but is not limited to Trojan horses, worms and logic bombs.

We, Us, Our or Ourselves

Zurich Insurance plc.

You or Your, Yours or Yourselves

The person, people either acting in partnership or on behalf of an incorporated organisation or the company stated in the schedule as the insured and in respect of section 8 including your predecessors.

Section 1 – Production Property

Special Definitions

Damage

Damage to Property Insured by a cause not otherwise excluded.

Property Insured

The property insured stated in the schedule.

Sub-Section 1 a) Technical Equipment

- a) Any film, video, projection, sound, recording, lighting, grip, generators, staging, post production and associated equipment; and
- b) any property used in connection with conferences, events and product launches; and
- c) property as more specifically described in the schedule under Sub-Section 1 a).

Sub-Section 1 b) Props, Sets and Wardrobe

Props, sets, scenery, models, costumes, wardrobe and similar theatrical property owned by **you** or for which **you** are responsible.

Sub-Section 1 c) Specified Items

Any item as described in the schedule under Sub-Section 1 c).

General Average

A legal principle of maritime law to which all parties in a sea venture proportionally share any losses resulting from a voluntary sacrifice of part of the ship's cargo to save the whole adventure in an emergency.

Salvage Charges

Charges which apply in maritime law to compensate a third party in the event of a successful salvage due to a voluntary act by that third party independent of any contract.

The Cover

In the event of Damage occurring within the **territorial area** stated in the schedule during the period of insurance **we** will pay **you** the value of the property at the time of its **damage** or at **our** option reinstate or replace such property or any part of it.

Provided always that **our** liability under this section will not exceed in the whole the total sum insured or in respect of any item its sum insured or any other limit of indemnity stated in the schedule at the time of the Damage.

Clauses Applicable to Section 1

1.1 Automatic Reinstatement of Sum Insured

In the absence of written notice by **us** or **you** to the contrary the insurance hereby will not be reduced by the amount of any loss in consideration of which **you** will pay the appropriate extra premium on the amount of the loss from the date thereof to the expiry of the period of insurance.

Provided always that:

- a) the aggregate of the amounts so reinstated for losses by theft during any one period of insurance will not exceed the amount of the sum insured
- b) **you** will take immediate steps to effect such additions to or variations in the protections of the Property Insured as **we** may require.

1.2 Capital Additions

This section includes alterations and additions to the schedule of Property Insured but not in respect of appreciation in value and provided always that the increased sum insured will not exceed 15% of the total sum insured under this section. **You** undertake to give particulars of such extension of cover as soon as practicable and to effect specific insurance thereon retrospective to the date of commencement of **our** liability.

1.3 Change of Premises

The property that is insured within **territorial area 1 - premises** is covered while in transit from an existing **premises** to a new **premises** in Great Britain, Northern Ireland, the Channel Islands or the Isle of Man.

Provided always that:

- a) **our** liability in respect of each item for any Damage occurring elsewhere than at the **premises** will not exceed 100% of the sum insured applicable to **territorial area 1 - premises** by the item
- b) this clause will not apply to property in so far as it is otherwise insured
- c) **you** undertake to advise **us** of such transit as soon as possible.

1.4 Hire of Alternative Property

This section includes:

- a) the reasonable cost necessarily incurred of hiring alternative property including ancillary and transit costs to continue shooting or fulfil future commitments.

Provided always that **our** liability will:

- i) commence from the date of the Damage and end when such property has been repaired or replaced
 - ii) not exceed £50,000 in respect of any one accident or series of accidents arising out of one occurrence
- b) **your** legal liability for **damage** under the terms of the hiring agreement or otherwise to the alternative property hired in to replace such property which has sustained Damage provided always that **our** liability will not exceed £250,000 any one accident or series of accidents arising out of one occurrence.

1.5 Import Duties

This section includes customs duty payable by **you** in the event **you** are unable to produce equipment **you** have imported for the purposes of the **business** and detailed on the inventory agreed on arrival in consequence of its Damage.

Our liability in respect of all losses arising from one occurrence or all occurrences of a series consequent upon or attributable to one or original cause is 90% of the duty payable on the said equipment or £25,000 whichever is the lesser.

1.6 Involuntary Betterment

In the event that new property of like kind and quality is not obtainable property which is as similar as possible to that which has sustained **damage** and which is capable of performing the same function will be deemed to be new property of like kind and quality and will not be considered as betterment.

We will also pay the cost of purchasing and installing technologically current equipment which is necessitated by incompatibility between:

- a) new equipment installed to replace equipment that has sustained Damage; and
- b) undamaged existing equipment at the same or an interdependent premises.

Provided always that:

- i) Damage was directly caused
- ii) **we** will only be liable for the amount sufficient to enable **you** to resume operations in substantially the same manner as before the Damage
- iii) **we** will only be liable for the difference between:
 - 1) the highest sales value of the undamaged existing equipment at the same or interdependent premises; and
 - 2) the installed cost of the technologically current equipment.

1.7 Property on Loan

This section includes property loaned to **you** to replace existing property being repaired, serviced, maintained or cleaned.

1.8 Temporary Removal

The property that is insured within **territorial area 1 – premises** is covered while temporarily removed for cleaning, renovation, repair, maintenance, service or similar purposes elsewhere and in transit thereto and therefrom all in Great Britain, Northern Ireland, the Channel Islands and the Isle of Man.

Provided always that:

- a) **our** liability in respect of each item stated in the schedule for any Damage occurring elsewhere than at the **premises** will not exceed 10% of the sum insured applicable to **territorial area 1 – premises** by the item
- b) this clause will not apply to property in so far as it is otherwise insured.

1.9 General Average and Salvage Charges

You are covered for your liability in respect of the Property Insured for contribution to General Average and Salvage Charges for any General Average or salvage act occurring during any sea voyage anywhere in the world.

1.10 Consequential Loss Following Declaration of General Average

This policy includes reasonable costs necessarily incurred by you as a result of delay to the Property Insured whilst in transit caused by the Master of the carrying vessel declaring General Average.

We will not pay more than £10,000 in the aggregate in any period of insurance.

You bear the first 10% of the amount otherwise payable in respect of each and every loss subject to a minimum deductible of £250.

1.11 Fraudulent Credit Card Purchases

You are covered by this clause for loss incurred as a result of credit cards fraudulently used by any person other than an employee for the purpose of purchasing Stock.

For the purpose of this clause Stock shall mean stock and materials in trade your property or held by you in trust for which you are responsible.

Our liability any one occurrence will not exceed £5,000.

1.12 Index Linking

Where so stated in the schedule to this section the sum insured will be adjusted during the period of insurance in accordance with fluctuations in suitable indices of cost. In the event of loss the sum insured will continue to be adjusted in accordance with fluctuations in the indices during the period necessary for completion of repair or reinstatement provided always that repair or reinstatement is carried out without unreasonable delay.

The premium will remain unchanged during the period of insurance but at each renewal the premium will be calculated on the revised sum insured.

Optional Extensions Applicable to Section 1 a) and 1 b)

Only operative if stated in the schedule under Optional Extension.

A. Optional Extension A: Hired-In Property

This section will indemnify you in respect of:

- a) legal liability for **damage** to hired-in property under the terms of the hiring agreement or otherwise to pay compensation for **damage** to property stated in the schedule
- b) liability under the terms of the hiring agreement to pay continuing hire charges in consequence of **damage** to hired-in property for which we have admitted liability.

Provided always that our liability will:

- i) commence from the date of **damage** and end when such property has been repaired or replaced
- ii) not exceed £100,000 in respect of any one accident or series of accidents arising out of any one occurrence.

B. Optional Extension B: Hiring Out

This section covers **damage** to Property Insured while hired out by you provided always that all such hires remain subject to conditions of hire in line with industry standards.

We will not exercise rights of subrogation against the hirer where your hire invoice so specifies.

Whenever the property is hired in for rehire by you the hiring conditions will be no less onerous than those under which you hired such property.

Special Exclusions

Exclusions Applicable to Sub-Section 1 a) Technical Equipment:

In respect of Sub-Section 1 a) Technical Equipment this section does not cover:

1. Consequential Loss

loss of use of Property Insured or any other consequential loss unless specifically insured under this section

2. Damage Recoverable under Guarantee or other Agreement

damage recoverable under any guarantee or maintenance, rental, hire or lease agreement

3. Excess

the amount of the **excess**

4. Intentional Acts, Gradually Developing and Experiments

damage caused by:

- a) **your** intentional act or wilful neglect
- b) gradually developing defects, wear and tear, cracks, flaws or fractures
- c) experiments involving the imposition of any abnormal conditions on the Property Insured

5. Light Sources and Film Video

damage to:

- a) light sources and other expendable parts unless accompanied by other Damage
- b) film, video and sound recording tape while contained within any camera, sound or video recording equipment or while undergoing any form of processing
- c) film, video and sound recording tape which is damaged at custom points as a result of exposure by surveillance machines

6. Packing and Preparation

damage caused by insufficiency or unsuitability of packing or preparation of the Property Insured

7. Penalties

penalties for delay or detention or in respect of guarantees of performance or efficiency

8. Unaccountable Losses

unaccountable losses discovered on the occasion of stock or inventory checks.

Exclusions Applicable to Sub-Section 1 b) Props, Sets and Wardrobe

In respect of Sub-Section 1 b) Props, Sets and Wardrobe this section does not cover:

1. Consequential Loss

loss of use of Property Insured or any other consequential loss unless specifically insured under this section

2. Electrical Damage

damage caused by short circuit or other electrical damage or disturbance or failure but this exclusion will not apply to any subsequent Damage

3. Excess

the amount of the **excess**

4. Excluded Property

damage to:

- a) camera, camera equipment, sound and lighting equipment, grip equipment, portable electrical equipment and generators
- b) animals
- c) currency, money and other negotiable instruments, credit cards, passports, deeds, letters of credit, travel tickets
- d) permanent buildings or structure unless specifically constructed in respect of a declared **production**
- e) aircraft, other mechanically propelled vehicles or conveyances unless full details have been submitted to and accepted by **us** excluding motor vehicles less than £75,001 any one motor vehicle unless cover is required by the Road Traffic Act
- f) film, tape and digital media unless used as a prop in respect of an insured **production**
- g) jewellery, furs, precious metals, precious stones, curiosities, rare books and works of art, collectively in excess of £10,000 unless details have been submitted to and accepted by **us**

5. Mechanical or Electrical Breakdown, Cleaning, Repairing, Atmospheric Conditions, Vermin and Moth

damage caused by or consisting of mechanical or electrical breakdown, wear, tear, gradual deterioration, the process of cleaning, repairing or restoring any article, the action of light or atmospheric conditions, vermin and moth

6. Property Being Worked Upon

damage caused to property being worked upon

7. Property in the Open

damage to property stored in the open caused by rain, sleet, snow or hail

This exclusion shall not include property whilst on location

8. Property of a Brittle Nature

breakage of property wholly or partly of a brittle nature unless details have been submitted to and accepted by us

9. Unexplained Loss

damage caused by or consisting of shortage of inventory or any unexplained loss or mysterious disappearance

10. Unsuitable Packing

damage caused by unsuitability or insufficiency of packing of the Property Insured.

Exclusions Applicable to Sub-Section 1 c) Specified Items

In respect of Sub-Section 1 c) Specified Items this section does not cover:

1. Change in Environment, Depreciation, Faulty Design or Workmanship or Inherent Defect, Gradually Operating Causes, Vermin or Insect

damage caused by or consisting of:

- a) atmospheric or climatic conditions or action of light
- b) corrosion, rust, wet or dry rot, shrinkage, evaporation, loss of weight, dampness, marring, scratching, vermin or insects
- c) change in temperature, colour, flavour, texture or finish
- d) depreciation
- e) inherent vice, latent defect, gradual deterioration, wear and tear, frost, its own faulty or defective design, workmanship or materials

2. Cleaning, Processing and Repair

damage caused by or consisting of any process of cleaning, dyeing, repairing, restoring, alteration or adjusting

3. Consequential Loss

loss of use of Property Insured or any other consequential loss unless specifically insured under this section

4. Excess

the amount of the excess

5. Fraud or Dishonesty

damage caused by or consisting of theft where any person in **your** employ or service or members of their family are concerned as principal or accessory

6. Mechanical Breakdown

damage caused by or consisting of mechanical or electrical breakdown or derangement or its own overrunning, short circuiting or self-heating.

Special Conditions Applicable to Section 1

1. Average

The sum insured by each item of this section excluding Optional Extension A: Hired in Property is declared to be separately subject to **average**.

2. Property in Unattended Vehicle Condition ZF1CP01

Only applicable if stated in the schedule.

It is a condition precedent to **our** liability in respect of Property Insured while contained in an unattended road vehicle that:

- a) all doors windows and other openings are fully closed and locked whenever the vehicle is left unattended and any property concealed from view wherever possible

- b) between the hours of 2100 and 0600 unless the vehicle is on location it will be:
 - i) fully alarmed and the alarm placed in full and effective operation; or
 - ii) kept in a locked garage or building or security compound.

3. Reinstatement

In the event of the Property Insured being damaged the basis upon which the amount payable is to be calculated will be **reinstatement** subject to the following Supplementary Conditions and the terms and conditions of this section except in so far as the same may be varied hereby.

Supplementary Conditions

- a) The work of **reinstatement** must be commenced and carried out with reasonable despatch otherwise no payment beyond the amount which would have been payable under this section if this Special Condition had not been incorporated will be made.
- b) When any Property Insured is damaged in part only **our** liability will not exceed the sum representing the cost which **we** could have been called upon to pay for **reinstatement** if such Property Insured had been wholly lost or destroyed.
- c) No payment beyond the amount which would have been payable under this section if this Special Condition had not been operative will be made until the cost of **reinstatement** has been actually incurred.
- d) The sum insured shown against each item stated in the schedule will not be less than the new replacement cost of such item. For the purpose of this Special Condition the new replacement cost will mean the present valid list price plus the cost of any freight, import duty and installation costs. In the event of the insured item being obsolete the sum insured should represent the current list price plus the cost of any freight, import duty and installation costs of the nearest equivalent model.
- e) No payment will be made beyond the amount which would have been made payable under this section if this Special Condition had not been operative if at the time of any **damage** such property is covered by any other insurance effected by or on **your** behalf which is not upon an identical basis of **reinstatement**.
- f) Where by reason of any of the above Supplementary Conditions no payment is to be made beyond the amount which would have been payable under this policy had this Special Condition not been operative **your** and **our** rights and liabilities in respect of any Damage will be subject to the terms of this section as if this Special Condition had not been operative.

Section 2 – Property Damage ‘All Risks’

Special Definitions

All Other Damage

Damage resulting from a cause not otherwise excluded other than fire, lightning, explosion, aircraft, riot, civil commotion, strikers, locked-out workers, persons taking part in labour disturbances, earthquake, impact by any mechanically propelled vehicle or articles dropped from them or by animal, theft or attempted theft or subsidence, ground heave and landslip.

Buildings

Buildings of the **premises** for which **you** are legally responsible and including:

- a) landlords’ fixtures and fittings
- b) outbuildings, extensions, annexes, canopies, fixed signs, gangways, conveniences, lamp posts and street furniture
- c) walls, gates and fences
- d) drains, sewers, piping, ducting, cables, wires and associated control gear and accessories on the **premises** and extending to the public mains but only to the extent of **your** responsibility
- e) yards, car parks, roads, pavements, forecourts, all constructed of solid materials and landscaping.

Contents

Contents owned by or held in trust by **you** or for which **you** are responsible while in or on any building at the **premises** and including:

- a) tenants’ improvements, alterations and decorations, including air conditioning equipment
- b) **employees’**, directors’ and visitors’ personal effects and tools of every description (other than motor vehicles) not otherwise insured for an amount not exceeding £500 in respect of any one person
- c) contents of outbuildings at the **premises**
- d) contents in the open yards at the **premises**
- e) satellite transmission and receiving equipment
- f) wines, spirits, tobacco, cigars not exceeding £500 in total

but excluding:

- i) landlords’ fixtures and fittings
- ii) Stock
- iii) **money** and stamps (including National Insurance stamps) bonds, credit cards and securities in excess of £500
- iv) documents, manuscripts and business books except for the cost of the materials and of clerical labour expended in reproducing such records
- v) computer systems records except for an amount not exceeding £10,000 in respect of the cost of the materials and of clerical labour and computer time expended in reproducing such records
- vi) any expense in connection with the production of the information to be recorded in documents, manuscripts, business books or computer systems records
- vii) vehicles licensed for road use including accessories thereon.

Damage

Damage to Property Insured by a cause not otherwise excluded.

Miscellaneous

As described under the heading ‘Description’ in the schedule.

Property Insured

The property insured as stated in the schedule.

Stock

Stock and materials in trade your property or held by **you** in trust for which **you** are responsible while in or on any building at the **premises**.

The Cover

In the event of the Property Insured being accidentally lost, destroyed or damaged during the period of insurance **we** will pay to **you** the value of the property at the time of its **damage** or the amount of the **damage** or at **our** option reinstate or replace such property or any part of it.

Provided always that **our** liability under this section will not exceed:

- a) in the whole the total sum insured or in respect of any item its sum insured or any other limit of indemnity stated in the schedule at the time of the loss, destruction or damage
- b) the sum insured (or limit) remaining after deduction for any other **damage** occurring during the same period of insurance, unless **we** will have agreed to reinstate any such sum insured (or limit).

Clauses Applicable to Section 2

2.1 Architects', Surveyors', Legal and Consulting Engineers' Fees

The insurance by each item on Buildings and Contents includes an amount in respect of reasonable architects', surveyors', legal and consulting engineers' fees necessarily incurred in the reinstatement or repair of Property Insured consequent upon its Damage but not for preparing any claim.

The amount payable under each item on Buildings and Contents will not exceed in total its sum insured.

2.2 Automatic Reinstatement of Loss

In the absence of written notice by **us** or **you** to the contrary this insurance will not be reduced by the amount of any loss in consideration of which **you** will pay the appropriate extra premium on the amount of the loss from the date thereof to the expiry of the period of insurance.

Provided always that:

- a) the aggregate of the amounts so reinstated for losses by theft during any one period of insurance will not exceed the amount of the sum insured
- b) **you** will take immediate steps to effect such additions to or variations in the protections of the Property Insured as **we** may require.

2.3 Capital Additions

The insurance by this section will subject to its terms and conditions include:

- a) any newly acquired Buildings and Contents in the United Kingdom in so far as the same are not otherwise insured; and
- b) alterations, additions and improvements to Buildings and Contents

but not in respect of any appreciation in value during the current period of insurance at any of the **premises**.

Provided always that:

- i) at any one situation this cover will not exceed 10% of the total sum insured on such property or £500,000 whichever is the lesser
- ii) **you** undertake to give particulars of such extensions of cover as soon as practicable and to effect specific insurance thereon retrospective to the date of the commencement of **our** liability
- iii) the provisions of this clause will be fully maintained notwithstanding any specific insurance effected under ii) above.

2.4 Change of Premises

The property that is insured within **territorial area 1 - premises** is covered while in transit from an existing premises to a new **premises** in Great Britain, Northern Ireland, the Channel Islands or the Isle of Man.

Provided always that:

our liability in respect of each item for any Damage occurring elsewhere than at the **premises**

- a) will not exceed 100% of the sum insured applicable to **territorial area 1 - premises** by the item
- b) this clause will not apply to property in so far as it is otherwise insured
- c) **you** undertake to advise **us** of such transit as soon as possible.

2.5 Contract Price

In respect only of goods sold but not delivered for which **you** are responsible subject to a sale contract which following **damage** insured hereby is cancelled by reason of its conditions wholly or to the extent of the **damage** **our** liability will be based on the contract price.

2.6 Contracting Purchasers

If at the time of Damage **you** will have contracted to sell **your** interest in any Building insured under this section and the purchase will not have been but will be thereafter completed the purchaser on completion of the purchase (if and so far as the property is not otherwise insured against such **damage** by them or on their behalf) will be entitled to benefit under this section without prejudice to **our** and **your** rights and liabilities until completion.

2.7 Customers' Goods

You having intimated to **your** customers that **you** will accept responsibility for **damage** to goods the property of such customers or for which the said customers may be legally responsible whether manufactured by **you** or not upon which work is to be, is being done or has been done on behalf of customers by **you** or which may be left in **your** custody it is agreed that all such goods will be held to be insured by the item on the schedule relating to Stock except in so far as they may be more specifically insured elsewhere.

2.8 Damage by Theft to the Buildings of the Premises

This Section includes **damage** to the Buildings of the **premises** (including **damage** to glass which is accepted by a police authority as prima facie evidence of attempted theft) falling to be borne by **you** which directly results from theft or attempted theft (as otherwise insured hereby).

Provided always that if the Buildings of the **premises** are not insured by this section **our** liability under this clause during any one period of insurance will not exceed the sum of £25,000 or the total sum insured if less.

2.9 Designation

For the purpose of determining where necessary the heading under which any property is insured **we** agree to accept the designation under which such property has been entered in **your** books.

2.10 Deterioration of Food

This section covers **damage** by deterioration, contamination or putrifaction of foodstuffs **your** property or held by **you** in trust or on commission and for which **you** are responsible while contained in any refrigeration units at the **premises** resulting from:

- a) rise or fall in temperature caused by:
 - i) the breaking, distortion or burning out of any part of the unit including its own wiring terminating at and including the plug and fuse arising from mechanical breakdown or electrical defects in the unit occurring while the unit is being used under normal working conditions
 - ii) non-operation of the thermostatic or automatic controlling devices forming part of the unit
 - iii) accidental failure of the public supply of electricity
- b) accidental leakage of refrigerant or refrigerant fumes from the unit

but excluding:

- i) **damage** caused by or resulting from:
 - 1) failure of the public supply services which do not exceed 30 consecutive minutes
 - 2) failure of the public supply services due to:
 - A) any deliberate act of a public supply undertaking not performed for the sole purpose of safeguarding life or protecting any part of the public supply undertaking's systems
 - B) any scheme of rationing not necessitated by accidental **damage** to the public supply undertaking's generating or supply equipment
 - 3) wear and tear, deterioration or gradually developing flaws or defects in the unit or incorrect setting of thermostats and automatic controls
 - 4) refrigeration units over 10 years old
- ii) **damage** to foodstuffs in any refrigeration unit without hermetically sealed motors and compressors unless such unit is under guarantee or an annual maintenance contract
- iii) the amount of the excess.

Our maximum liability in respect of all losses arising from one occurrence or all occurrences of a series consequent upon or attributable to one or original cause is £2,500.

2.11 Drains

This section includes reasonable expenses necessarily incurred by **you** with **our** consent in cleaning and/or clearing drains, sewers or gutters **your** property or for which **you** are responsible following Damage.

2.12 Exhibitions

The insurance in respect of each item on Contents and Stock includes such property while at any indoor exhibition within **territorial area 2 – UK and Europe** including transit thereto and therefrom for a period not exceeding 15 consecutive days.

Our maximum liability any one exhibition will not exceed £10,000.

2.13 Fire Extinguishment Expenses

We will pay the reasonable costs incurred by **you** in:

- a) refilling fire extinguishing appliances
- b) recharging gas flooding systems
- c) replacing used sprinkler heads
- d) refilling sprinkler tanks where water costs are metered
- e) resetting fire and intruder alarms all in consequence of Damage.

2.14 Glass

In the event of accidental breakage of fixed glass for which **you** are responsible **we** will indemnify **you** in respect of the cost of:

- a) replacement or repair of such glass with glass of a similar quality or as otherwise recommended by the British Code of Practice BS6262
- b) temporary boarding up necessarily incurred through breakage of the glass
- c) **damage** to frames and framework of any description and the cost of removing or replacing any Stock or Contents that may have to be removed to replace the glass not exceeding £500.

This clause does not cover:

- i) the cost of silvering, embossing, lettering bending or ornamenting glass in excess of £500 any one loss
- ii) breakage of cracked or scratched glass
- iii) breakage or **damage** resulting from repairs or alterations to the **premises** or while the **premises** are vacant or unoccupied
- iv) breakage or **damage** caused by fire, lightning, explosion or earthquake unless the buildings of the **premises** at which the breakage occurred are insured under this policy.

2.15 Index Linking

Where so stated in the schedule to this section the sum insured will be adjusted during the period of insurance in accordance with fluctuations in suitable indices of cost. In the event of loss the sum insured will continue to be adjusted in accordance with fluctuations in the indices during the period necessary for completion of repair or reinstatement provided always that repair or reinstatement is carried out without unreasonable delay.

The premium will remain unchanged during the period of insurance but at each renewal the premium will be calculated on the revised sum insured.

2.16 Landscaped Gardens

This section includes costs and expenses incurred with **our** consent in making good **damage** to landscaped gardens or grounds at the **premises** caused by **damage** as insured hereby but excluding:

- a) the cost of movement of soil excluding as necessary for surface preparation
- b) the failure of trees, shrubs or turf to become established following replanting
- c) the failure of seeds to germinate.

Provided always that:

- i) **we** will not be liable for the first £1,000 in respect of each and every loss arising from **damage** caused by Storm, Flood or Malicious Persons (excluding by Fire or Explosion) not acting on behalf of or in respect of any political organisation or All Other Damage
- ii) **our** liability any one occurrence will not exceed £10,000 or 10% of the sum insured by the relevant item whichever is the lesser.

2.17 Metered Water

We will pay the cost for which **you** are responsible in respect of loss of metered water provided always that:

- a) the amount payable in respect of any one **premises** is limited to such excess water charges demanded by the water authority and resulting from the accidental escape of water from pipes, apparatus or tanks in consequence of Damage
- b) **our** liability under this clause any one occurrence will not exceed £10,000 or 10% of the sum insured by this section whichever is the lesser.

2.18 Mortgagees and Lessors

Any increase in the risk of Damage resulting from any act or neglect of any mortgagor, leaseholder, lessee or occupier of any **buildings** insured by this policy will not prejudice the interest of any mortgagee, freeholder or lessor.

Provided always that:

- a) such increase in risk is without their prior knowledge or authority; and
- b) **we** are notified immediately they becomes aware of such increase in risk; and
- c) **you** pay an appropriate additional premium if required.

2.19 Non-Invalidation

This insurance will not be invalidated by any act or omission or by any alteration whereby the risk of Damage is increased unknown to or beyond **your** control provided always that immediately **you** become aware thereof **you** will give **us** notice and pay an additional premium if required.

2.20 Other Interests

It is agreed that various parties may have a legal interest in part of the property insured by this policy and **you** undertake to declare the names, nature and extent of any interest of any such parties at the time of the Damage.

2.21 Removal of Debris

The insurance by all items of this section except those applying wholly or in part to Stock if insured includes costs and expenses necessarily incurred by **you** with **our** consent in:

- a) removing debris
- b) dismantling and/or demolishing
- c) shoring up or propping
- d) boarding up

of the portion or portions of the property insured by the said items damaged by any cause not herein excluded.

Our liability under this clause and this section in respect of any item will in no case exceed the sum insured thereby.

We will not pay for any costs or expenses:

- i) incurred in removing debris except from the site of such property damaged and the surface of the area immediately adjacent to such site
- ii) arising from **pollution or contamination** of property not insured by this section.

2.22 Stock Debris Removal Costs

Any insurance on 'Stock Debris Removal Costs' applies only in respect of costs and expenses necessarily incurred by **you** with **our** consent in removing debris of the portion or portions of the Stock damaged by any cause not otherwise excluded.

We will not pay for any costs or expenses:

- a) incurred in removing debris except from the site of such property destroyed or damaged and the surface of the area immediately adjacent to such site
- b) arising from **pollution or contamination** of property not insured by this section.

2.23 Subrogation Waiver

In the event of a claim arising under this policy **we** agree to waive any rights, remedies or relief to which **we** might become entitled by subrogation against:

- a) any Company standing in the relation of Parent to Subsidiary or Subsidiary to Parent to **you** as defined in the Companies Act or Companies (N.I.) Order as appropriate current at the time of the Damage
- b) any Company which is a Subsidiary of a Parent Company of which **you** are **yourselves** a Subsidiary in each case within the meaning of the Companies Act or Companies (N.I.) Order as appropriate current at the time of the Damage

- c) any tenant or lessee in respect of Damage to that part of the **premises** in the demise of that tenant or lessee or to those parts of the **premises** in which all the tenants have a common interest where the premium has been paid by the tenant or lessee unless such Damage arises out of a criminal or malicious act of the tenant or lessee.

2.24 Temporary Removal

The property insured by this section excluding Stock is covered while temporarily removed for cleaning, renovation, repair or similar purposes elsewhere and in transit thereto and therefrom all in Great Britain, Northern Ireland, the Channel Islands and the Isle of Man.

Provided always that:

- a) **our** liability under this clause in respect of each item of this section for any Damage occurring elsewhere than at the **premises** will not exceed 10% of the sum insured by the item
- b) this clause does not apply to property in so far as it is otherwise insured.

2.25 Temporary Removal – Documents and Computer System Records

This section includes the following while temporarily removed to premises not in **your** occupation but while remaining within Great Britain, Northern Ireland, the Channel Islands and the Isle of Man:

- a) deeds and other documents, manuscripts, plans and writings of every description and books (but excluding computer system records) up to 10% of the total value of such property
- b) computer system records up to 10% of the limit of indemnity stated in the definition of Contents.

2.26 Theft of Keys

Where **damage** to Property Insured by theft is not excluded in its entirety **we** will pay **you** the reasonable expenses not exceeding £750 incurred for the necessary replacement of locks following the loss of keys to the **premises** or any safe or strongroom therein caused by theft from the **premises** or from **your** private residence or an authorised **employee**.

2.27 Trace and Access

In the event of **damage** to Property Insured resulting from escape of water or fuel oil if insured hereby this insurance includes the reasonable costs necessarily incurred with our consent in:

- a) locating the source of such **damage**
- b) the subsequent making good of **damage** to Property Insured caused as a consequence thereof

provided always that **our** liability any one occurrence will not exceed £10,000 or 10% of the sum insured by this section whichever is the lesser.

2.28 Unauthorised Use of Electricity Gas or Water

This section includes the cost of metered electricity, gas, or water for which **you** are legally responsible arising from its unauthorised use by persons taking possession, keeping possession or occupying the **premises** without **your** authority.

Provided always that:

- a) all practicable steps are taken to terminate such unauthorised use as soon as it is discovered
- b) **our** limit of indemnity any one occurrence will not exceed £10,000 or 10% of the sum insured by the relevant item whichever is the lesser.

2.29 Workmen

Workmen are allowed to work in the Buildings for the purposes of effecting any repairs, minor additions and alterations or decorations without prejudice to this insurance.

Special Conditions Applicable to Section 2

1. Condition of Average (Underinsurance)

The sum insured by each item of this section excluding those applying solely to fees, removal of debris or private dwelling houses is declared to be separately subject to **average**.

2. European Union and Public Authorities (Including Undamaged Property)

Subject to the following Supplementary Conditions the insurance in respect of Buildings and Contents extends to include such additional cost of reinstatement as may be incurred solely by reason of the necessity to comply with the stipulations of:

- a) European Union legislation
- b) Building or other regulations under or framed in pursuance of any Act of Parliament or bye-laws of any public authority

(hereinafter referred to as 'the Stipulations') in respect of:

- i) the damaged property hereby insured
- ii) undamaged portions thereof
- iii) any water supply equipment at the **premises** supplying the sprinkler installation in undamaged portions of the **premises**.

We will not pay for:

- 1) the cost incurred in complying with the Stipulations:
 - A) in respect of Damage occurring prior to the inception of this Special Condition
 - B) in respect of damage not insured by this policy
 - C) under which notice has been served upon **you** prior to the happening of the Damage
 - D) for which there is an existing requirement which has to be implemented within a given period
 - E) in respect of property entirely undamaged
- 2) the additional cost that would have been required to make good the property damaged to a condition equal to its condition when new had the necessity to comply with the Stipulations not arisen
- 3) the amount of any charge or assessment arising out of capital appreciation which may be payable in respect of the property or by the owner thereof by reason of compliance with the Stipulations.

Supplementary Conditions

- 1. The work of reinstatement must be commenced and carried out without unreasonable delay and in any case must be completed within 12 months after the Damage or within such further time as **we** may allow during the said 12 months and may be carried out upon another site if the Stipulations so necessitate subject to **our** liability under this Special Condition not being thereby increased.
- 2. If **our** liability under any item of this policy apart from this Special Condition will be reduced by the application of any of the terms and conditions of this policy then **our** liability under this Special Condition in respect of any such item will be reduced in like proportion.
- 3. The total amount recoverable under any item of this policy in respect of this Special Condition will not exceed:
 - a) in respect of the damaged property – its sum insured
 - b) in respect of undamaged portions of property (excluding foundations) – 15% of the total amount for which **we** would have been liable had the property insured by the item at the **premises** where the Damage has occurred been wholly destroyed.
- 4. The total amount recoverable under any item of this policy will not exceed its sum insured.
- 5. All the terms and conditions of this policy except in so far as they are varied hereby will apply as if they had been incorporated herein.

3. Fire Break Doors and Shutters

You undertake to maintain all firebreak doors and shutters within **your** custody or control in efficient working order and to keep them free from obstruction at all times.

4. Fire Extinguishing Appliances

You undertake to have fire extinguishing appliances serviced and maintained under an annual service contract with approved suppliers or as agreed with **us**.

Subject to the observance of the above undertaking this policy will not be invalidated as a result of any defect in any of the said appliances unknown to or beyond **your** control.

5. Unoccupied Buildings

You will notify **us** when any Buildings become unoccupied or when an unoccupied Building or portion thereof becomes occupied and will pay a suitable additional premium if required.

6. Reinstatement

Subject to the following Supplementary Conditions the basis upon which the amount payable in respect of Buildings and Contents is to be calculated will be **reinstatement**.

Supplementary Conditions

1. Our liability for the repair or restoration of property damaged in part only will not exceed the amount which would have been payable had such property been wholly destroyed.
2. No payment beyond the amount which would have been payable in the absence of this Special Condition will be made:
 - a) unless **reinstatement** commences and proceeds without unreasonable delay
 - b) until the cost of **reinstatement** will have been actually incurred
 - c) if the property insured at the time of its **damage** will be insured by any other insurance effected by or on **your** behalf which is not upon the same basis of **reinstatement**.
3. All the terms and conditions of this policy will apply:
 - a) in respect of any claim payable under the provisions of this Special Condition except in so far as they are varied hereby
 - b) where claims are payable as if this Special Condition had not been incorporated.
4. If at the time of **reinstatement** the sum representing 85% of the cost which would have been incurred in reinstating the whole of the property covered by any item subject to this Special Condition exceeds its sum insured at the commencement of any Damage **our** liability will not exceed that proportion of the amount of the Damage which the said sum insured will bear to the sum representing the total cost of reinstating the whole of such property at that time.

Supplementary condition d) is not applicable to Buildings and Contents stated in the Schedule as 'Index Linked'.

For exclusions applicable to this section please refer to the Exclusions Applicable to Sections 2 and 3 Arising from Loss or Damage to Property Insured under Section 2. These exclusions can be found on pages (34, 35, 36, 37 and 38).

Section 3 – Business Interruption ‘All Risks’

Special Definitions

Computer Equipment

Computer Equipment including fixed discs, interconnecting wiring, air conditioning and cooling equipment, generating and volting regulating equipment, satellite, telecommunications, links and computerised telephone exchanges, electronic access equipment, temperature and humidity recording equipment and data storage materials used for electronic processing communication and storage of electronic data belonging to **you** or leased, hired or rented to **you**.

Damage

Damage to property by a cause not otherwise excluded.

Estimated Gross Profit

The amount declared by **you** to **us** as representing not less than the Gross Profit which it is anticipated will be earned by the **business** during the financial year most nearly concurrent with the period of insurance or a proportionately increased multiple thereof where the Maximum Indemnity Period exceeds 12 months.

Gross Profit

The amount by which:

- a) the sum of the amount of the Turnover and the amounts of the closing stock and work in progress exceed
- b) the sum of the amounts of the opening stock and work in progress and the amount of the Uninsured Working Expenses.

Note:

The amounts of opening and closing stocks and work in progress will be arrived at in accordance with **your** normal accountancy methods due provision being made for depreciation.

Estimated Gross Revenue

The amount declared by **you** to **us** as representing not less than the Gross Revenue which it is anticipated will be earned by the **business** during the financial year most nearly concurrent with the period of insurance or a proportionately increased multiple thereof where the Maximum Indemnity Period exceeds 12 months.

Gross Revenue

As stated in the schedule.

Incident

Damage to property used by **you** at the **premises** for the purpose of the **business**.

Indemnity Period

The period beginning with the occurrence of the Incident and ending not later than the Maximum Indemnity Period thereafter during which the results of the **business** are affected in consequence of the Incident.

Maximum Indemnity Period

The time period stated in the schedule. This is a consecutive time period and commences from the date of the Incident.

Notifiable Disease

Illness sustained by any person resulting from:

- a) food or drink poisoning
- b) one of the following specified human infectious or human contagious diseases:
Acute Encephalitis, Ophthalmia Neonatorum, Acute Poliomyelitis, Paratyphoid Fever, Bubonic Plague, Rabies, Anthrax, Relapsing Fever, Cholera, Rubella, Diphtheria, Scarlet Fever, Dysentery, Smallpox, Legionellosis, Tetanus, Legionnaires Disease, Tuberculosis, Leprosy, Typhoid Fever, Leptospirosis, Typhus Fever, Malaria, Viral Hepatitis, Measles, Viral Haemorrhagic, Meningitis, Whooping Cough, Meningococcal Infection, Yellow Fever and Mumps

an outbreak of which the competent local authority has stipulated will be notified to them.

Rate of Gross Profit

The Gross Profit earned expressed as a percentage of the Turnover during the financial year immediately before the date of the Incident.

Rent Receivable

The amount of the rent and other income received or receivable from the letting of the **premises** and for services rendered thereat.

Standard Gross Revenue

The Gross Revenue during that period in the 12 months immediately before the date of the Incident which corresponds with the Indemnity Period.

Standard Rent Receivable

The Rent Receivable during that period in the 12 months immediately before the date of the Incident which corresponds with the Indemnity Period.

Standard Turnover

The Turnover during that period in the 12 months immediately before the date of the Incident which corresponds with the Indemnity Period.

Turnover

The money paid or payable to **you** for goods sold and delivered and for services rendered in course of the **business** at the **premises**.

Uninsured Working Expenses

As stated in the schedule.

Note:

The words and expressions used in this definition will have the meaning usually attached to them in your books and accounts.

Notes to the Special Definitions

1. In respect of the definitions of Standard Gross Revenue, Standard Rent Receivable and Standard Turnover adjustments will be made as may be necessary to provide for the trend of the **business** and for variations in or other circumstances affecting the **business** either before or after the incident which would have affected the **business** had the Incident not occurred so that the figures thus adjusted will represent as nearly as may be reasonably practicable the results which but for the Incident would have been obtained during the relative period after the Incident.
2. For the purposes of these definitions any adjustment implemented in current cost accounting will be disregarded.

The Cover

In the event of any Incident occurring during the period of insurance and in consequence the **business** carried on by **you** at the **premises** be interrupted or interfered with then **we** will pay **you** in respect of each item in the schedule the amount of loss resulting from such interruption or interference.

Provided always that:

- a) at the time of the Incident there is an insurance in force covering **your** interest in the property at the **premises** against such **damage** and:
 - i) payment has been made or liability admitted therefor
 - ii) payment would have been made or liability admitted therefor but for the operation of a proviso in such insurance excluding liability for losses below a specified amount
- b) **our** liability under this section will not exceed:
 - i) in the whole the total sum insured
 - ii) in respect of each of items 1, 2 and 3 133.3% of the Estimated Gross Profit, Estimated Gross Profit or Estimated Rent Receivable respectively or any other limit of indemnity stated in this policy, the schedule or by endorsement applicable at the time of the Incident
 - iii) in respect of any other item its sum insured or any other limit of indemnity stated in this policy, the schedule or by endorsement applicable at the time of the Incident
 - iv) the sum insured (or limit) remaining after deduction for any other interruption or interference consequent upon an Incident occurring during the same period of insurance unless **we** have agreed to reinstate any such sum insured (or limit).

Item 1 – Gross Profit

The amount payable as indemnity under this item will be:

- a) in respect of reduction in Turnover: the sum produced by applying the Rate of Gross Profit to the amount by which the Turnover during the Indemnity Period falls short of the Standard Turnover in consequence of the Incident

- b) in respect of increase in cost of working: the reasonable additional expenditure (subject to the provisions of the Uninsured Standing Charges clause) necessarily incurred for the sole purpose of avoiding or diminishing the reduction in Turnover which but for that expenditure would have taken place during the Indemnity Period in consequence of the Incident but not exceeding the sum produced by applying the Rate of Gross Profit to the amount of the reduction thereby avoided

less any sum saved during the indemnity period in respect of such of the charges and expenses of the business payable out of Gross Profit as may cease or be reduced in consequence of the incident.

Clauses Applicable to Item 1

3.1.1 Alternative Trading

If during the Indemnity Period goods are sold or services rendered elsewhere than at the **premises** for the benefit of the **business** either by **you** or by others on **your** behalf the money paid or payable in respect of such sales or services will be brought into account in arriving at the Turnover during the Indemnity Period.

3.1.2 Departmental

If the **business** be conducted in departments the independent trading results of which are ascertainable the provisions of clauses a) and b) of the Item on Gross Profit will apply separately to each department affected by the Incident.

3.1.3 New Business

For the purpose of any claim arising from an Incident occurring before the completion of the first year's trading of the **business** at the **premises** the terms Standard Gross Profit and Standard Turnover will bear the following meaning and not as within stated:

Rate of Gross Profit – The Gross Profit earned expressed as a percentage of the Turnover during the period between the date of the commencement of the **business** and the date of the Incident.

Standard Turnover – The proportionate equivalent for a period equal to the Indemnity Period of the Turnover realised during the period between the commencement of the **business** and the date of the Incident.

3.1.4 Payments on Account

Payments on account may be made to **you** during the Indemnity Period at **our** discretion but in no case will any payment exceed our liability in respect of reduction in Turnover for the period in respect of which a payment is to be made.

3.1.5 Salvage Sale

If following any Incident giving rise to a claim under this item **you** hold a salvage sale during the Indemnity Period clause a) of this item will for the purpose of such claim read as follows:

In respect of reduction in Turnover: the sum produced by applying the Rate of Gross Profit to the amount by which the Turnover during the Indemnity Period (less the Turnover for the period of the salvage sale) will in consequence of the Incident fall short of the Standard Turnover from which sum will be deducted the Gross Profit actually earned during the period of the salvage sale.

3.1.6 Uninsured Standing Charges

If any standing charges of the **business** be not insured by this policy (having been deducted in arriving at the Gross Profit as defined herein) then in computing the amount recoverable hereunder as increase in cost of working that proportion only of any additional expenditure will be brought into account which the Gross Profit bears to the sum of the Gross Profit and the Uninsured Standing Charges.

Item 2 – Gross Revenue

The amount payable as indemnity under this item will be:

- a) in respect of loss of Gross Revenue: the amount by which the Gross Revenue during the Indemnity Period falls short of the Standard Gross Revenue in consequence of the Incident
- b) in respect of increase in cost of working: the reasonable additional expenditure necessarily incurred for the sole purpose of avoiding or diminishing the reduction in Gross Revenue which but for the expenditure would have taken place during the Indemnity Period in consequence of the Incident but not exceeding the amount of reduction in Gross Revenue thereby avoided

less any sum saved during the Indemnity Period in respect of such of the charges and expenses of the **business** payable out of Gross Revenue as may cease or be reduced in consequence of the Incident.

Clauses Applicable to Item 2

3.2.1 Alternative Trading

If during the Indemnity Period goods are sold or services rendered elsewhere than at the **premises** for the benefit of the **business** either by **you** or by others on **your** behalf the money paid or payable in respect of such sales or services will be brought into account in arriving at the Gross Revenue during the Indemnity Period.

3.2.2 New Business

For the purpose of any claim arising from an Incident occurring before the completion of the first year's trading of the **business** at the **premises** the term Standard Gross Revenue will bear the following meaning and not as within stated:

Standard Gross Revenue – The proportional equivalent for a period equal to the Indemnity Period of the Gross Revenue realised during the period between the commencement of the **business** and the date of the Incident.

3.2.3 Payments on Account

Payments on account may be made to **you** during the Indemnity Period at **our** discretion but in no case will any payment exceed **our** liability in respect of reduction in Gross Revenue for the period in respect of which a payment is to be made.

3.2.4 Temporary Removal (Documents)

Loss as insured by this section resulting from interruption or interference with the **business** in consequence of **damage** to plans, deeds, briefs, manuscripts, books, documents and office records while temporarily removed within the United Kingdom will be deemed to be loss resulting from an Incident.

Item 3 – Rent Receivable

The amount payable as indemnity under this item will be:

- a) in respect of loss of Rent Receivable: the amount by which the Rent Receivable during the Indemnity Period falls short of the Standard Rent Receivable in consequence of the Incident
- b) in respect of increase in cost of working: the reasonable additional expenditure necessarily incurred for the sole purpose of avoiding or diminishing the loss of Rent Receivable which but for that expenditure would have taken place during the Indemnity Period in consequence of the Incident but not exceeding the amount of the reduction in Rent Receivable thereby avoided

less any sum saved during the Indemnity Period in respect of such of the charges and expenses of the business payable out of the Rent Receivable as may cease or be reduced in consequence of the Incident.

Clauses Applicable to Item 3

3.3.1 Alternative Trading

If during the Indemnity Period goods are sold or services rendered elsewhere than at the **premises** for the benefit of the **business** either by **you** or by others on **your** behalf the money paid or payable in respect of such sales or services will be brought into account in arriving at the Rent Receivable during the Indemnity Period.

3.3.2 New Business

For the purpose of any claim arising from an incident occurring before the completion of the first year's trading of the **business** at the **premises** the term Standard Rent Receivable will bear the following meaning and not as within stated:

Standard Rent Receivable – The proportional equivalent for a period equal to the indemnity period of the Rent Receivable realised during the period between the commencement of the **business** and the date of the Incident.

3.3.3 Payments on Account

Payments on account may be made to **you** during the Indemnity Period at **our** discretion but in no case will any payment exceed **our** liability in respect of reduction in Rent Receivable for the period in respect of which a payment is to be made.

Item 4 – Increased Cost of Working

The amount payable as indemnity under this item will be the reasonable expenditure necessarily incurred by **you** during the Indemnity Period in order to minimise any interruption of or interference with the **business** in consequence of the Incident.

Item 5 – Additional Increased Cost of Working

The insurance under this item is supplementary to items 1, 2 and 3 if insured and the amount payable as indemnity will be the necessary additional expenditure beyond that recoverable under paragraph b) of Items 1, 2 and 3 of this section reasonably incurred during the Indemnity Period in consequence of the Incident for the sole purpose of minimising any interruption of or interference with the **business** which but for that expenditure would have taken place.

Automatic Extensions Applicable to Section 3

Any loss as insured under this section resulting from interruption of or interference with the **business** in consequence of:

- a) in respect of extensions 3, 8 and 9 the contingencies described therein
- b) in respect of all other extensions accidental **damage**

at the under-noted situations or to property as under-noted will be deemed to be an Incident provided always that after the application of all other terms and conditions of this policy **our** liability under each extension in respect of any one occurrence will not exceed:

- i) 133.3% of the Estimated Gross Profit, Estimated Gross Revenue or Estimated Rent as applicable; or
- ii) 100% of the sum insured under item 4 Increased Cost of Working or item 5 Additional Increased Cost of Working if insured; or
- iii) the amount shown below against such situations or property as the limit or such other amount stated in the schedule or by endorsement at the time of the Incident. Percentage limits are expressed as a proportion of the sum insured or limit of indemnity applicable to the relevant item to which the extension applies.

Unless otherwise stated the Maximum Indemnity Period in respect of each extension will be that applicable to the relevant item to which the extension applies as stated in the schedule at the time of the Incident.

1. **Contract Site**

Any situation in **territorial area 2 – UK and Europe** not in **your** occupation where **you** are carrying out a contract.

The limit is 50% provided always that the insurance granted by this extension will not exceed £500,000.

2. **Exhibition Site**

Any situation in **territorial area 2 – UK and Europe** not in **your** occupation where **you** are carrying out an exhibition.

The limit is 50% provided always that the insurance granted by this extension will not exceed £500,000.

3. **Notifiable Diseases, Vermin, Defective Sanitary Arrangements, Murder and Suicide**

- a)
 - i) Any occurrence of a Notifiable Disease at the **premises** or attributable to food or drink supplied from the **premises**
 - ii) any discovery of an organism at the **premises** likely to result in the occurrence of a Notifiable Disease
- b) the discovery of vermin or pests at the **premises**
- c) any accident causing defects in the drains or other sanitary arrangements at the **premises** which causes restrictions on the use of the **premises** on the order or advice of the competent local authority
- d) any occurrence of murder or suicide at the **premises**.

Exclusions Applicable to Extension 3

We will not be liable under this extension for:

- 1. loss arising from restrictions on the use of the **premises** in consequence of an emergency notice or emergency prohibition order being served against **you** or the manager of the **premises** in relation to a breach of the Food Safety Act 1990, General Food Regulations 2004 or Food Hygiene Regulations 2006 including any modifications thereto or re-enactment thereof
- 2. any costs incurred in the cleaning, repair, replacement, recall or checking of property.

Provisions Applicable to Extension 3

- 1. For the purposes of this extension 'Indemnity Period' will mean the period during which the results of the **business** are affected in consequence of the occurrence, discovery or accident beginning with the date from which the restrictions on the **premises** are applied or in the case of d) above with the date of the occurrence and ending not later than the Maximum Indemnity Period thereafter.
- 2. For the purposes of this extension 'Maximum Indemnity Period' will mean 12 months.
- 3. In the event that this section includes an extension which deems loss or **damage** at locations other than the premises to be an Incident such locations will not be deemed **premises** for the **purposes** of this extension.

Supplementary Conditions Applicable to Extension 3

- 1. **We** will only be liable for the loss arising at those **premises** which are directly affected by the occurrence, discovery or accident.
- 2. **You** will comply with all issues identified as Contraventions arising from a Food Premises Inspection **Report** within the timescales stated in such report.
- 3. **You** will notify us immediately of any prohibition notice, emergency prohibition notice or emergency prohibition order served against **you** or the manager of the **premises** in relation to a breach of the Food Safety Act 1990, General Food Regulations 2004 or Food Hygiene Regulations 2006 including any modifications thereto or re-enactment thereof.

The limit is 10% but in no case exceeding £150,000 in any one period of insurance after the application of all other terms and conditions of this policy.

4. **Patterns**

Patterns, jigs, models, templates, moulds, dies, tools, plans, drawings and designs **your** property or held by **you** in trust and for which **you** are responsible while at the premises of any machine makers, engineers, founders or other metal workers excluding any premises wholly or partly occupied by **you** or while in transit all in Great Britain or Northern Ireland.

The limit is 10%.

5. **Prevention of Access**

Property in the vicinity of the **premises damage** to which will prevent or hinder the use of the **premises** or access thereto whether **your premises** or property therein sustain **damage** or not but excluding **damage** to property of any supply undertaking from which **you** obtain electricity, gas, water or telecommunications services which prevents or hinders the supply of such services to the **premises**.

The limit is 100%.

6. **Public Utilities – Electricity, Gas, Water and Telecommunications**

Property at any:

- a) generating station or sub-station of the public electricity supply undertaking
- b) land based premises of the public gas supply undertaking or of any natural gas producer linked directly therewith
- c) water works or pumping station of the public water supply undertaking
- d) land based premises of the public telecommunications undertaking

from which **you** obtain electricity, gas, water or telecommunications services all in Great Britain or Northern Ireland.

The cover provided under this extension includes loss as insured by this section due to failure of the public supply of:

- i) electricity at the terminal ends of the supply undertaking's service feeders at the **premises**
- ii) gas at the supply undertaking's meters at the **premises**
- iii) water at the supply undertaking's main stop cock servicing the **premises**
- iv) telecommunications services (excluding satellite services) at the incoming line terminals or receivers at the **premises**

as a direct result of **damage** by a cause not otherwise excluded to cables or pipes conveying the said services to the **premises** but excluding any failure which does not involve a cessation of supply for at least 24 consecutive hours.

The limit is 100%.

7. **Transit**

Your property while in transit in **territorial area 2 – UK and Europe**.

The limit is 50% provided always that the insurance granted by this extension will not exceed £500,000.

8. **Unspecified Customers UK**

The premises of **your** customers situated in Great Britain or Northern Ireland other than those more specifically insured by this section.

Provided that for the purpose of this extension the term "customers" means those companies, organisations or individuals with whom, at the time of the Incident, **you** have contracts or trading relationships to supply goods and services.

The limit is £250,000.

9. **Unspecified Suppliers UK**

The premises of **your** suppliers, manufacturers or processors of components, goods or materials situated in Great Britain or Northern Ireland but excluding the premises of:

- a) any supply undertaking from which **you** obtain electricity, gas, water or telecommunication services
- b) any supplier more specifically insured by this section.

The limit is £250,000.

10. **Unspecified Customers Europe**

The premises of **your** customers situated in the European Union other than those more specifically insured by this section.

Provided that:

- a) the limit is £100,000
- b) **we** will not be liable under this extension for loss other than caused by fire, lightning, aircraft and explosion.

For the purpose of this extension:

- i) the term “customers” means those companies, organisations or individuals with whom, at the time of the Incident, **you** have contracts or trading relationships to supply goods or services
- ii) the Maximum Indemnity Period is 3 months.

11. Unspecified Suppliers Europe

The premises of **your** suppliers, manufacturers or processors of components, goods or materials situated in the European Union but excluding the premises of:

- a) any supply undertaking from which **you** obtain electricity, gas or water or telecommunications services; or
- b) any supplier more specifically insured by this section.

Provided that:

- i) the limit is £100,000
- ii) **we** will not be liable under this extension for loss other than caused by fire, lightning, aircraft and explosion.

For the purpose of this extension the Maximum Indemnity Period is 3 months.

12. Virus Seek and Destroy Costs

We will indemnify **you** in respect of reasonable additional expenditure necessarily incurred by **you** to prevent and minimise the interruption of or interference with the work normally carried out by or on Computer Equipment to locate and remove a detectable **virus or similar mechanism** contained in such Computer Equipment or data storage materials.

The limit is £25,000 any one occurrence.

Special Provisions Applicable to the Whole of Section 3

1. Automatic Reinstatement of Sum Insured

In the absence of written notice from **you** or **us** to the contrary **our** liability will not stand reduced by the amount of any loss. **You** undertake to pay the appropriate additional premium for such automatic reinstatement of cover.

2. Premium Adjustment Clause

The first and annual premiums in respect of each of items 1, 2 and 3 if insured are provisional and are based on the Estimated Gross Profit, Estimated Gross Revenue and Estimated Rent Receivable respectively.

You will provide **us** not later than 6 months after the expiry of each period of insurance a declaration confirmed by **your** auditors of the Gross Profit, Gross Revenue or Rent Receivable as applicable earned during the financial year most nearly concurrent with the period of insurance.

If any Incident has occurred giving rise to a claim for loss of Gross Profit, Gross Revenue or Rent Receivable the above mentioned declaration will be increased by **us** for the purpose of premium adjustment by the amount by which the Gross Profit, Gross Revenue or Rent Receivable was reduced during the financial year solely in consequence of the Incident.

If the declaration (adjusted as provided above and proportionately increased where the maximum indemnity period exceeds 12 months):

- a) is less than the Estimated Gross Profit, Estimated Gross Revenue or Estimated Rent Receivable for the relative period of insurance **we** will allow a pro rata return of premium paid on the relevant item but not exceeding 50% of such premium
- b) is greater than the Estimated Gross Profit, Estimated Gross Revenue or Estimated Rent Receivable for the relative period of insurance **you** will pay a pro rata addition to the premium paid on the relevant item.

3. Professional Accountants'

Any particulars or details contained in **your** books of account or other business books or documents which may be required by **us** under the Claims Procedure Condition of this policy for the purpose of investigating or verifying any claim hereunder may be produced by professional accountants if at the time they are regularly acting as such for **you** and their reports will be prima facie evidence of the particulars and details to which such reports relate.

We will pay **you** the reasonable charges payable by **you** to **your** professional accountants for producing such particulars or any other proofs, information or evidence as may be required by **us** under the terms of the Claims Procedure Condition of this policy and reporting that such particulars or details are in accordance with **your** books of account or other business books or documents.

Provided always that the sum of the amount payable under this clause and the amount otherwise payable under this section will in no case exceed **our** liability as stated.

4. Renewal

You will prior to each renewal provide **us** with the Estimated Gross Profit, Estimated Gross Revenue or Estimated Rent Receivable applicable to items 1, 2 and 3 respectively if insured for the financial year most nearly concurrent with the ensuing year of insurance.

5. Value Added Tax

To extent that **you** are accountable to the tax authorities for Value Added Tax all terms in this section will be exclusive of such tax.

Exclusions Applicable to Section 3 Arising from Loss or Damage to Property Insured under Section 1 Sub-Section 1 a)

In respect of claims resulting from **damage** to property insured under Sub-Section 1 a) of section 1 of this policy section 3 does not cover **business interruption** caused by or consisting of:

1. Intentional Acts, Gradually Developing and Experiments

- a) **your** intentional act or wilful neglect
- b) gradually developing defects, cracks, flaws or fractures
- c) experiments involving the imposition of any abnormal conditions on the property insured

2. Light Sources and Film Video

damage to:

- a) light sources and other expendable parts unless accompanied by other **damage** insured hereby
- b) film, video and sound recording tape while contained within any camera, sound or video recording equipment or while undergoing any form of processing
- c) film, video and sound recording tape which is damaged at custom points as a result of exposure by surveillance machines

3. Packing and Preparation

damage caused by insufficiency or unsuitability of packing or preparation of the property insured

4. Unaccountable Losses

unaccountable losses discovered on the occasion of stock or inventory checks.

Exclusions Applicable to Section 3 Arising from Loss or Damage to Property Insured under Section 1 Sub-Section 1 b)

In respect of claims resulting from **damage** to property insured under Sub-Section 1 b) of section 1 of this policy section 3 does not cover **business interruption**:

1. Electrical Damage

caused by or consisting of short circuit or other electrical damage or disturbance or failure but this exclusion will not apply to any subsequent **business interruption** which itself is caused by fire or explosion

2. Excluded Property

in respect of:

- a) camera, camera equipment, sound and lighting equipment, grip equipment, portable electrical equipment and generators
- b) animals
- c) currency, money and other negotiable instruments, credit cards, passports, deeds, letters of credit, travel tickets
- d) permanent buildings or structure unless specifically constructed in respect of a declared **production**
- e) aircraft, other mechanically propelled vehicles or conveyances unless full details have been submitted to and accepted by **us**
- f) film, tape and digital media unless used as a prop in respect of an insured **production**

3. Mechanical or Electrical Breakdown, Cleaning, Repairing, Atmospheric Conditions, Vermin and Moth

caused by or consisting of mechanical or electrical breakdown, wear, tear, gradual deterioration, the process of cleaning, repairing or restoring any article, the action of light or atmosphere conditions, vermin and moth

4. Property Being Worked Upon

in respect of property being worked upon

5. Property in the Open

in respect of property stored in the open caused by rain, sleet, snow or hail

6. Property of a Brittle Nature

caused by or consisting of breakage of property wholly or partly of a brittle nature unless details have been submitted to and accepted by us

7. Unexplained Loss

caused by or consisting of shortage of inventory or any unexplained loss or mysterious disappearance

8. Unsuitable Packing

caused by unsuitability or insufficiency of packing.

Exclusions Applicable to Section 3 Arising from Loss or Damage to Property Insured under Section 1 Sub-Section 1 c)

In respect of claims resulting from **damage** to property insured under Sub-Section 1 c) of section 1 of this policy section 3 does not cover **business interruption** caused by or consisting of:

1. Change in Environment, Depreciation, Faulty Design or Workmanship or Inherent Defect, Gradually Operating Causes, Vermin or Insect

- a) atmospheric or climatic conditions or action of light
- b) corrosion, rust, wet or dry rot, shrinkage, evaporation, loss of weight, dampness, marring, scratching, vermin or insects
- c) change in temperature, colour, flavour, texture or finish
- d) depreciation
- e) inherent vice, latent defect, gradual deterioration, wear and tear, frost, its own faulty or defective design, workmanship or materials

2. Cleaning, Processing and Repair

any process of cleaning, dyeing, repairing, restoring, alteration or adjusting

3. Fraud or Dishonesty

theft where any person in **your** employ or service or members of their family are concerned as principal or accessory

4. Mechanical Breakdown

mechanical or electrical breakdown or derangement or its own overrunning, short circuiting or self-heating.

Exclusions Applicable to Sections 2 and 3 Arising from Loss or Damage to Property Insured under Section 2

In respect of Property Insured under Section 2 and claims under Section 3 resulting from **damage** to property insured under Section 2 this policy does not cover:

1. Changes in Environment or Mechanical or Electrical Breakdown

damage or **business interruption** caused by or consisting of:

- a) corrosion, rust, wet or dry rot, shrinkage, evaporation, loss of weight, dampness, marring, scratching, vermin or insects
- b) change in temperature, colour, flavour, texture or finish

damage or **business interruption** consisting of:

- c) joint leakage, failure of welds, cracking, fracturing, collapse or overheating of boilers, economisers, superheaters, pressure vessels or any range of steam and feed piping in connection therewith
- d) mechanical or electrical breakdown or derangement of the particular machine, apparatus or equipment in which such breakdown or derangement originates

but this will not exclude:

- i) such **damage** to Property Insured or **business interruption** not otherwise excluded which itself results from a **defined peril** or from any other accidental **damage**
- ii) subsequent **damage** to Property Insured or **business interruption** which itself results from a cause not otherwise excluded

2. Collapse or Cracking

damage or **business interruption** caused by or consisting of:

- a) in respect of section 2:
damage to a building or structure other than television and radio aerials, satellite dishes and masts caused by its own collapse or cracking
- b) in respect of section 3:
loss resulting from **damage** to a building or structure used by **you** at the **premises** caused by its own collapse or cracking unless resulting from a **defined peril** in so far as it is not otherwise excluded

3. Consequential Loss

In respect of section 2 consequential loss of whatsoever nature

4. Deliberate Act of Service Provider

business interruption caused by the deliberate act of a supply undertaking in withholding the supply of water, gas, electricity, fuel or telecommunications services but this will not exclude:

- a) such **business interruption** not otherwise excluded which itself results from a **defined peril** or from any other accidental **damage**
- b) subsequent **business interruption** which itself results from a cause not otherwise excluded

5. Erasure of Records

business interruption directly or indirectly arising from:

- a) erasure, loss, distortion or corruption of information on computer systems or other records, programs or software caused deliberately by rioters, strikers, locked-out workers, persons taking part in labour disturbances or civil commotion or malicious persons
- b) other erasure, loss, distortion or corruption of information on computer systems or other records programs or software unless resulting from a **defined peril** (including the acts of thieves but excluding the acts of malicious persons which do not involve physical force or violence) in so far as it is not otherwise excluded

6. Excluded Property

- a) in respect of section 2 – unless specifically mentioned as insured:
- b) in respect of section 3 – unless **business interruption** is caused by a **defined peril** in so far as it is not otherwise excluded:
 - i) vehicles licensed for road use including accessories thereon, caravans, trailers, railway locomotives, rolling stock, water craft or aircraft
 - ii) piers, jetties, bridges, culverts or excavations
 - iii) livestock, growing crops or trees

7. Fraud or Dishonesty

damage or **business interruption** caused by or consisting of acts of fraud or dishonesty but this will not exclude such **damage** or **business interruption** if resulting from a cause which is not otherwise excluded

8. Gradually Operating Changes and Faulty Design or Workmanship

- a) inherent vice, latent defect, gradual deterioration, wear and tear, frost, change in water table level, its own faulty or defective design or materials
- b) faulty or defective workmanship, operational error or omission on the part of **you** or any employee
- c) the bursting by steam pressure of a boiler, economiser, vessel, machine or apparatus in which internal pressure is due to steam only and belonging to or under **your** control other than:
 - i) in respect of section 2 – a boiler used for domestic purposes only
 - ii) in respect of section 3 – any boiler or economiser on the **premises** or a boiler used for domestic purposes only

but this will not exclude subsequent **damage** to Property Insured or **business interruption** which itself results from a cause not otherwise excluded

9. Land

- a) in respect of section 2 any **damage** to land
- b) in respect of section 3 **business interruption** caused by **damage** to land

other than for an amount of any loss of less than £25,000 in total in respect of land to a depth of up to one metre **yours** or for which **you** are responsible within the perimeter of the **premises** provided always that such loss is not otherwise excluded

10. Marine Insurance

property which at the time of the happening of **damage** is insured by or would but for the existence of this policy be insured by any marine policy or policies except in respect of any excess beyond the amount which would have been payable under the marine policy or policies had this insurance not been effected

11. Money, Jewellery, Collectables and Other Objets D'art

damage in respect of

- a) money, cheques, stamps, bonds, credit cards or securities of any description
- b) jewellery, precious stones, precious metals, bullion, furs, curiosities, works of art or rare books but this will not exclude such **damage** caused by:
 - i) a **defined peril**
 - ii) theft or attempted theft involving breaking into or out of the buildings of the **premises** by forcible and violent means
 - iii) robbery or attempted robbery committed in the **premises** in so far as it is not otherwise excluded

12. Pollution or Contamination

- a) in respect of section 2:

damage caused by **pollution or contamination** but this will not exclude **damage** to the Property Insured not otherwise excluded caused by:

- i) **pollution or contamination** which itself results from a **defined peril**
- ii) a **defined peril** which itself results from **pollution or contamination**
- iii) sudden, identifiable, unintended and unexpected **pollution or contamination** which itself results from an occurrence other than a **defined peril**
- iv) an occurrence other than a **defined peril** which itself results from sudden, identifiable, unintended and unexpected **pollution or contamination**

- b) in respect of section 3:

loss resulting from **pollution or contamination** but this will not exclude loss resulting from **damage** to property used by **you** at the **premises** for the purpose of the **business** not otherwise excluded, caused by:

- i) **pollution or contamination** at the **premises** which itself results from a **defined peril**
- ii) a **defined peril** hereby insured against which itself results from **pollution or contamination**
- iii) sudden, identifiable, unintended and unexpected **pollution or contamination** at the **premises** which itself results from an occurrence other than a **defined peril**
- iv) an occurrence other than a **defined peril** which itself results from sudden, identifiable, unintended and unexpected **pollution or contamination**

subject to a total limit of indemnity in respect of a) iii) and iv) and b) iii) and iv) in any one period of insurance of £25,000

13. Processes

damage or **business interruption**:

- a) caused by fire resulting from its undergoing any heating process or any process involving the application of heat
- b) other than by fire or explosion resulting from its undergoing any process of production, packing, treatment, testing, commissioning, servicing or repair

14. Property in the Open

damage or **business interruption** caused by or consisting of movable property in the open, fences and gates caused by wind, rain, hail, sleet, snow, flood or dust

15. Property in Transit

damage or **business interruption** caused by or consisting of property in transit other than while at the **premises** or as otherwise specifically insured under sections 2 or 3

16. Property More Specifically Insured

any property more specifically insured by or on behalf of **you**

17. Property or Structures in the Course of Construction, Erection or Alteration

property or structures in course of construction or erection, alteration, addition or improvement and materials or supplies in respect of all such property in course of construction or erection other such **damage** or in respect of such **business interruption** caused by:

- a) a **defined peril**
- b) theft or attempted theft involving breaking into or out of the buildings of the **premises** by forcible and violent means
- c) robbery or attempted robbery committed in the **premises** in so far as it is not otherwise excluded

18. Subsidence, Ground Heave or Landslip and Normal Settlement

damage or **business interruption** caused by or consisting of subsidence or ground heave of any part of the site on which the property stands or landslip:

- a) in respect of land insured hereby unless also affecting a building insured hereby
- b) caused by or consisting of:
 - i) the normal settlement or bedding down of new structures
 - ii) the settlement or movement of made-up ground
 - iii) coastal or river erosion
 - iv) defective design or workmanship or the use of defective materials
- c) which originated prior to the inception of this cover
- d) resulting from:
 - i) demolition, construction, structural alteration or repair of any property
 - ii) groundwork or excavation at the same **premises**

19. Theft

theft or attempted theft:

- a) contributed to or caused by an **employee** unless involving breaking into or out of the buildings of the **premises** by forcible and violent means
- b) arising from any act of dishonesty committed or connived at by the holder for the time being of the Property Insured
- c) to property on or in any garden yard, open place, open sided building nor unless stated in the schedule any outbuilding
- d) to that part of the buildings of the **premises** not occupied by **you**
- e) of the fabric of the buildings

damage to Property Insured caused by or arising directly or indirectly from theft or attempted theft:

- f) of money, cheques, stamps (including National Insurance Stamps), bonds, credit cards or securities of any description
- g) of jewellery, precious stones, precious metals, bullion, furs, curiosities, works of art or rare books

but this will not exclude:

- i) such **damage** or **business interruption** not otherwise excluded which itself results from a **defined peril** or from any other accidental **damage**
- ii) subsequent **damage** or **business interruption** which itself results from a cause not otherwise excluded

20. Unexplained Losses

damage caused by or consisting of or **business interruption** arising directly or indirectly from disappearance, unexplained or inventory shortage, misfiling or misplacing of information

21. Unoccupied Properties

damage or **business interruption** caused by or consisting of:

- a) freezing
 - b) escape of water from any tank, apparatus or pipe
 - c) (other than by fire or explosion) malicious persons not acting on behalf of or in respect of any political organisation
- in respect of any building which is empty or not in use for more than 30 consecutive days.

Section 4 – ‘Money’

Special Definitions

Assured

Any person while engaged in the **business**.

Bodily Injury

Accidental injury not including sickness, disease or any naturally occurring condition or degenerative process or any gradually operating cause.

Business Hours

Any time when **you** or **your** directors or **employees** with responsibility for **money** are in **your** premises for the purpose of **your business**.

Loss of Eye

Permanent and total loss of sight:

- a) in both eyes if the Assured's name is entered on the Register of Blind Persons on the authority of a fully qualified ophthalmic specialist
- b) in one eye if the degree of sight remaining after correction is 3/60 or less on the Snellen Scale.

Loss of Limb

Total loss by physical separation at or above the wrist or ankle or permanent total loss of use of an entire hand, arm, foot or leg.

Usual Occupation

The occupation of the Assured as shown in **your** records at the date of the Bodily Injury.

The Cover

In the event of **damage** to:

- a) **money**
- b) safes or strongrooms which normally contain **money** caused by theft or attempt thereat
- c) any case, bag or waistcoat when such is used for the carriage of **money**
- d) **your** franking machines or for which **you** are responsible caused by theft or attempt thereat

occurring anywhere in the World

we will indemnify **you** against such **damage** provided always that **our** liability in respect of any Item insured will not exceed any limit of indemnity stated in the schedule.

Provided always that:

- i) **our** liability in respect of money in transit by post will be limited to £25 per packet while in transit by unregistered post
- ii) whenever the office, room or area in which a safe or strongroom containing **money** is situated becomes unattended:
 - 1) such safe or strongroom is securely locked; and
 - 2) all keys to such safe or strongroom are removed from the premises or kept on **your** person or an authorised **employee**
- iii) **you** will keep a complete account of **money** in transit and on the premises and will deposit such record in a secure place excluding in a safe or strongroom containing the **money**.

Special Exclusions

This section does not cover:

1. **Amusement or Vending Machine**
damage in excess of £250 from any amusement or vending machine
2. **Clerical Errors**
clerical or accounting errors

3. Dishonest Acts of Employees

damage caused by or due to the dishonest acts of any person in **your** employ or service not discovered within 14 days of the actual occurrence thereof

4. Unattended Vehicle

damage in excess of £250 from any unattended vehicle.

Special Conditions

1. Accompaniment ZF4CP01

This condition is only applicable if so stated in the schedule.

It is a condition precedent to **our** liability in respect of this extension that wherever **money** than as described in item 1 is in transit by **you** or **employees** arrangements for its security will be as follows:

- a) for amounts in excess of £2,000 but not exceeding £5,000 it will be continuously accompanied by at least 2 able bodied adult persons
- b) for amounts in excess of £5,000 but not exceeding £10,000 it will be continuously accompanied by at least 3 able bodied adult persons or contained in a security case approved by **us** and accompanied by at least 2 able bodied adult persons.

2. Protection

Whenever **premises** containing **money** are closed for business or left unattended all security devices provided to protect the **premises** are to be properly fitted and put into full operation.

Personal Accident (Malicious Attack) Extension

We will pay the sum or sums set out in the Table of Benefits shown below if any Assured sustains Bodily Injury by violent, external and visible means as a result of malicious attack by anyone stealing or attempting to steal **money**.

Provided always that:

- a) the **money** is insured under this policy
- b) under benefit 4 **we** will not pay the benefit for more than 104 weeks
- c) **we** will only pay a benefit if death or disablement occurs within 24 months of the date of injury
- d) if **we** are satisfied that disability is permanent benefit 3 will become payable when benefit 4 is exhausted. Except for this **we** will not pay more than one benefit for the same accident
- e) **we** will not pay for more than one benefit for the same period of time
- f) no benefit will be paid until its entire amount has been agreed.

Table of Benefits

If Bodily Injury is the only and direct cause of:

1.	Death	£25,000
2.	Loss of Limb and/or Loss of Eye	£25,000
3.	Permanent total inability to attend to any occupation or business	£25,000
4.	Temporary total inability to attend to the Usual Occupation or business	Normal weekly wage or salary up to £250

If the Assured as a result of a malicious attack or assault or attempt thereat sustains **damage** to clothing or personal effects **we** will indemnify **you** in respect of payment made to the Assured to the extent of the **damage** so sustained but not exceeding in respect of any one such Assured the sum of £250.

Section 5 – Production Insurance – Multimedia and Producers Indemnity

Special Definitions

Gross Production Costs

All costs including overheads chargeable directly to the **production** but excluding:

- a) costs of scenario, story rights, musical rights, dialogue, royalties, scripts, typing, schedules or plans (unless such costs are rendered entirely valueless), all insurance premiums, taxes, completion guarantee fees, interest or finance charges
- b) costs and expenses relating to sets, props, wardrobes or equipment owned by **you** unless specifically designed for a **production** and subsequently rendered entirely valueless
- c) any amount which **you** may be liable to pay to any director or partner of **yours** for salary or other payments incurred by reason of the **production** being interrupted or extended unless the services rendered by such person are in the capacity of producer, director, writer, actor or are directly related to the cost of the **production**
- d) costs of replacement of third party proprietary software
- e) speculative ticket sales.

In the event of abandonment Gross Production Costs will mean the amount of the contract value less:

- i) savings in costs and expenses between the date of abandonment and the anticipated completion date
- ii) the amounts, costs and expenses described in a), b), c) and d) above

subject to the contract price having been reflected in **your** estimate of Gross Production Costs.

Property Insured

Raw film or tape stock, exposed film (developed or undeveloped), videotape (including time coded tapes and off line copies), matrices, lavenders, positives, inter-positives, working prints, cutting copies, fine grain prints, transparencies, cels, artwork and drawings and computer/digital media of all types (excluding third party proprietary software) sound tracks and tapes used in connection therewith **your** property or for which **you** are responsible.

The Cover

We will indemnify **you** for:

- a) any net increase in the Gross Production Costs necessarily incurred by **you** in completion of the **production** so far as reasonably practicable in the manner originally intended; and
- b) the amount of the Gross Production Costs expended prior to the **production** being unavoidably interrupted, postponed, cancelled or abandoned with **our** prior written consent; and
- c) reasonable additional expenditure necessarily incurred to recompile or restore data or software which has been produced or developed directly in respect of an insured **production**

arising as a result of:

Sub-Section 5 a) Multimedia

damage (including impairment or distortion of image) not otherwise excluded to Property Insured while within the **territorial area** stated in the schedule occurring during the period of insurance.

Sub-Section 5 b) Producers Indemnity

any cause beyond **your** control not otherwise excluded occurring during the period of insurance.

Our maximum liability in respect of any one **production** will not exceed in respect of each of sub-sections 5 a) and 5 b) the sum insured any one **production** as stated in the schedule.

Clauses Applicable to Section 5

5.1 Agency and Talent Costs

In the event of loss of or damage to Property Insured this section includes:

- a) reasonable agency costs (as specified in Item 17(i) of Part two of the APA/IPA/ISBA Production Contract) up to 25% of the Gross Production Costs with a maximum of £250,000 any one **production**; and
- b) talent costs in excess of the declared sum insured for each **production** of up to 25% of the Gross Production Costs but not exceeding £250,000 any one **production** in all where **you** are contractually responsible.

5.2 Archive Material

This section includes the cost of reduplicating or reprinting archive material on loan/hired to **you** in the event of its **damage** provided always that **our** maximum liability will be £10,000 any one loss.

5.3 Automatic Reinstatement

In consideration of this insurance not being reduced by the amount of any loss **you** will pay the appropriate extra premium on the amount of the loss from the date thereof to the date of the expiry of the period of insurance.

5.4 Storage

We will also pay extra expenses sustained as a result of **damage** to Property Insured for a period of 12 months after completion of the edited master unless contractual responsibility exists with the agency to arrange insurance or at the expiration of the period of insurance whichever occurs first.

5.5 Worldwide Cover

The **territorial area** applicable to the failure of any person to appear as a result of death, personal injury or illness prior to that person's arrival at the filming location is **territorial area 3 – worldwide**.

5.6 Virus Seek and Destroy Costs

We will indemnify **you** in respect of reasonable additional expenditure necessarily incurred by **you** to prevent and minimise the interruption of or interference with the work normally carried out by or on Computer Equipment to locate and remove a detectable **Virus or similar mechanism** contained in such Computer Equipment or data storage materials.

For the purpose of this extension the limit is £25,000 any one occurrence.

5.7 Operator Error

We will indemnify **you** under this section in respect of **your** errors of judgement in exposure, lighting, sound recording and **your** selection or use of equipment including its faulty manipulation.

Provided always that:

- a) the cover provided hereby shall not indemnify **you** for loss directly or indirectly caused by or resulting from:
 - i) **your** intentional acts or acts made at **your** direction
 - ii) manipulation of equipment or computer software not in compliance with the instructions or specifications applicable thereto or with accepted standards of industry practice
- b) **our** liability under this section in respect of errors of judgement shall not exceed:
 - i) £50,000 in respect of any one loss
 - ii) £50,000 in respect of all losses occurring in any one period of insurance
- c) **you** will be liable for the first £2,500 in respect of each and every loss and not the amount of any excess otherwise specified in the schedule.

Exclusions Applicable to Sub-Section 5 a)

Sub-Section 5 a) does not cover **damage** to Property Insured or any loss or expense whatsoever or consequential loss:

1. Airport or Customs Checks

directly or indirectly caused by airport or customs security checks or apparatus unless properly labelled and beyond **your** control

2. Programming Errors

occasioned by or happening through:

- a) the costs of rectifying programming errors or design defects in software

- b) in respect of third party proprietary software only programming errors or design defects but this exclusion will not apply to additional expenditure consequent upon erasure, damage, corruption or distortion of other software caused by programming errors or design defects in third party proprietary software

3. **Storage of Computer Media**

in consequence of failure to comply with manufacturer's recommendations relating to storage of computer media

4. **Theft from Vehicles**

occasioned by or happening through theft from any unattended unlocked vehicle

5. **Unfinished Software**

in consequence of the use of software by **you** in respect of which development has not been finalised or which has not passed all testing procedures or which has not been successfully proven.

Exclusions Applicable to Sub-Section 5 b)

Sub-Section 5 b) does not cover:

1. **Animals**

damage or any loss or expense whatsoever or consequential loss directly or indirectly caused by or contributed to by the failure of any animal to perform its intended function in a **production** unless due to death, accidental injury or illness or disease first manifesting itself after the date of engagement for a **production**

2. **Breakdown**

damage or any loss or expense whatsoever or consequential loss directly or indirectly caused by or contributed to by electrical or mechanical breakdown of any aircraft, helicopter, drone/UAV, hovercraft, waterborne vessel, motorcycle, motor vehicle, electrical vehicle or electric powered vehicle, railway locomotive, robot lifting machinery or contractors plant which is intended to appear in the insured **production** unless full details have been agreed by **us**

3. **Currency Fluctuations or Lack of Finance or Support or Insolvency**

damage or any loss or expense whatsoever or consequential loss caused by:

- a) variations in the rate of exchange or stability of any currency
- b) **your** insolvency or insufficient finance whenever or however such insufficiency may occur or lack of support

4. **Excess**

the amount of the **excess**

5. **Failure to Fulfil Contract**

loss or expense or consequential loss occasioned by reason of claims made upon **you** for failure to fulfil any contract

6. **Failure to Fulfil Intended Function**

loss or expense or consequential loss occasioned by or happening through the failure of any videotape, film or recording or any special effect used in its production to fulfil its intended function or create the desired effect

7. **Incapacity**

loss or expense or consequential loss arising from the actual demonstrable incapacity of any person(s) to perform their duties in respect of any **production**:

- a) due to any hazardous act, feat or performance undertaken in respect of an insured **production** unless **we** have specifically agreed to provide such cover
- b) due to venereal disease, AIDS, the illicit taking of drugs or the effects or influence of intoxicating liquor
- c) caused by or contributed to by menstruation, pregnancy, childbirth or conditions pertaining thereto
- d) arising from any illness, injury, disease or condition known to or which was manifest to **you** or the person at the time of engagement.

In addition **we** will not be liable under this section for loss or expense or consequential loss in respect of any **production** affected by any person(s):

- i) who at the commencement of any insured **production** or at the time of engagement is less than 4 years of age or more than 75 years of age unless details of such persons' involvement has been agreed by **us**
- ii) directly or indirectly affected by mumps, chicken pox, measles, German measles, whooping cough, scarlet fever, tonsillitis or diphtheria if such person(s) are less than 9 years of age

- iii) unable in their opinion or unwilling to perform their duties except where due solely to the:
 - 1) serious illness which will include illness as described in part ii) above affecting person(s) less than 9 years of age
 - 2) serious sudden and unforeseen bodily injury
 - 3) death

of or to that person's mother, father, spouse (including common-law spouse or same sex partner), stepmother, stepfather, grandmother, grandfather, sister, brother, stepsister, stepbrother, child, stepchild (including the child or stepchild of a common-law spouse or same sex partner), grandchild, half-sister or half-brother subject to the aforementioned family member being less than 75 years of age.

For the purpose of this exclusion "serious" shall mean illness or sudden and unforeseen bodily injury which results in a person being detained in hospital as an in-patient

8. Inadequate Performance

loss or expense or consequential loss arising from the inadequate performance of any person(s) affecting a **production** except:

- a) where due solely to the:
 - i) serious illness
 - ii) serious sudden and unforeseen bodily injury
 - iii) death

of that person's mother, father, spouse (including common-law spouse or same sex partner), stepmother, stepfather, grandmother, grandfather, sister, brother, stepsister, stepbrother, child, stepchild (including the child or stepchild of a common-law spouse or same sex partner), grandchild, half-sister or half-brother subject to the aforementioned family member being less than 75 years of age.

For the purpose of this exclusion "serious" shall mean illness or sudden and unforeseen bodily injury which results in a person being detained in hospital as an in-patient

- b) when occasioned by a subsequently diagnosed medically recognised psychiatric injury

9. Programming Errors

- a) the costs of rectifying programming errors or design defects in software
- b) in respect of third party proprietary software only any additional expenditure in consequence of programming errors or design defects but this exclusion will not apply to additional expenditure consequent upon erasure, damage, corruption or distortion of other software caused by programming errors or design defects in third party proprietary software

10. Repair of Material Property and Hire Charges

any claim for:

- a) the cost of repair or replacement of any material property of whatsoever nature including **damage** to exposed or unexposed film negatives prints or sound tapes or videotapes
- b) liability for payment of continuing hire charges under a hire agreement following **damage** to equipment used in respect of an insured **production**

11. Storage of Computer Media

additional expenditure in consequence of failure to comply with manufacturer's recommendations relating to storage of computer media

12. Unfinished Software

additional expenditure in consequence of the use by **you** of software in respect of which development has not been finalised or which has not passed all testing procedures or which has not been successfully proven

13. Weather Conditions

loss or expense or consequential loss occasioned by or happening through cancellation, interruption, postponement or abandonment of filming or recording due to weather conditions resulting in unsuitable photographic or recording conditions

14. Weather conditions and Breakdown in respect of Drones or Unmanned Aerial Vehicles

damage or any loss or expense whatsoever or consequential loss directly or indirectly caused by or contributed to by:

- a) electrical or mechanical breakdown of drones or any similar unmanned aerial vehicles including when used to capture images or recording
- b) any cancellation, interruption, postponement or abandonment of filming due to weather conditions resulting in the inability to fly such drones or unmanned aerial vehicles

15. Royal Family and Head of State

any claim arising directly or indirectly in consequence of the death of any member of a royal family or head of state who has attained the age of seventy (70).

Special Provisions Applicable to Section 5

1. Average

The sum insured by each item is subject to **average**.

2. Full Value Declaration

The sum insured or limit of indemnity will represent to the best of **your** knowledge and belief an accurate estimate of the Gross Production Costs of the **production(s)**.

3. Premium Adjustment

If any part of the premium is calculated on estimates **you** will within 60 days after the expiry of each period of insurance supply details as **we** may require. The premium for such period will be adjusted and the difference paid by or refunded to **you** as the case may be any refund not exceeding 50% of the premium paid.

4. Short Period Only

If in the event of loss insured hereby **you** are found to be in breach of special provision 2 then **you** will be considered **your** own insurer for the difference between the sum insured and the Gross Production Costs and will bear a rateable share of the amount of the loss accordingly.

Special Conditions Applicable to Section 5

1. Arrangements ZF5CP01

Only applicable if stated in the schedule.

It is a condition precedent to **our** liability under this section that:

- a) all travel and filming arrangements including purchase of tickets, reservation of accommodation, receipt of passports, visas, filming permits and consents and required or recommended immunisations are completed prior to departure to the first shoot location of any **production** and that all other necessary and appropriate arrangements have been made for fulfilment of the **production**
- b) the Principal Persons are under contract to complete the insured **production**.

2. Camera Testing ZF5CP02

Only applicable if stated in the schedule.

It is a condition precedent to **our** liability under this section that immediately prior to filming all cameras, lenses, raw film stock and video tape, digital media and associated equipment must be checked to ensure that they are satisfactory for the purpose and manner in which they are intended to be used.

3. Duplicates ZF5CP03

Only applicable if stated in the schedule.

It is a condition precedent to **our** liability under this section that:

- a) no original work, animation, artwork, drawings, prints or offshoots are intentionally destroyed until a protection print and/or duplicate tape and/or disc has been completed
- b) the digital dailies will be backed up and duplicated and will go through a process of assessment for technical acceptability as soon as practicable
- c) the digital dailies will be backed up and duplicated on set as soon as practicable and at regular intervals.

4. Hand Luggage ZF5CP04

Only applicable if stated in the schedule.

It is a condition precedent to **our** liability under this section that all rushes are kept in the possession or control of **you, your** professional representatives or **your employees** at all times and carried in hand luggage throughout the duration of any return air flight from a shoot location unless deemed otherwise by the airline.

5. Unprocessed Negative Film ZF5CP05

You will send unprocessed negative film for processing as soon as reasonably practical but in any event such material will not be accumulated by **you** for more than 5 days or as otherwise agreed by **us**.

Section 6 – Employers' Liability

Special Definitions

Costs and Expenses

- a) Claimants' costs and expenses
- b) costs incurred with **our** written consent in defending any claim for damages
- c) costs incurred with **our** written consent for:
 - i) representation at any coroner's inquest or fatal injury inquiry
 - ii) defending in any court of summary jurisdiction any proceedings in respect of any act or omission relating to any event which may be the subject of indemnity under this section.

Terrorism

- a) Any act, or preparation in respect of action, or threat of action designed to influence the government de jure or de facto of any nation or any political division of any nation, or in pursuit of political, religious, ideological, or similar purposes to intimidate the public or a section of the public of any nation by any person or group(s) of persons whether acting alone or on behalf of or in respect of any organisation(s) or government(s) de jure or de facto, and which:
 - i) involves violence against one or more persons
 - ii) involves damage to property
 - iii) endangers life excluding that of the person committing the action
 - iv) creates a risk to health or safety of the public or a section of the public
 - v) is designed to interfere with or to disrupt an electronic system
- b) any action in controlling, preventing, suppressing, retaliating against, or responding to any act, or preparation in respect of action, or threat of action described in a) above.

The Cover

We will indemnify **you** in respect of all sums which **you** become legally liable to pay as damages in respect of **bodily injury** caused during the period of insurance to any **employee** arising out of and in the course of their employment by **you** in the **business**.

In addition to any claim for damages **we** will pay Costs and Expenses.

Clauses Applicable to Section 6

All the following clauses apply to the Employers' Liability cover and are subject to the following:

- a) **we** will not be liable under these clauses unless **we** have the sole conduct and control of all claims
- b) these clauses will not apply to any liability which is insured under any other policy.

6.1 Corporate Manslaughter and Corporate Homicide Act 2007

We will indemnify **you** in respect of legal costs and expenses incurred with **our** prior written consent in connection with the defence of any criminal proceedings including any appeal against conviction arising from any such proceedings brought in respect of a charge or investigations connected with a charge of corporate manslaughter or corporate homicide under the Corporate Manslaughter and Corporate Homicide Act 2007 or any equivalent legislation in the Isle of Man or the Channel Islands committed or alleged to have been committed during the period of insurance and which relates to any event arising in the course of the **business** involving **bodily injury** which is or may be the subject of indemnity under this section.

Provided always that:

- a) **our** liability under this clause will not exceed £5,000,000 in any one period of insurance. This limit will form part of and not be in addition to the limit of indemnity
- b) this clause will only apply to proceedings brought in Great Britain, Northern Ireland, the Isle of Man or the Channel Islands
- c) **we** must consent in writing to the appointment of any solicitor or counsel who are to act for and on **your** behalf
- d) **you** will give **us** immediate notice of any summons or other process served upon **you** which may give rise to proceedings under this clause
- e) in relation to any appeal counsel has advised there are strong prospects of such appeal succeeding

- f) **we** will be under no liability:
 - i) where **you** have committed any deliberate or intentional act or omission giving rise to a corporate manslaughter or corporate homicide charge
 - ii) in respect of fines or penalties of any kind
 - iii) in respect of the defence of any criminal proceedings brought or in an appeal against conviction arising from such proceedings in respect of a breach of the Health and Safety at Work etc. Act 1974 or the Health and Safety at Work (Northern Ireland) Order 1978 or any regulations made thereunder
 - iv) where indemnity for defence costs is available from any other source or provided by any other insurance or where but for the existence of this clause indemnity would have been provided by such other source or insurance
- g) where **we** have already indemnified **you** in respect of legal costs or expenses incurred in the defence of any criminal proceedings arising out of the same cause or occurrence which gave rise to the charge of or investigation connected with corporate manslaughter or corporate homicide under another clause of this section the amount paid under that clause will be taken into account in arriving at **our** liability payable under this clause.

6.2 Court Attendance Expenses

We will pay you the daily rates shown below if any such people are required to attend court as a witness at **our** request:

- a) **you** or **your** partner or director £250
- b) any **employee** £100

6.3 Health and Safety at Work etc. Act 1974

We will also indemnify **you** and at your request any director or **employee** against:

- a) costs and expenses incurred with **our** prior consent
- b) costs awarded against **you** or such director or **employee**

in the defence of any criminal proceedings arising from an alleged breach of the Health and Safety at Work etc. Act 1974 or the Health and Safety at Work (Northern Ireland) Order 1978 occurring during the period of insurance and which relates to any event arising in the course of the **business** involving **bodily injury** which is or may be the subject of indemnity under this section including in any appeal against conviction arising from such proceedings.

Provided always that this will not apply to:

- i) fines or penalties of any kind
- ii) costs in respect of which **you** or any director or **employee** has effected a more specific legal expenses protection or insurance
- iii) proceedings or appeals consequent upon any deliberate act or omission and **you** will immediately repay **us** all costs and expenses paid by **us** prior to any deliberate act or omission being established
- iv) proceedings not related to the health, safety or welfare of an **employee**.

6.4 Indemnity to Other Persons

We will also indemnify at your request:

- a) any director or **employee**
- b) any public or local authority or other principal for whom **you** are or have been carrying out work but only to the extent required under the contract for the work
- c) any **employee** acting as a member of **your** first aid or medical arrangements but excluding medical practitioners in respect of liability for damages and legal costs to any other **employee** resulting from treatment given in connection with any **bodily injury** caused to such person and arising out of and in the course of the employment of such person by **you**
- d) any officer or member of **your** canteen, social, sports or welfare organisations.

6.5 Private Work

This section applies to private work carried out by any **employees** for **you** or any of **your** directors or executives.

6.6 Unsatisfied Court Judgments

If any **employee** or their personal representatives obtains a judgment for damages for **bodily injury** against any company or individual operating from premises within Great Britain, Northern Ireland, the Isle of Man or the Channel Islands and that judgment remains unpaid for more than 6 months after the date of the award **we** will pay at **your** request the amount of any unpaid damages and awarded costs to the **employee** or their personal representatives.

Provided always that:

- a) the **bodily injury**:
 - i) is caused during the period of insurance
 - ii) arises out of and in the course of their employment in the **business**
- b) there is no appeal outstanding.

If any payment is made under this clause the **employee** or their personal representatives will assign the judgment to **us**.

Special Exclusions Applicable to Section 6

This section does not cover

1. **Motor**

liability for which compulsory motor insurance or security is required under road traffic legislation

2. **Work Offshore**

liability for **bodily injury** caused:

- a) on any offshore installation or support or accommodation vessel for any offshore installation
- b) in transit to, from or between any offshore installation support or accommodation vessel for any offshore installation

3. **Work Overseas**

liability in respect of any **bodily injury** caused outside Great Britain, Northern Ireland, the Isle of Man or the Channel Islands but this exclusion will not apply to any **employee** temporarily employed elsewhere provided always that the contract of service or apprenticeship was entered into within Great Britain, Northern Ireland, the Isle of Man or the Channel Islands.

Special Provisions Applicable to Section 6

1. **Limit of Indemnity**

Our liability will not exceed the sum stated in the schedule including all Costs and Expenses (other than any limit otherwise stated) and any limit applies to any claim or series of claims arising from any one cause.

2. **Terrorism Limitation**

The limit of indemnity in respect of any one claim against **you** or by **you** or series of claims against **you** or by **you** arising directly or indirectly from Terrorism will be £5,000,000.

Section 7 – Public and Products Liability

Special Definitions

Clean Up Costs

- a) Testing for or monitoring of **pollution or contamination**
- b) the costs of Remediation required by any Enforcing Authority to a standard reasonably achievable by the methods available at the time that such Remediation commences.

Costs and Expenses

- a) Claimants' costs and expenses which **you** become legally liable to pay
- b) costs incurred with **our** written consent in defending any claim for damages
- c) costs incurred with **our** written consent for:
 - i) representation at any coroner's inquest or fatal injury inquiry
 - ii) defending in any court of summary jurisdiction any proceedings in respect of any act or omission relating to any event which may be the subject of indemnity under this section.

Data

Data of any sort whatever, including without limitation tangible or intangible data, and any programs or software, bandwidth, cryptographic keys, databases, documents, domain names or network addresses or anything similar, files, interfaces, metadata, platforms, processing capability, storage media, transaction gateways, user credentials, websites, or any information whatever.

Enforcing Authority

Any government or statutory authority or body implementing or enforcing environmental protection legislation within Great Britain, Northern Ireland, the Channel Islands and Isle of Man.

Products

Any commodities or goods or any thing including packaging, containers and labels sold, supplied, hired out, constructed, erected, installed, treated, repaired, serviced, processed, stored, handled, transported or disposed of by **you** or on **your** behalf or any structure constructed, erected or installed or contract work executed by **you** or on **your** behalf in the course of the **business**.

Remediation

Remedying the effects of **pollution or contamination** including primary, complementary and compensatory actions as specified in the Environmental Damage (Prevention and Remediation) Regulations 2009.

Territorial Limits

- a) In respect of sub-section 7 a): anywhere within the limits of Great Britain, Northern Ireland, the Channel Islands or the Isle of Man and including work carried out during temporary visits anywhere in the world in connection with the **business** by directors and **employees**.
- b) In respect of sub-section 7 b): anywhere in the world in respect of Products supplied in or from Great Britain, Northern Ireland, the Channel Islands or the Isle of Man.

The Cover

Sub-Section 7 a) – Public Liability

We will indemnify **you** in respect of all sums which **you** may become legally liable to pay as damages in respect of:

- a) accidental **bodily injury** to any person other than an **employee** where such **bodily injury** arises out of and in the course of their employment
 - b) accidental **damage** to material property
 - c) accidental obstruction, accidental trespass, accidental nuisance, accidental interference with pedestrian, road, rail, air or waterborne traffic, accidental invasion of the right of privacy excluding any liability arising under Regulation (EU) 2016/679 (General Data Protection Regulation) or Data Protection Act 2018, or accidental interference with any right of air, light, water or way
 - d) unlawful detention, imprisonment or arrest
- occurring during the period of insurance within the Territorial Limits in respect of the **business**.

We will also pay Costs and Expenses. Costs and Expenses are payable in addition to the limit of indemnity other than in respect of claims made or brought in the United States of America or Canada where the limit of indemnity will be inclusive of Costs and Expenses.

Clauses Applicable to Sub-Section 7 a)

7.A.1 Contingent Motor Liability (Non-Owned Vehicles)

We will also indemnify **you** in respect of **your** legal liability for accidental **bodily injury** to any person or accidental **damage** to property arising out of the use of any motor vehicle not the property of nor provided by **you** and being used in connection with the **business**.

Provided always that **we** will not be liable:

- a) in respect of **damage** to such vehicle or to goods conveyed therein or thereon
- b) for accidental **bodily injury** to any person or accidental **damage** to material property arising while such vehicle is being driven by **you** or by any person who to **your** knowledge does not hold a licence to drive such vehicle unless such person has held and is not disqualified from holding or obtaining such a licence
- c) in respect of liability more specifically insured under any other insurance
- d) in respect of liability arising outside Great Britain, Northern Ireland, the Channel Islands or the Isle of Man.

7.A.2 Data Protection

We will also indemnify **you** for legal costs and expenses incurred with **our** prior consent, and all sums **you** are required to pay as damages to an individual arising from proceedings brought against **you** under:

- a) Sections 168 and 169 of the Data Protection Act 2018
- b) Article 82 of Regulation (EU) 2016/679 (General Data Protection Regulation).

Provided always that:

- i) **we** shall not be liable under this extension for:
 - 1) fines, penalties, liquidated, punitive or exemplary damages
 - 2) the costs of notifying any person regarding loss of personal data
 - 3) the cost of replacing, reinstating, rectifying or erasing any personal data
 - 4) any deliberate or intentional criminal act or omission giving rise to any claim under this extension committed by **you**
- ii) **our** liability under this extension shall not exceed £1,000,000 in any one period of insurance.

7.A.3 Defective Premises Act 1972

We will also indemnify **you** in respect of **your** legal liability under Section 3 of the Defective Premises Act 1972 or Section 5 of the Defective Premises (Northern Ireland) Order 1975 in respect of premises which have been disposed of by **you**.

Provided always that **we** will not be liable under this extension:

- a) for the cost of remedying any defect or alleged defect in the said premises
- b) in respect of liability more specifically insured under any other insurance.

7.A.4 Libel and Slander

We will also indemnify **you** in respect of all sums which **you** may become legally liable to pay as damages in respect of claims made against **you** during the period of insurance arising from any act of libel or slander committed or uttered in good faith by **you** during the period of insurance in the course of the **business**.

Provided always that:

- a) this indemnity will apply solely to **your** in-house and trade publications
- b) **our** liability under this clause will not exceed £250,000 in any one period of insurance.

7.A.5 Personal Liability

At **your** request this section will apply to the personal liability of any:

- a) director or **employee** or any member of the family of such director or **employee** in connection with the **business**
- b) member of sports and social clubs operating in the **business** whilst engaged in club activities.

Provided always that:

- i) this will not apply to liability more specifically insured under any other insurance
- ii) any person indemnified will as if they were **you** fulfil and be subject to the terms and conditions of this policy
- iii) **we** will not be liable under this clause unless **we** have the sole conduct and control of all claims.

Exclusions Applicable to Sub-Section 7 a)

Sub-Section 7 a) does not cover:

1. Motor

liability arising from **your** ownership or possession or use by or on **your** behalf of any mechanically propelled vehicle or mobile plant:

- a) which is licensed for road use
- b) for which compulsory motor insurance or security is required
- c) which is more specifically insured.

Provided always that this exclusion will not apply in respect of:

- i) liability not more specifically insured under any other policy arising during the act of loading or unloading mechanically propelled vehicles or mobile plant or the bringing to or the taking away of a load from such vehicle or such plant
- ii) the use of any mechanically propelled vehicle or mobile plant solely as a tool of trade unless more specifically insured or unless compulsory motor insurance or security is required
- iii) the unauthorised movement on **your** premises or contract site of any mechanically propelled vehicle or mobile plant unless more specifically insured or unless compulsory motor insurance or security is required

2. Products

liability arising from Products after they have ceased to be in **your** custody or control excluding food or beverages for consumption on **your** premises or at any other premises where **you** are carrying on the **business**

3. Property Being Worked on

damage to that part of any property upon which **you** or any servant or agent of **yours** is or has been working where the **damage** is the direct result of such work

4. Property Held in Trust

damage to property belonging to **you** or held in trust by or borrowed, rented, leased or hired for use by **you** but this exclusion will not apply to:

- a) the personal effects including vehicles and their contents of directors, **employees** and visitors
- b) buildings or their contents temporarily occupied by **you** for the purpose of carrying out work therein or thereon
- c) premises or fixtures and fittings therein hired, rented, leased or lent to **you** excluding such **damage** if liability is assumed by **you** under a tenancy or other agreement and would not have attached in the absence of such agreement

5. Property Damage Excess

the first £250 of damages payable for **damage** to material property in respect of any one occurrence or all occurrences of a series arising out of one original cause.

Provided always that **you** will indemnify **us** in respect of any such amount for which **we** have made a payment

6. Vessels and Craft

liability arising from **your** ownership or possession or use by or on **your** behalf of craft designed to travel through air or space, hovercraft or watercraft excluding barges, motor launches and non-powered craft used on inland waterways

7. Excluding Tour Operators Liability

any claim arising in connection with legal liability incurred by **you** arising in connection with the sale or provision of travel or accommodation, holidays, package tours, excursions or business trips or arising from The Package Travel, Package Holidays and Package Tours Regulations 1992 or any similar legislation or Statutory Instrument for the time being in force within the European Union or equivalent legislation.

Sub-Section 7 b) – Products Liability

We will indemnify **you** in respect of all sums which **you** may become legally liable to pay as damages in respect of:

- a) accidental death of or accidental **bodily injury** to any person other than an **employee** where such death or **bodily injury** arises out of and in the course of their employment
- b) accidental **damage** to material property

occurring during the period of insurance within the Territorial Limits and caused by Products.

We will also pay Costs and Expenses. Costs and Expenses are payable in addition to the limit of indemnity other than in respect of claims arising made or brought in the United States of America or Canada where the limit of indemnity will be inclusive of Costs and Expenses.

Exclusions Applicable to Sub-Section 7 b)

Sub-Section 7 b) does not cover:

1. Aircraft Products

liability arising from Products which at the time of the contract of sale or supply are knowingly sold or supplied for use in craft designed to travel through air or space

2. Property in your Custody

liability arising from any Products in **your** custody or control

3. Replacing or rectifying Products

replacing, reinstating, rectifying, recalling or guaranteeing the performance of Products.

Automatic Extensions Applicable to the Whole of Section 7

1. Corporate Manslaughter and Corporate Homicide Act 2007

We will indemnify **you** against legal costs and expenses incurred with **our** prior written consent in the defence of any criminal proceedings including any appeal against conviction arising from such proceedings arising from any such prosecution or investigations connected with a charge of corporate manslaughter or corporate homicide under the Corporate Manslaughter and Corporate Homicide Act 2007 or any equivalent legislation in the Isle of Man or the Channel Islands committed or alleged to have been committed during the period of insurance in the course of the **business** and which relates to any event involving **bodily injury** which is or may be the subject of indemnity under this section.

Provided always that:

- a) **our** liability under this extension will not exceed £5,000,000 in any one period of insurance. This limit will form part of and not be in addition to the limit of indemnity
- b) this extension will only apply to proceedings brought in Great Britain, Northern Ireland, the Channel islands or the Isle of Man
- c) **we** must consent in writing to the appointment of any solicitor or counsel who are to act for and on **your** behalf
- d) **you** will give **us** immediate notice of any summons or other process served upon **you** which may give rise to proceedings under this extension
- e) in relation to any appeal counsel has advised there are strong prospects of such appeal succeeding
- f) **we** will be under no liability:
 - i) where **you** have committed a deliberate or intentional act giving rise to a charge of corporate manslaughter or corporate homicide
 - ii) in respect of fines or penalties of any kind
 - iii) in the defence of any criminal proceedings brought or in an appeal against conviction arising from such proceedings in respect of a breach of:
 - 1) the Health and Safety at Work etc. Act 1974 or any regulations made thereunder
 - 2) the Consumer Protection Act 1987 or any regulations made thereunder
 - 3) the Food Safety Act 1990 or any regulations made thereunder
 - iv) where indemnity for defence costs is available from any other source or provided by any other insurance or where but for the existence of this extension indemnity would have been provided by such other source or insurance

- g) where **we** have already indemnified **you** in respect of legal costs or expenses incurred in the defence of any criminal proceedings arising out of the same cause or occurrence which gave rise to the charge of or investigation connected with corporate manslaughter or corporate homicide under another extension of this section the amount paid under that extension will be taken into account in arriving at **our** liability payable under this extension.

2. Costs of Criminal Proceedings

We will also indemnify **you** and at **your** request any director or **employee** against:

- a) legal costs and expenses incurred with **our** written consent
- b) costs incurred with **our** written consent in the defence of any criminal proceedings brought against **you** or such director or **employee** for an alleged breach of:
 - i) the Health and Safety at Work etc. Act 1974 or the Health and Safety at Work (Northern Ireland) Order 1978
 - ii) Part II of the Consumer Protection Act 1987
 - iii) Part II of the Food Safety Act 1990

occurring during the period of insurance in the **business** and which relates to any event involving **bodily injury** or loss of or **damage** to material property which is or may be the subject of indemnity under this section including legal costs and expenses incurred with **our** prior consent in any appeal against conviction arising from such proceedings.

Provided always that this indemnity will not apply to:

- i) fines or penalties of any kind
- ii) costs in respect of which **you** or any director or **employee** has effected a more specific legal expenses protection or insurance
- iii) proceedings or appeals consequent upon any deliberate act or omission and **you** will immediately repay **us** all costs and expenses paid by **us** prior to any deliberate act or omission being established
- iv) proceedings related to health, safety or welfare of **employees**.

3. Court Attendance Costs

In addition to the limit of indemnity **we** will pay **you** the daily rates stated below if any of these people are required to attend court as a witness at **our** request:

- a) any director or partner £250
- b) any **employee** £100

4. Environmental Clean Up Costs

We will indemnify **you** in respect of all sums including statutory debts that **you** are legally liable to pay in respect of Clean Up Costs arising from environmental damage caused by **pollution or contamination** where such liability arises under an environmental directive, statute or statutory instrument.

Provided always that:

- a) liability arises from **pollution or contamination** caused by a sudden, identifiable, unintended and unexpected incident which takes place in its entirety at a specific time and place during the period of insurance. All **pollution or contamination** which arises out of one incident will be deemed to have occurred at the same time such incident takes place
- b) **our** liability under this extension will not exceed £1,000,000 for any one occurrence and in the aggregate in any one period of insurance and will be the maximum **we** will pay inclusive of all costs and expenses. This limit will form part of and not be in addition to the limit of indemnity stated in the schedule
- c) immediate loss prevention or salvage action is taken and the appropriate authorities are notified
- d) **we** will be under no liability:
 - i) in respect of Clean Up Costs for **damage** to **your** land, premises, watercourse or body of water whether owned, leased, hired, tenanted or otherwise in **your** care, custody or control
 - ii) for **damage** connected with pre-existing contaminated property
 - iii) for **damage** caused by a succession of several events where such individual event would not warrant immediate action
 - iv) in respect of removal of any risk of an adverse effect on human health on **your** land, premises, watercourse or body of water whether owned, leased, hired, tenanted or otherwise in **your** care, custody or control
 - v) in respect of costs in achieving an improvement or alteration in the condition of the land, atmosphere or any watercourse or body of water beyond that required under any relevant and applicable law or statutory enactment at the time Remediation commences

- vi) in respect of costs for prevention of imminent threat of environmental damage where such costs are incurred without there being **pollution or contamination** caused by a sudden, identifiable, unintended and unexpected incident
- vii) for **damage** resulting from an alteration to subterranean stores of groundwater or to flow patterns
- viii) in respect of costs for the reinstatement or reintroduction of flora or fauna
- ix) for **damage** caused deliberately or intentionally by **you** or where you have knowingly deviated from environmental protection rulings or where **you** have knowingly omitted to inspect, maintain or perform necessary repairs to plant or machinery for which **you** are responsible
- x) in respect of fines or penalties of any kind
- xi) for **damage** caused by the ownership or operation on **your** behalf of any mining operations or storage, treatment or disposal of waste or waste products excluding caused by composting, purification or pre-treatment of waste water
- xii) for **damage** which is covered by a more specific insurance policy
- xiii) for **damage** caused by persons aware of the defectiveness or harmfulness of products they have placed on the market or works or other services they have performed
- xiv) for **damage** caused by disease in animals belonging to or kept or sold by **you**.

5. Indemnity to Other Persons including Personal Representatives

In the event of any claim in respect of which **you** would be entitled to receive indemnity under this section being brought or made against:

- a) any director or **employee**
- b) any public or local authority or other principal for whom **you** are or have been carrying out work but only to the extent required by the contract for the work
- c) any officer or member of **your** catering, social, sports or welfare organisations
- d) any **employee** acting as a member of **your** first aid or medical arrangements but excluding medical practitioners in respect of liability for damages and legal costs resulting from treatment given
- e) any office, member or **employee** of **your** security or fire services
- f) any personal representative of **yours** in the event of **your** death

we will indemnify such person if in the case of a)-e) **you** so request against such claim and any costs, charges and expenses in respect thereof.

Provided always that:

- i) such person is not entitled to indemnity under any other insurance
- ii) such person will as though they were **you** observe, fulfil and be subject to the terms and conditions of this policy
- iii) **we** will not be liable under this extension unless **we** have the sole conduct and control of all claims.

6. Joint Liabilities

Where this policy is issued in the joint names of more than one party it will indemnify each party in the same manner as if a separate policy had been issued to each of them.

Special Exclusions Applicable to Section 7

This section does not cover:

1. Asbestos

liability directly or indirectly caused by, contributed to by or arising out of any asbestos, asbestos fibres or any derivatives of asbestos including any product containing any asbestos fibres or derivatives

2. Cyber

liability arising out of any actual (or alleged) unauthorised acts (including malicious acts) which results in access to, disruption of, or any failure of any computer or other equipment or component or system or item which processes, stores, transmits or receives **data**.

This exclusion is not applicable to the indemnity provided by Clause 7.A.2 – Data Protection

3. Foreign Operations

any associated or subsidiary company of **yours** or branch office or representative of **yours** with power of attorney domiciled outside of Great Britain, Northern Ireland, the Channel Islands or the Isle of Man

4. Liquidated or Punitive Damages or Fines

liability in respect of:

- a) liquidated damages or fines or penalties which attaches solely because of a contract or agreement
- b) exemplary or punitive damages awarded by any court of law outside Great Britain, Northern Ireland, the Channel Islands or the Isle of Man

5. Pollution or Contamination

liability in respect of **pollution or contamination** other than caused by a sudden, identifiable, unintended and unexpected incident which takes place in its entirety at a specific time and place during the period of insurance.

All **pollution or contamination** which arises out of one incident will be deemed to have occurred at the time such incident takes place

6. Professional Advice

liability arising out of professional advice given by **you** for a fee or in circumstances where a fee would normally be charged.

Special Provisions Applicable to Section 7

1. Discharge of Liability

We may at any time pay any limit of indemnity after deduction of any sum or sums already paid or any lower amount for which such claim or claims can be settled and then relinquish the conduct and control of and be under no further liability in respect of such claim or claims except for the payment of Costs and Expenses incurred with **our** written consent prior to the date of such payment.

2. Limit of Indemnity

The limit of indemnity stated in the schedule is **our** monetary limit (other than any limit otherwise stated) and applies to any claim or series of claims arising from any one cause except for claims caused by:

- a) Products
- b) **pollution or contamination**

where in respect of each the limit of indemnity applies in the aggregate in any one period of insurance.

Section 8 – Professional Indemnity/Errors and Omissions

Special Definitions

Asbestos Surveys

A management survey or a refurbishment or demolition survey as described in HSG264 published by the Health and Safety Executive in connection with Regulation 4 of the Control of Asbestos Regulations 2006 or any comparable survey or inspection whether of commercial or residential land or property.

Business

The professional services provided in the conduct of the business stated in the schedule.

Business Partner

Any person in business with **you** under the terms of a partnership agreement whether express or implied under legislation.

Circumstance

Incident, occurrence, fact, matter, act or omission that may give rise to a Claim.

Claim

Demand for or an assertion of a right to civil compensation or civil damages or an intimation of an intention to seek such compensation or damages.

Defence Costs

Reasonable costs and expenses necessarily incurred with **our** written consent in the investigation, defence or settlement of any claim or investigation into any circumstance which may be the subject of indemnity under this section.

Employee

Any natural person who is:

- a) under a contract of service or apprenticeship with **you**
- b) self-employed
- c) under a work experience or similar scheme
- d) hired or borrowed by **you** from another employer

and working for **you** in connection with the **business** while under **your** direct control or supervision.

Excess

The first amount of any Claim that is not covered under this section.

Insured

Firm, partnership, unincorporated organisation or the company stated in the schedule as the **insured** and **your** predecessors including:

- a) any current or former Business Partner, director, Member or principal or any person who becomes a Business Partner, director, Member or principal during the period of insurance
- b) any current or former Employee or any person who becomes an Employee during the period of insurance
- c) the personal representative of any Business Partner, director, Member, principal or Employee in the event of their death, incapacity, insolvency or bankruptcy.

Limit of Indemnity

Our maximum liability in respect of any one accident or series of accidents arising out of any one occurrence as stated in the schedule.

Media Material

Any information in the form of words, sounds, numbers, images or graphics in electronic, print or broadcast form but excluding anything contained within computer software.

Member

Any member of **your** limited liability partnership as defined in the Limited Liability Partnerships Act 2000.

Related Entity

Any individual or entity or its subcontractors or assignees:

- a) which wholly or partially own, operate or manage **you**
- b) in which **you** have an ownership interest in excess of 20%
- c) which is controlled, operated or managed by **you**.

Territorial Limits

Worldwide.

Terrorism

- a) Any act, or preparation in respect of action, or threat of action designed to influence the government de jure or de facto of any nation or any political division of any nation, or in pursuit of political, religious, ideological, or similar purposes to intimidate the public or a section of the public of any nation by any person or group(s) of persons whether acting alone or on behalf of or in respect of any organisation(s) or government(s) de jure or de facto, and which:
 - i) involves violence against one or more persons
 - ii) involves damage to property
 - iii) endangers life excluding that of the person committing the action
 - iv) creates a risk to health or safety of the public or a section of the public
 - v) is designed to interfere with or to disrupt an electronic system
- b) any action in controlling, preventing, suppressing, retaliating against, or responding to any act, or preparation in respect of action, or threat of action described in a) above.

The Cover

We will indemnify any Insured in respect of any Claim first made against any Insured during the period of insurance in respect of any civil liability including liability for claimants' costs and expenses arising out of the conduct of the Business within the Territorial Limits.

In addition to the Limit of Indemnity **we** will pay Defence Costs. Defence Costs will not be subject to any Excess.

Where **you** become liable to pay a sum in excess of the amount of indemnity available under this section **we** will pay only the proportion of any Defence Costs that the amount of indemnity available under this section bears to **your** total liability.

Clauses Applicable to Section 8

8.1 Advertising Your Business

We will also indemnify **you** in respect of all sums which **you** become legally liable to pay as damages and claimants' costs and expenses in respect of a Claim first made against **you** and notified to **us** during the period of insurance due to any infringement of intellectual property rights or defamation arising from the advertising of **your** Business within the Territorial Limits.

8.2 Acting Outside Of Authority

We will also indemnify **you** in respect of all sums which **you** become liable to pay for media space or print time.

Provided always that:

- a) such sums cannot be legally recovered from **your** client; and
- b) **you** entered any commitment in good faith in the belief that **you** had your client's authority to do so; and
- c) **you** have taken all reasonable steps to reduce such loss.

8.3 Costs of Proceedings

We will also indemnify **you** against reasonable legal costs and expenses necessarily incurred with **our** prior consent in the defence of any proceedings first made against **you** and notified to **us** during the period of insurance under:

- a) the Bribery Act 2010
- b) the Construction (Design and Management) Regulations 2015
- c) the Corporate Manslaughter and Corporate Homicide Act 2007
- d) the Health and Safety at Work etc Act 1974 or the Health and Safety at Work (Northern Ireland) Order 1978
- e) any statutory or secondary legislation implementing the Council Directive 92/57/EEC or similar legislation enacted elsewhere in the world.

Provided always that:

- i) the proceedings arise out of the conduct of the Business; and
- ii) the circumstances giving rise to such proceedings may otherwise give rise to an indemnity under this section; and
- iii) in **our** reasonable belief the defence of such proceedings would assist in the defence of any Claim against **you**.

Any subsequent or concurrent civil action arising out of proceedings notified hereunder will be deemed to be notified in accordance with Special Condition 1.

For the purpose of this clause the Excess will be £2,500 or the Excess stated in the schedule whichever is the lesser.

Our liability will not exceed £1,000,000 in the aggregate or the Limit of Indemnity in the aggregate stated in the schedule whichever is the lesser during the period of insurance and this limit will form part of and not be in addition to the Limit of Indemnity stated in the schedule.

8.4 Court Attendance Costs

We will also pay **you** the daily rates stated below if any of these people are required to attend court as a witness at **our** request:

- a) any Business Partner, director or Member £500
- b) any Employee £250

Our liability will not exceed £25,000 in the aggregate during the period of insurance and this limit will form part of and not be in addition to the Limit of Indemnity stated in the schedule.

8.5 Defamation or Malicious Fabrication

We will also indemnify **you** in respect of all sums which **you** become legally liable to pay as damages and claimants' costs and expenses in respect of a Claim first made against **you** and notified to **us** during the period of insurance arising out of any defamation or malicious fabrication (including slander of title and goods) committed in the conduct of the Business within the Territorial Limits unless any statement was known or ought reasonably to have been known at the time to have been defamatory, misleading, false or deceptive.

8.6 Distribution

We will also indemnify **you** in respect of all sums which **you** become legally liable to pay as damages and claimants' costs and expenses in respect of a Claim first made against **you** and notified to **us** during the period of insurance arising out of any breach of a distribution agreement or licence committed in the course of the Business within the Territorial Limits.

8.7 Distributors and Purchasers

We will also indemnify **you** in respect of all sums which **you** become legally liable to pay as damages and claimants' costs and expenses in respect of a Claim arising out of the conduct of the Business within the Territorial Limits brought against anyone who has purchased, co-produced or distributed **your** Media Material during the period of insurance such Claim being brought within 3 years of the date the Media Material was purchased or the distribution agreed.

Provided always that the purchaser, co-producer or distributor:

- a) has not caused or contributed to the liability
- b) has advised **you** promptly of the Claim
- c) has not admitted liability or prejudiced the Claim before **we** were notified
- d) agrees that **we** control the defence of the Claim
- e) provides **us** with all the information **we** require to defend the Claim
- f) was advised by **you** of these provisions in a certificate which **we** have issued to confirm cover.

Our liability will not exceed 5 times the Limit of Indemnity stated in the schedule in the aggregate for all Claims arising from each production of Media Material purchased, co-produced or distributed.

8.8 Fee Costs

We may also at **our** discretion pay **your** outstanding fee in circumstances where **your** client has expressed dissatisfaction with **your** work and demonstrates reasonable grounds for such dissatisfaction and subsequent refusal to pay such fee (including amounts **you** are legally obligated to pay subcontractors at the time of the refusal to pay such fee) and threatens to bring a Claim against **you** for a sum greater than the outstanding fee but agrees not to pursue such Claim if **you** agree not to press for **your** outstanding fee.

Our payment of **your** outstanding fee will only be made if **we** believe that this will avoid a Claim for a greater amount. If following this a Claim still arises then the amount paid under this clause will be deducted from the Limit of Indemnity. If **you** eventually recover the outstanding fee or any part thereof then **you** must repay **us** any amount **you** recover less **your** reasonable expenses necessarily incurred in recovering the outstanding fee.

8.9 Infringement of Intellectual Property Rights

We will also indemnify **you** in respect of all sums which **you** become legally liable to pay as damages and claimants' costs and expenses in respect of a Claim first made against **you** and notified to **us** during the period of insurance arising out of any infringement of intellectual property rights including copyright, patent, trademark, music rights, performing rights, title infringement, broadcasting rights or moral rights or any act or passing off committed in the conduct of the Business within the Territorial Limits.

8.10 Loss of Documents

We will also pay the reasonable costs incurred by **you** with **our** consent for the restoration or replacement of all records associated with the Business including computer systems records but excluding negotiable instruments of whatsoever nature held by **you** or for which **you** are legally responsible which have been accidentally lost or damaged. Provided always that any computer systems records are backed up no less frequently than once every 7 days or as otherwise agreed by **us** and are held at a separate location.

Our liability will not exceed £1,000,000 in the aggregate during the period of insurance and this limit will form part of and not be in addition to the Limit of Indemnity stated in the schedule.

8.11 Misuse of Information

We will also indemnify **you** in respect of all sums which **you** become legally liable to pay as damages and claimants' costs and expenses in respect of a Claim first made against **you** and notified to **us** during the period of insurance arising out of a breach of confidence or misuse of any information which is either confidential or subject to statutory restrictions on its use committed in the conduct of the Business within the Territorial Limits.

8.12 Privacy

We will also indemnify **you** in respect of all sums which **you** become legally liable to pay as damages and claimants' costs and expenses in respect of a Claim first made against **you** and notified to **us** during the period of insurance arising out of any infringement of any right to privacy or trespass committed in the conduct of the Business within the Territorial Limits.

8.13 Production of Information

We will also indemnify **you** against any reasonable legal costs and expenses necessarily incurred with **our** prior consent and notified to **us** during the period of insurance in challenging any subpoena or other court proceeding served during the period of insurance requiring **you** to provide documentation or evidence relating to a source of information used in **your** Media Material provided always that in **our** view there is reasonable chance of success.

Our liability will not exceed £100,000 in the aggregate during the period of insurance and this limit will form part of and not be in addition to the Limit of Indemnity stated in the schedule.

8.14 Rectification Costs

We may also at **our** discretion pay any reasonable costs and expenses **you** incur to rectify any problem that **you** but not **your** client become aware of that could result in a Claim provided always that **you** can demonstrate to **our** satisfaction that these costs and expenses are less than the amount of a potential Claim which would have been covered under this policy if the problem were not rectified.

In circumstances where **you** are unable to obtain **our** prior written consent due to time constraints or the problem occurring out of usual office hours or **we** lack sufficiently detailed information to grant **our** consent **we** will pay reasonable costs and expenses.

Provided always that:

- a) **you** can demonstrate to **our** satisfaction that following rectification of a problem **your** client has received the same level and quality of service that they were originally entitled to; and
- b) **you** have spent the minimum amount necessary to rectify any problem; and
- c) **you** notify **us** within 10 working days of the problem being first discovered; and
- d) **you** have given **us** the information and documentation **we** require to support the actions **you** have taken and the additional costs and expenses **you** have incurred.

If notwithstanding the above a Claim still arises then the amount paid under this clause will be deducted from the Limit of Indemnity.

8.15 Representation Costs

We will also cover any reasonable costs and expenses necessarily incurred with **our** written consent for representation at any official examination, enquiry, investigation or other proceedings ordered or commissioned by a body legally empowered to investigate **your** affairs that are first instigated against **you** and notified to **us** during the period of insurance and which may otherwise be the subject of indemnity under this section.

Our liability will not exceed £25,000 in the aggregate during the period of insurance and this limit will form part of and not be in addition to the Limit of Indemnity stated in the schedule.

8.16 Virus Transmission

We will also indemnify **you** for Claims first made against **you** and notified to **us** during the period of insurance arising out of **your** unintentional transmission of program code, programming instruction or any set of instructions intentionally constructed with the ability to damage, interfere with or otherwise adversely affect computer programs, data files or operations whether involving self-replication or not including but not limited to Trojan horses, worms and logic bombs which causes damage to any independent third party provided always that such code, instruction or set of instructions was not created by **you**.

Provided always that **our** liability will not exceed £250,000 in the aggregate during the period of insurance and this limit will form part of and not be in addition to the Limit of Indemnity stated in the schedule.

Special Exclusions Applicable to Section 8

This section does not cover:

1. Asbestos

liability, loss, cost or expense directly or indirectly caused by, contributed to by or arising out of any asbestos, asbestos fibres or any derivatives of asbestos including any product containing any asbestos fibres or derivatives unless arising out of a breach of professional duty due to any negligent act, error or omission committed or alleged to have been committed in the conduct of the Business.

Provided always that:

- a) this section will not cover liability for:
 - i) Asbestos Surveys
 - ii) **bodily injury**, mental injury, sickness, mental anguish, shock or the fear of suffering thereof sustained by any person
- b) **our** liability including Defence Costs will not exceed £1,000,000 in the aggregate or the Limit of Indemnity in the aggregate stated in the schedule whichever is the lesser during the period of insurance and this limit will form part of and not be in addition to the Limit of Indemnity stated in the schedule

2. Bodily Injury and Property Damage

liability for:

- a) **bodily injury**, mental injury, mental anguish or shock sustained by any person excluding emotional distress arising from libel and slander
- b) **damage** to property

unless arising out of a breach of professional duty due to any negligent act, error or omission committed or alleged to have been committed by **you**

3. Claims by Related Entities

any Claim brought by any Insured or any Related Entity unless such Claim emanates from an independent third party

4. Competition, Restraint of Trade or Taxation

liability arising from the breach of any taxation, competition, restraint of trade or antitrust legislation or regulation

5. Competitions and Voting

liability arising out of:

- a) the outcome or operation of any game, promotion, contest or lottery
- b) any telephone or on-line voting

6. Contractual Liability

liability arising from:

- a) any express warranty, guarantee, contractual promise, indemnity, waiver or express agreement given by **you** unless **you** would have been liable even if there had not been any such warranty, guarantee, contractual promise, indemnity, waiver or agreement
- b) any Claim where **your** right of recovery from any third party has been restricted by the terms of any contract entered into by **you**

7. Criminal or Malicious Acts

liability arising out of any criminal, fraudulent or malicious act, error or omission committed by any Insured or on the direction of any Business Partner, director, Member or principal unless:

- a) committed by any Employee which term for the purpose of this clause will not include any principal, Business Partner, director or Member of **yours**; and
- b) there is no reasonable cause for suspicion in relation to such person.

Provided always that:

- i) in the event of a loss being sustained as a result of any criminal, fraudulent or malicious act, error or omission the amount of indemnity under this section will be reduced by an amount equal to the sum of:
 - 1) any monies owed by **you** to any person committing, condoning or contributing to the act or omission
 - 2) any monies held by **you** and belonging to such person; and
- ii) no person committing, condoning or contributing to any criminal, fraudulent or malicious act, error or omission is entitled to an indemnity under this policy

8. Directors and Officers Liability

liability while any Insured is carrying out the duties of:

- a) a director or officer of **you** or any other body corporate
- b) a trustee of any pension fund or any other employee benefit scheme

9. Distributors and Purchasers

liability arising under clause 8.7 where the Claim is made more than 36 months after the commencement of this policy period stated in the Evidence of Insurance Certificate issued by **us** to confirm cover to the relevant purchaser or distributor

10. Employment

liability arising out of:

- a) **bodily injury**, mental injury, sickness, mental anguish or shock of any Business Partner, director, employee, Member, principal or Employee while in the course of their employment with **you**
- b) any obligation owed by **you** as an employer or potential employer to any director or Employee or applicant for employment
- c) any express or implied terms of a partnership agreement or membership agreement

11. Failure to Effect or Maintain Insurance

liability arising out of the advising, requiring, obtaining or maintaining of any form of insurance, suretyship or bond or the failure to do so

12. Failure to Follow Legal Advice

liability arising out of **your** failure to follow legal advice concerning the content of Media Material

13. Failure to Obtain Permission

liability arising out of **your** failure to:

- a) obtain the correct licenses, permissions or visas for locations or shoots
- b) ensure that **you** have obtained all the necessary clearances for any Media Material in the country in which it will be shown

14. Film Stock

liability arising from the use of incorrect raw film stock or video tape

15. Goods and Services

liability arising from any contract or arrangement for the supply to or use by **you** of goods or services

16. Government

liability arising from any Claim or investigation brought by any government body or authority

17. Insolvency

liability arising out of **your** insolvency or bankruptcy. This exclusion will not apply to any Claim or Circumstance that would be covered under this policy but for **your** insolvency or bankruptcy

18. Libel and Slander

liability arising out of any act of libel or slander unless committed or uttered in good faith by any Insured

19. Liquidated or Punitive Damages or Fines

any amount in respect of:

- a) liquidated damages, penalties or fines which attach solely because of a contract or agreement
- b) punitive or exemplary damages

20. Negatives, Films, Prints and Electronic Media

liability arising from **damage** to any negative, exposed or unexposed film, print, library stock or magnetic or electronic media unless it has been duplicated where such duplicate can be used to restore them to their original state

21. Obscenity

liability arising out of any obscenity, blasphemy or pornographic material

22. Patents

liability arising out of the alleged infringement of any patent

23. Pension Liability

liability arising out of the operation or administration of any pension or other employee benefit scheme

24. Pollution or Contamination

liability, loss, cost or expense directly or indirectly caused by, contributed to by or arising out of:

- a) **pollution or contamination** unless arising out of a breach of professional duty due to any negligent act, error or omission committed or alleged to have been committed in the conduct of the Business
- b) any Environmental Audit.

Our liability including Defence Costs will not exceed the Limit of Indemnity in the aggregate during the period of insurance and this limit will form part of and not be in addition to the Limit of Indemnity stated in the schedule

25. Prior Circumstances and Claims

liability arising from:

- a) any Circumstance, fact, matter or occurrence that:
 - i) **you** knew or that in **our** reasonable opinion **you** ought to have known prior to inception of this section which might give rise to a Claim against **you**
 - ii) was notified by **you** under any other insurance policy prior to inception of this section
 - iii) was disclosed or in **our** reasonable opinion ought to have been disclosed on **your** latest proposal to **us**
- b) any Claim made against any Insured prior to inception of this section

26. Products and Buildings

liability arising out of any:

- a) supply, repair, alteration, manufacture, installation or maintenance of goods, materials or products
 - b) construction, repair, installation, erection, removal or demolishing of buildings, building works or physical structures
- by any Insured, subcontractor or any Related Entity

27. Products Harmful to Health

liability arising out of any product that contains tobacco, nicotine, alcohol or any pharmaceutical product which is or becomes harmful, dangerous or hazardous in any way to the health of any person, animal or plant

28. Property and Transport

liability arising out of the ownership, possession or use by **you** or on **your** behalf of any land, building, aircraft, watercraft, or mechanically propelled vehicle

29. Retroactive Date

liability for any Claim arising from the Business provided by **you** prior to the retroactive date stated in the schedule

30. Stunts

liability arising out of any stunt or similar activity during the making or production of Media Material

31. Terrorism

loss, **damage**, consequential loss, cost or expense directly or indirectly caused by, contributed to by, resulting from or arising out of or in connection with Terrorism.

In any action or suit or other proceedings where **we** allege that by reason of this exclusion cover is not provided under this section the burden of proving that cover is provided under this section will be upon **you**

32. Title Infringement (USA)

liability arising out of any title infringement in the United States of America unless a satisfactory title report was first obtained and cleared as satisfactory following legal advice from a qualified lawyer

33. **Trading Losses**

liability arising out of any trading loss or trading debt or **your** liability for VAT or its equivalent

34. **Under-budgeting**

any Claim or Defence Costs arising out of **you** overrunning or exceeding any budget fixed or agreed with any client where **your** neglect, error or omission relates solely to **your** oversight in failing to keep within such budget

35. **USA Regulatory**

any liability arising out of:

- a) any **pollution or contamination** of any kind
- b) any actual or alleged violation of any responsibilities, obligations or duties imposed by the Employee Retirement Income Security Act of 1974 or any amendment thereof
- c) any actual or alleged violation of any provision of the Securities Act of 1933 the Securities Exchange Act of 1934 or any similar federal or state law or any common law relating thereto
- d) any actual or alleged violation of the Racketeer Influenced and Corrupt Organisation Act 18 USC Section 1961 ET SEQ and any amendments thereto or any Rules or Regulations announced thereunder
- e) any actual or alleged violations of any responsibilities, obligations or duties imposed by the Money Laundering Control Act of 1981 or amendment thereof
- f) any actual or alleged violations of any responsibilities, obligations or duties imposed by the Bank Security Act of 1970 and the Right of Financial Privacy Act of 1978 or amendment thereof.

Special Provisions Applicable to Section 8

1. **Discharge of Liability**

We may at any time pay in connection with any Claim the maximum amount payable under this section after deduction of any sum already paid in respect of such Claim or any lower amount for which any Claim can be settled and then relinquish the conduct and control and be under no further liability in respect of the Claim except for the payment of Defence Costs incurred with **our** written consent prior to the date of such payment.

2. **Joint Liabilities**

If the Insured comprise more than one party **we** will indemnify each party as though a separate policy had been issued to each of them provided always that the total amount of indemnity to all such parties will not exceed the amount payable if the Insured comprised only one party.

3. **Limit of Indemnity**

The Limit of Indemnity stated in the schedule is **our** monetary limit (other than any limit otherwise stated) and applies to any one Claim.

All Claims against any one or more of the Insured arising from:

- a) one act or omission
- b) one series of related acts or omissions
- c) the same act or omission in a series of related matters or transactions
- d) similar acts or omissions in omissions in a series of related matters or transactions
- e) one matter or transaction

will be regarded as one Claim. All such Claims will be considered first made on the date upon which the earliest Claim is first made.

4. **Queen's Counsel**

You will not be required to contest any legal proceedings unless a Queen's Counsel or similar authority agreed upon by **you** and **us** advises that on the facts of the case concerned such Claim could be contested with a reasonable prospect of success.

If **you** and **we** cannot agree on the appointment of a Queen's Counsel the chairman of the Bar Council will appoint one.

5. **USA or Canada Courts Jurisdiction**

In respect of any Claims first made against **you** within or to enforce a judgment obtained in the United States of America, Canada or any of their territories or possessions:

- a) **our** liability will not exceed the Limit of Indemnity in the aggregate during the period of insurance and this limit will form part of and not be in addition to the Limit of Indemnity stated in the schedule
- b) the Limit of Indemnity will include Defence Costs
- c) Defence Costs will be subject to any Excess.

Special Conditions Applicable to Section 8

1. Claims Procedures

a) Your Responsibilities

It is agreed that:

- i) on the happening of any Circumstance or on receiving verbal or written notice of any Claim **you** will:
 - 1) as soon as reasonably possible give notice to **us**; and
 - 2) as soon as reasonably possible forward to **us** any Claim, writ or summons issued against any Insured and any notice of prosecution, inquest or fatal inquiry; and
 - 3) at **your** own expense and as soon as reasonably possible supply full details of the Claim in writing to **us** together with any evidence and information that may be reasonably required by **us** for the purpose of investigating or verifying the Claim and keep **us** up to date with any future evidence and information received by **you** or reasonably required by **us**; and
 - 4) in the case of notification of a Circumstance supply full particulars including all material facts, dates and persons involved and the reasons for anticipating that it is by definition a Circumstance
- ii) no settlement, admission of liability, payment or promise of payment will be made to a third party without **our** written consent.

b) Our Rights

We will:

- i) be entitled to conduct the defence or settlement of any Claim made against any Insured and they will give all assistance as may be reasonably required by **us**; and
- ii) be entitled to appoint legal counsel; and
- iii) be entitled to take the benefit of any rights of any Insured against any other party before or after any Insured has received indemnification under this section and they will give all assistance as may be reasonably required by **us**; and
- iv) treat any Circumstance notified during the period of insurance which subsequently gives rise to a Claim after the period of insurance as a Claim first made during the period of insurance.

c) Prejudice

Where in **our** opinion **you** have prejudiced the handling of or the settlement of any Claim the amount payable in respect of such Claim including Defence Costs will be reduced to such an amount as in **our** opinion would have been payable in the absence of such prejudice.

2. Other Insurances

If at the time of any occurrence giving rise to a Claim there is any other insurance effected by or on behalf of **you** providing an indemnity in respect of such Claim **our** liability will be limited to its rateable proportion. If any other insurance is subject to any provision whereby it is excluded from ranking concurrently with this policy in whole or in part or from contributing proportionally **our** liability under this section will be limited to any excess beyond the amount which would be payable under such other insurance had this policy not been effected.

3. Sole Agent

It is agreed that:

- a) if more than one person, company or entity forms **you** the person, company or entity set out as **you** in the schedule will act for itself and be deemed to act as sole agent for every other person, company or entity forming part of **you** and all Insured Persons, companies or entities are deemed to have consented and agreed that rights of action under this policy are not assignable except with **our** prior written consent
- b) **you** have the sole right to file notice or proof of loss or make a claim, adjust, receive or enforce payment of any loss
- c) payment of any loss to **you** will fully release **us** in respect of such loss. If **we** agree to make payment to an Insured excluding **you** such payment will be deemed to have been made to **you**
- d) **you** have the sole right to bring legal proceedings arising under or in respect of this section
- e) knowledge possessed or discovery made by any person, company or entity forming part of **you** or by any Business Partner, director, Member or officer, departmental head or other senior manager or the equivalent thereof will be deemed to constitute knowledge possessed or discovery made by all other persons, companies or other entities forming part of **you**.

Section 9 – Personal Accident and Business Travel

Special Definitions

Annual Salary

The total annual gross salary including overtime and bonuses, but excluding commission payments (unless specifically agreed otherwise) payable by **you** to the Insured Person at the date Bodily Injury is sustained.

Overtime and bonus payments will be calculated on the average payments made during the twelve months immediately prior to the date Bodily Injury is sustained. Cover is only provided where overtime and bonus estimates were included in declarations to **us**.

Benefit Period

The total period (not necessarily consecutive) for which benefits for Temporary Total Disablement and/or Temporary Partial Disablement are payable in respect of any one loss to an Insured Person.

Where an Insured Person is employed by **you** on a fixed period contract the benefit period will cease at expiry of the contract or as defined in the schedule whichever is earlier.

Bodily Injury

An identifiable physical injury caused by an Event.

Catastrophic Injury

A Bodily Injury that results in Hemiplegia, Paraplegia, Quadriplegia, Triplegia, the amputation of an upper or lower limb at or above the wrist or ankle, an acquired brain injury or severe burns that permanently prevents an Insured Person from returning to their pre-accident employment.

In respect of any one Insured Person a benefit will not be payable under Sub-Section 9 A. Benefit 2. if Sub-Section 9 A. Additional cover 1 is claimed for, and vice versa.

Cancellation or Curtailment Limit

The maximum amount for which **we** can be held liable in respect of all claims under Sub-Section 9 F for loss and expense arising out of any one Event.

Channel Islands

Jersey, Guernsey, Alderney, Sark, Herm, Jethou and Brecqhou.

Child

Any child of an Insured Person who is unmarried and dependant and under 18 years of age or under 25 years of age if in full time education.

Consultants' Costs

Reasonable fees and expenses of **our** chosen consultants necessarily incurred in response to a Kidnap.

Conveyance

An aircraft, ship, train, coach or similar means of transport which operates under a scheduled published timetable.

Corpore

One of the providers on **our** behalf of catastrophic injury rehabilitation services. Please note that these services are supplied by third parties who are contracted to **us**.

Country of Permanent Residence

The country where an Insured Person resides indefinitely or where an Insured Person has the intent to reside indefinitely.

For the purpose of this definition the Channel Islands as a single group of territories, the Isle of Man and the United Kingdom will each be treated as separate and distinct countries.

Country of Secondment

The country where an Insured Person:

- a) temporarily resides under a contract of employment with **you**
- b) undertakes an activity on **your** behalf and at **your** request

for more than 12 months and agreed by **us** in a Country of Secondment endorsement attached to and forming part of this policy.

For the purpose of this definition the Channel Islands as a single group of territories, the Isle of Man and the United Kingdom will each be treated as separate and distinct countries.

Deferment Period

The beginning of a period of temporary disablement during which compensation for Temporary Total Disablement or Temporary Partial Disablement will not be payable.

Director

Any person holding the position of director with **you** excluding any non-executive director unless specifically agreed by **us** in writing.

Domestic Staff

Any salaried individual employed by a Director in any of the following roles: nanny, au-pair, maternity nurse, wet-nurse, housekeeper, tutor, personal trainer, or chauffeur.

Electronic Business Equipment

Property owned by **you** and provided to the Insured Person to enable the Insured Person to perform their occupational tasks. These items must be of an electronic nature and cannot be items supplied or manufactured by **you**.

Emergency Repatriation Expenses

Reasonable costs including the cost of medical attendants necessarily incurred in transporting the Insured Person to an appropriate hospital or nursing home or to the Country of Permanent Residence or the Country of Secondment if recommended by Zurich Travel Assistance in conjunction with the local attending Medical Practitioner.

Employee

Any person under a contract of service or apprenticeship with **you** or any person **you** have the right to instruct in his or her performance.

Event

A sudden, unforeseen and identifiable occurrence.

All occurrences or series of occurrences arising from or attributable to one source or original cause will be regarded as a single occurrence where they occur within a 20 kilometre radius and within 72 consecutive hours of the one source or original cause.

Event Aggregate Limit

Our maximum liability in respect of all claims for Bodily Injury arising out of any one Event.

Excluded Territories – Kidnap

The countries or parts of countries stated in the schedule.

Gross Weekly Wage

The gross average weekly equivalent of Annual Salary.

Hemiplegia

The permanent paralysis of one lower limb and one upper limb on the same side of the body.

Hijack

The unlawful seizure or taking control of a Conveyance in which the Insured Person is travelling.

Incidental Holiday

Holiday not exceeding the duration of the business component of a Journey or 31 days, whichever is the lesser.

Independent Financial Adviser

An adviser who is authorised and regulated by the Financial Conduct Authority or equivalent regulatory authority in the Insured Person's Country of Permanent Residence and who is not the Insured Person, the Partner of the Insured Person, a member of the immediate family of the Insured Person or an Employee.

Insured Person

- a) Any person or category of persons as stated in the schedule
- b) except in respect of Sub-Section 9 A any nominated person in respect of whom **we** have agreed to pay Travel Expenses.

Journey

A business journey not exceeding 12 months in duration authorised by **you** and undertaken by an Insured Person and commencing during the period of insurance.

Kidnap

The unlawful abduction and detention of an Insured Person against their will.

Kidnap Aggregate Limit

Our maximum liability during any one period of insurance in respect of Ransom and Consultants' Costs.

Legal Expenses

- a) Any reasonable fees, expenses and other disbursements necessarily incurred with our written consent by a solicitor, firm of solicitors or any other appropriately qualified person, firm or company appointed by **you** or by the Insured Person including costs and expenses of expert witnesses and any such fees, expenses and other disbursements incurred by **us** in connection with such claims or procedures
- b) any costs for which an Insured Person is legally liable following an award of costs by any court or tribunal and any costs following an out of court settlement made in connection with any claim or legal proceedings.

Life-Threatening Situation

Any situation occurring outside the Insured Person's Country of Permanent Residence or Country of Secondment where Zurich Travel Assistance agree that the Insured Person's life is in danger.

Loss of Limb

- a) In the case of a lower limb loss by permanent physical severance at or above the ankle or permanent total loss of use of an entire leg or foot
- b) in the case of an upper limb loss by permanent physical severance of the entire 4 fingers through or above the metacarpal phalangeal joints or permanent total loss of use of an entire arm or hand.

Loss of Sight

The total loss of sight which will be deemed to have occurred:

- a) in both eyes when the condition is shown to **our** satisfaction to be permanent and without expectation of recovery and the Insured Person's name has been added to the Register of Blind Persons on the authority of a fully qualified ophthalmic specialist
- b) in one eye when the degree of sight remaining after correction is 3/60 or less on the Snellen Scale and **we** are satisfied that the condition is permanent and without expectation of recovery.

Medical Expenses

All reasonable costs necessarily incurred for medical, surgical or other diagnostic or remedial treatment given or prescribed by a qualified Medical Practitioner and all hospital, nursing home or ambulance charges. Dental, optical expenses and routine pregnancy expenses are excluded unless incurred as the result of an emergency.

Medical Practitioner

Any legally qualified medical practitioner other than an Insured Person, a member of the immediate family of an Insured Person or a non-executive director of **you**, a Director or Employee.

Missed Departure

The failure of a Conveyance in which an Insured Person is travelling to reach its destination point at the published expected time of arrival resulting in the Insured Person missing the first Conveyance at the beginning of a Journey which involves travel outside the Insured Person's Country of Permanent Residence or Country of Secondment.

Missed International Connection

The failure of a Conveyance in which an Insured Person is travelling to reach its destination point outside the Insured Person's Country of Permanent Residence or Country of Secondment at the published expected time of arrival resulting in the Insured Person missing an onward connecting Conveyance on which the Insured Person is booked to travel in the course of a Journey.

Money

Current coinage, current bank and currency notes, bankers drafts, bills of exchange, letters of credit, postal and money orders, postal stamps, signed travellers and other cheques, postal and money orders, phone cards, travel tickets, debit/credit cards, charge cards, gift tokens and coupons which belong to or are in the custody and control of the Insured Person on a Journey and are intended for travel, meals, accommodation and personal expenditure only.

Multi-Engined Aircraft Limit

Our maximum liability in respect of all claims for Bodily Injury arising out of any one Event involving the same multi-engined aircraft.

Natural Catastrophe

An Event caused by a natural phenomenon including earthquake, flood, hurricane, landslide, tornado, tsunami, volcanic eruption or wildfire.

Operative Time

The period of time and/or activities for which **you** or an Insured Person are covered under this policy as stated in the schedule.

Operative Time Definitions

24 Hours

At any time during the period of insurance.

Occupational including Commuting

During the period of insurance and whilst:

- a) in pursuit of normal occupational duties on **your** behalf; or
- b) travelling directly between the Insured Person's place of employment and place of residence (permanent or temporary); or
- c) undertaking a Journey with destinations outside the Insured Person's Country of Permanent Residence or Country of Secondment or within an Insured Person's Country of Permanent Residence or Country of Secondment.

Cover under c) above shall commence from the time of leaving the place of residence or the place of employment (whichever occurs last) and continues until arrival back at the place of residence or the place of employment (whichever occurs first).

Occupational excluding Commuting

During the period of insurance and whilst:

- a) in pursuit of normal occupational duties on **your** behalf; or
- b) undertaking a Journey with destinations outside the Insured Person's Country of Permanent Residence or Country of Secondment or within an Insured Person's Country of Permanent Residence or Country of Secondment.

Cover under b) above shall commence from the time of leaving the place of residence or the place of employment (whichever occurs last) and continues until arrival back at the place of residence or the place of employment (whichever occurs first).

Away from Premises including Commuting

During the period of insurance and whilst:

- a) in pursuit of normal occupational duties on **your** behalf away from the usual place of employment of the Insured Person; or
- b) travelling directly between the Insured Person's place of employment and place of residence (permanent or temporary).

Cover under a) above shall commence from the time of leaving the place of residence or the usual place of employment (whichever occurs last) and continues until arrival back at the place of residence or the usual place of employment (whichever occurs first).

Away from Premises excluding Commuting

During the period of insurance and whilst in pursuit of normal occupational duties on **your** behalf away from the usual place of employment of the Insured Person.

Cover shall commence from the time of leaving the place of residence or usual place of employment (whichever occurs last) and continues until arrival back at the place of residence or the usual place of employment (whichever occurs first).

Assault – 24 hours

Assault at any time during the period of insurance where Bodily Injury is a direct result of an unprovoked malicious assault.

Assault – Full Occupational

Assault during the period of insurance and whilst in pursuit of normal occupational duties on behalf of the Insured where Bodily Injury is a direct result of unprovoked malicious assault.

Assault – Money/Goods

Assault during the period of insurance and whilst in pursuit of normal occupational duties on behalf of the Insured where Bodily Injury is a direct result of actual or attempted theft of the Insured's money or goods.

Vehicular – 24 Hours

At any time during the period of insurance and whilst mounting into, travelling in, dismounting from, loading, unloading, (including carrying out emergency roadside repairs and/or emergency re-fuelling), any vehicle owned by, hired by or leased to the Insured or temporary replacement thereof.

Vehicular – Business only

During the period of insurance and whilst mounting into, travelling in, dismounting from, loading, unloading, (including carrying out emergency roadside repairs and emergency re-fuelling), any vehicle owned by, hired by or leased to the Insured or temporary replacement thereof in pursuit of normal occupational duties on behalf of the Insured.

External Journey

During the period of insurance and whilst undertaking a Journey including Incidental Holidays with destinations outside the Insured Person's Country of Permanent Residence or Country of Secondment.

Cover shall commence from the time of leaving the place of residence or the place of employment (whichever occurs last) and continue until arrival back at the place of residence or the place of employment (whichever occurs first).

External and internal journey

During the period of insurance and whilst:

- a) in pursuit of normal occupational duties on **your** behalf; and
- b) undertaking a Journey with destinations outside the Insured Person's Country of Permanent Residence or Country of Secondment or within an Insured Person's Country of Permanent Residence or Country of Secondment.

Cover under b) above shall commence from the time of leaving the place of residence or the place of employment (whichever occurs last) and continues until arrival back at the place of residence or the place of employment (whichever occurs first).

External journey including holiday travel

During the period of insurance and whilst undertaking a Journey including holidays with destinations outside the Insured Person's Country of Permanent Residence or Country of Secondment.

Cover shall commence from the time of leaving the place of residence or the place of employment (whichever occurs last) and continue until arrival back at the place of residence or the place of employment (whichever occurs first).

External and internal Journeys including holidays

During the period of insurance and whilst undertaking a Journey including holidays with destinations:

- a) outside the Insured Person's Country of Permanent Residence or Country of Secondment; or
- b) within an Insured Person's Country of Permanent Residence or Country of Secondment provided such Journey includes one or more aerial flights or an overnight stay.

Cover shall commence from the time of leaving the place of residence or the place of employment (whichever occurs last) and continue until arrival back at the place of residence or the place of employment (whichever occurs first).

Bespoke

Please refer to the schedule.

Other Forms of Aerial Transport Limit

The maximum amount for which we can be held liable in respect of all claims for Bodily Injury arising out of any one Event involving the same aircraft (not being a multi-engined aircraft).

Overseas Medical Expenses

All reasonable costs necessarily incurred for medical, surgical or other diagnostic or remedial treatment given or prescribed by a qualified Medical Practitioner and all hospital, nursing home or ambulance charges outside the Insured Person's Country of Permanent Residence or Country of Secondment. Dental, optical and routine pregnancy expenses are excluded unless incurred as the result of an emergency.

Paraplegia

The permanent and total paralysis of the two (2) lower limbs.

Partner

The spouse, co-habiting partner or any other person recognised as the lawful partner of an Insured Person.

Permanent Total Disablement

- a) In respect of an Insured Person who is an Employee and above 16 years of age and below state retirement age: disablement caused other than by Loss of Limb, Loss of Sight, Total Loss of Hearing or Total Loss of Speech which will in all probability totally prevent the Insured Person from engaging in their Usual Occupation for the remainder of their life.
- b) In respect of an Insured Person who is either:
 - i) not an Employee
 - ii) an Employee who is below 16 years of age or above the state retirement agedisablement caused other than by Loss of Limb, Loss of Sight, Total Loss of Hearing or Total Loss of Speech which will in all probability entirely prevent the Insured Person from engaging in any occupation for the remainder of their life.

Personal Property

Personal goods belonging to the Insured Person or for which they are responsible which are taken by them on a Journey, sent in advance of a Journey or acquired during a Journey excluding Money and Electronic Business Equipment.

Proclaim Care

One of the providers on **our** behalf of catastrophic injury rehabilitation services. Please note that these services are supplied by third parties who are contracted to **us**.

Quadriplegia

The permanent and total paralysis of all four (4) limbs of the body.

Ransom

Money and/or goods or services given or to be given by or on **your** behalf to meet a Kidnap demand.

Security Costs

Reasonable costs necessarily incurred by Zurich Travel Assistance under sub-Section 9 H.

Temporary Partial Disablement

Temporary disablement which prevents the Insured Person from engaging in more than 60% of their Usual Occupation.

Temporary Total Disablement

Temporary disablement which totally prevents the Insured Person from engaging in all elements of their Usual Occupation.

Total Loss of Hearing

Total and permanent loss of hearing.

Total Loss of Speech

Total and permanent loss of speech.

Travel Expenses

All reasonable costs necessarily incurred:

- a) for travel, sustenance and accommodation expenses of up to 2 nominated persons who on medical advice are required to travel to or remain with the Insured Person up to a maximum of £10,000 any one claim
- b) in transporting the Insured Person's body or ashes and Personal Property back to their Country of Permanent Residence or Country of Secondment.

Triplegia

The permanent and total paralysis of three (3) limbs.

United Kingdom

England, Scotland, Wales and Northern Ireland.

Usual Occupation

The main occupation of the Insured Person for which they are suited by education, training and qualifications under a contract of employment with **you**.

War

Armed conflict between nations including forces acting for any international authority whether war be declared or not, invasion, civil war, any attempt to usurp power or any activity arising out of an attempt to participate in military force between nations.

Zurich Assistance

The coordinator on **our** behalf of a range of services in connection with general assistance supported by a 24 hour helpline.

Please note that these services are supplied by specialist third parties who are contracted to **us** and not by Zurich personnel.

Zurich Travel Assistance

The coordinator on **our** behalf of a range of services in connection with medical and security and other travel assistance supported by a 24 hour helpline.

Please note that these services are supplied by third parties who are contracted to **us**.

Sub-Section 9 A – Personal accident

Cover

If an Insured Person sustains Bodily Injury during the Operative Time that within 24 months solely and independently of any other cause results in death or disablement **we** will pay **you** the appropriate benefit stated in the schedule.

In respect of any one Insured Person a benefit will not be payable under more than one of benefits 1, 2, 3a, 3b, 4 and 5. Any benefit payable under benefit 6 or benefit 7 will immediately cease should a benefit under one of benefits 1 to 5 subsequently be payable by **us** to **you**.

In respect of any one Insured Person a benefit will not be payable under Sub-Section 9 A. Benefit 2. if Additional Cover 1 is claimed for, and vice versa.

In respect of an Insured Person under the age of 16 the maximum compensation payable under benefit 1 will be £25,000.

Additional Covers

1. Catastrophic Injury Rehabilitation

Fund Option:

In the event that the Insured Person or their Partner or Child sustains Catastrophic Injury during the Operative Time **we** will provide the Insured Person with access to one of **our** appointed rehabilitation specialists Corpore or Proclaim Care who will provide a range of services covering but not necessarily limited to:

- a) reviewing any available medical notes, liaising with the **Insured Person**, Partner or Child's medical consultants and attending physicians
- b) arranging a meeting with the **Insured Person** and their family
- c) nominating an appropriately qualified medical professional to undertake an immediate needs assessment report
- d) identifying the need for equipment and resources to assist and improve the **Insured Person**, Partner or Child's quality of life and building this into a care plan that is specific to the needs of each **Insured Person**, Partner or Child
- e) identifying the cost of goods and services of the life care plan and the vendors and service providers for each of the recommendations provided.

These recommendations will consider the Insured Person, Partner or Child's degree of residual disability, preferences and lifestyle needs and could include one or a number of the following services up to the maximum amount of the available fund for the Insured Person and a maximum of 50% of the available fund for the Partner or Child:

Counselling, wheelchair provision, accommodation, return to work, transport, training, improved prosthetics, financial advice, nursing support, holidays, independent living, technology, mobility equipment, adapted computer equipment, communication skills, clothing, minimising medical complications, continence, sport, leisure activities and domestic help.

Corpore or Proclaim Care will also assist in identifying what statutory provisions are available and how these can be accessed, assisting the Insured Person, Partner or Child in making application(s).

Provided always that:

- i) the services provided by Corpore or Proclaim Care and the value of the available fund will be in addition to any other benefit for which the **Insured Person**, Partner or Child might be eligible under section 2 – Corporate Personal Accident
- ii) there is no cash alternative to the rehabilitation services provided by this section
- iii) any medical procedures recommended by Corpore or Proclaim Care will be limited to evidence based treatment.

Lump Sum Option:

In the event that the Insured Person or their Partner or Child sustains Catastrophic Injury during the Operative Time **we** will pay the Insured Person up to the sum insured stated in the schedule:

The maximum available to the Insured Person's Partner or Child is limited to 50% of the sum insured stated in the schedule.

2. Childcare costs and domestic staff expenses

In the event of a claim being agreed by **us** for Temporary Total Disablement **we** will indemnify **you** on behalf of the Insured Person for childcare costs and domestic staff expenses up to the maximum weekly amount stated in the schedule for the maximum period stated in the schedule or until the date of return full time to Usual Occupation whichever is the lesser period.

3. Coma benefit

In the event of the continuous unconsciousness of the Insured Person caused solely and independently by Bodily Injury sustained during the Operative Time **we** will pay **you** the amount stated in the schedule per week for each full week of continuous unconsciousness up to a maximum period stated in the schedule.

4. Compassionate Travel

Where up to two relatives or friends on medical advice from a qualified medical practitioner are advised to travel to or remain with an Insured Person who is admitted to hospital as an in-patient as a result of Bodily Injury sustained during the Operative Time **we** will consider those relatives or friends as Insured Persons during the period of such travel or stay with the following benefits applying:

- a) Loss of Limb (one or more)
- b) Loss of Sight (one or both eyes)
- c) Total Loss of Hearing (in both ears)
- d) Total Loss of Speech
- e) Permanent Total Disablement

Up to a maximum amount stated in the schedule resulting from any one Event.

Provided always that such relatives or friends are not included in any other category of Insured Person.

5. Corporate events cover – employees and guests

The Operative Time includes participation by Employees and **your** guests in corporate events including expensed business meals.

Provided that:

- a) the benefit will be restricted to benefits 2, 3a, 3b and 4 of the schedule; and
- b) the amount payable will be £25,000 except where the Employee is an **Insured Person** when the amount payable will be the amount stated in the schedule or £25,000 whichever is the greater.

6. Corporate reputation protection

If an Insured Person sustains Bodily Injury during the Operative Time that within 3 months solely and independently of any other cause results in death, Total Loss of Hearing, Loss of Limb, Loss of Sight or Total Loss of Speech **we** will pay up to the maximum amount stated in the schedule for:

- a) the engagement of image and public relations consultants
- b) the release of information through the media

directly in connection with and within 15 days of such Bodily Injury in order to protect and positively promote **your** image.

Provided that **you** must contact Zurich Assistance as soon as possible where it is **your** intention to use the assistance services provided under this clause.

Assistance:

Corporate Reputation Protection

We will provide via Zurich Assistance internal and external stakeholder communications support, brand rehabilitation and recovery services or any other appropriate public relations support to help **you** to manage a public relations crisis which has resulted from the death, Total Loss of Hearing, Loss of Limb, Loss of Sight or Total Loss of Speech of one or more Insured Persons as provided for under additional cover 5 of this policy.

This support is provided by contacting Zurich Assistance on **+44 (0)1489 868 988**

The maximum amount **we** will pay in respect of any one incident is as per the amount stated in the schedule.

7. Damage to personal property following assault

If an Insured Person sustains loss of or damage to their Personal Property as a result of unprovoked assault during the Operative Time **we** will pay **you** the amount of such loss or damage up to the maximum amount stated in the schedule.

8. Dental injury expenses

If an Insured Person sustains loss of or damage to teeth or fixed dentures during the Operative Time **we** will pay **you** for the cost of necessary dental treatment required within 12 months of the Event giving rise to the loss or damage up to a maximum amount stated in the schedule.

9. Dependants' benefit

If a payment is made under benefit 1 **we** will pay **you** an amount per Child of the percentage stated in the schedule of the amount stated under benefit 1 subject to a maximum stated in the schedule per Child and up to a total of the percentage stated in the schedule of the amount stated under benefit 1 or the amount stated in the schedule whichever is the lesser.

10. Directors Family Personal Accident

At any time during the policy period **we** will provide cover to the Partner, Child(ren), Domestic Staff of Directors or business partners for the following benefits:

- a) Loss of Limb (one or more)
- b) Loss of Sight (one or both eyes)
- c) Total Loss of Hearing (in both ears)
- d) Total Loss of Speech
- e) Permanent Total Disablement.

Cover is provided up to the amount stated in the schedule.

11. Disability assistance

If an Insured Person sustains Bodily Injury during the Operative Time that within 24 months solely and independently of any other cause results in either Hemiplegia, Paraplegia, Quadriplegia or Triplegia **we** will pay **you** up to the amount stated in the schedule for expenses incurred with **our** prior written consent for alterations that are required to the Insured Person's home or car.

Provided that expenses must have been incurred within 12 months of **you** receiving a benefit payment for either Hemiplegia, Paraplegia, Quadriplegia or Triplegia from **us**.

12. Disappearance

If an Insured Person disappears and after a suitable period of time as judged by the appropriate legal authority it is reasonable to believe that the Insured Person's death resulted from Bodily Injury during the Operative Time **we** will pay **you** the amount stated under benefit 1. If it later transpires that the Insured Person has not died any amount paid will be refunded by **you** to **us**.

13. Domestic travel expenses

If an Insured Person sustains Bodily Injury while on a Journey during the Operative Time and requires an in-patient hospital admission within the Insured Person's Country of Permanent Residence or Country of Secondment **we** will pay **you** up to the maximum amount stated in the schedule for all reasonable costs necessarily incurred for:

- a) travel, sustenance and accommodation expenses for up to 2 nominated persons who on medical advice are required to travel to or remain with the Insured Person until the Insured Person's return to the place where the Insured Person permanently resides within the country where they are an in-patient
- b) the return transportation of the Insured Person to the place where the Insured Person permanently resides within the country where they are an in-patient
- c) the transportation of the Insured Person to their final resting place within their Country of Permanent Residence or Country of Secondment in the event of the death of the Insured Person as a result of such Bodily Injury.

14. Employees Family Travel Personal Accident

We will consider as Insured Persons the Partners or Children of Employees accompanying, travelling independently to join, or returning from being with such Employees that are on a Journey or an Incidental Holiday with the following benefits applying:

- a) Loss of Limb (one or more)
- b) Loss of Sight (one or both eyes)
- c) Total Loss of Hearing (in both ears)
- d) Total Loss of Speech
- e) Permanent Total Disablement

up to a maximum stated in the schedule resulting from any one Event.

Provided always that such Partner or Children are not included in any other category of Insured Person.

15. Executor Expenses

In the event that an Insured Person sustains Bodily Injury during the Operative Time that results in death **we** will on the production of an interim death certificate indemnify you up to the sum insured in the schedule for any reasonable expenses necessarily incurred as a direct consequence of the death of the Insured Person which require immediate payment by the executor to the estate of the Insured Person whilst the administration of the estate is being arranged.

16. Exposure

If an Insured Person suffers unavoidable exposure to the elements during the Operative Time that within 24 months solely and independently of any other cause results in death or disablement **we** will pay **you** in accordance with the benefits stated in the schedule.

17. Family Counselling Benefit Following Accidental Death

If during the Operative Time the Insured Person suffers death as the result of Bodily Injury, **we** will pay up to the sum insured in the schedule for the cost of professional psychological counselling treatment for their Partner and/or Child(ren) provided that **we** are made aware of the treatment in writing.

18. Facial scarring

If an Insured Person sustains Bodily Injury during the Operative Time which results in permanent scarring to no less than the percentage stated in the schedule of the facial area **we** will pay **you** the amount stated in the schedule and this benefit will be increased proportionally to the maximum amount stated in the schedule on the basis of actual scarring of the facial area up to the percentage stated in the schedule.

19. Funeral expenses

If a payment is made under benefit 1 **we** will pay **you** up to the maximum amount stated in the schedule for reasonable funeral expenses. **We** will not be liable for more than the Event Aggregate Limit stated in the schedule.

20. Hijack or kidnap

If an Insured Person is the victim of Hijack or Kidnap during the Operative Time the cover provided under this section will remain in force until the Insured Person has returned to their Country of Permanent Residence or Country of Secondment or until a period of 12 months from the date of the Hijack or Kidnap has expired whichever will occur first.

21. Hospitalisation benefit

If an Insured Person is admitted to hospital as an in-patient as a result of Bodily Injury sustained during the Operative Time **we** will pay **you** the amount stated in the schedule for each full week of hospitalisation up to a maximum number of weeks stated in the schedule.

22. Independent Financial and Tax Advice

If an Insured Person sustains a Bodily Injury which results in a claim for the benefits listed below, **we** will pay the Insured Person or their estate upon their request up to the amount stated in the schedule to cover the fees charged by an Independent Financial Adviser who is authorised and regulated by the Financial Conduct Authority, to provide the Insured Person or their estate with professional financial and tax advice.

- a) Accidental Death
- b) Loss of Limb (one or more)
- c) Loss of Sight (one or both eyes)
- d) Total Loss of Hearing (in both ears)
- e) Total Loss of Speech
- f) Permanent Total Disablement.

23. Medical Certificate Expenses

In the event that an Insured Person sustains Bodily Injury that results in them having to obtain a Medical Certificate, **we** will pay **you** for the cost of obtaining the certificate up to a maximum of the sum insured in the schedule.

24. Medical expenses

If an Insured Person incurs Medical Expenses as a result of Bodily Injury sustained during the Operative Time **we** will pay **you** up to the percentage stated in the schedule of the amounts paid under benefits 1 to 7 inclusive or the percentage stated in the schedule of the amounts paid under either benefit 8 or benefit 9 whichever is the greater but not exceeding the amount stated in the schedule.

25. Moving costs

Where an Insured Person sustains Bodily Injury resulting in Permanent Total Disablement and **we** agree to a claim for such disablement **we** will pay **you** on behalf of the Insured Person up to the maximum stated in the schedule for estate agent's fees, stamp duty and removal costs incurred by the Insured Person within 24 months of the Event giving rise to the disablement as a result of which it becomes necessary to move the Insured Person's permanent residence to an alternative permanent residence.

26. Out-patient expenses

If an Insured Person is required to travel to hospital as an out-patient as a result of Bodily Injury sustained during the Operative Time **we** will pay **you** up to the amount stated in the schedule per week for reasonable travel costs necessarily incurred by the Insured Person up to the maximum amount stated in the schedule.

27. Partner Disability Benefit

In the event that the Partner of an Insured Person sustains Bodily Injury and where this results in Hemiplegia, Paraplegia, Quadriplegia or Triplegia **we** will pay **you** up to the amount stated in the schedule.

28. Permanent partial disablement

If an Insured Person sustains permanent partial disablement during the Operative Time **we** will pay **you** the percentages stated in the schedule of the amount payable under benefit 5 for permanent severance or permanent total loss of use of:

- a) one thumb
- b) forefinger
- c) any finger other than forefinger
- d) big toe
- e) any toe other than big toe
- f) shoulder or elbow
- g) wrist, hip knee or ankle
- h) lower jaw by surgical operation.

Provided that:

- i) when an Insured Person suffers more than one form of permanent partial disablement as a result of an Event the percentages from each will be added together but **we** will not pay more than 100% of benefit 5
- ii) any permanent partial disablement not more specifically defined above will be calculated by assessing the disablement relative to the types of disablement mentioned above without reference to the Insured Person's occupation
- iii) if a claim is payable for loss of or loss of use of a whole part of the body a claim for any component part of that part cannot also be made.

29. Personnel replacement expenses

If an Insured Person sustains Bodily Injury resulting within 24 months solely and independently of any other cause in death or Permanent Total Disablement during the Operative Time **we** will pay **you** up to the maximum amount stated in the schedule for reasonable costs necessarily incurred in employing a temporary Employee recruited through a registered recruitment company in order to directly replace the Insured Person up to the maximum period stated in the schedule.

30. Physiotherapy

In the event of a claim being agreed by **us** for Temporary Total Disablement **we** will pay **you** on behalf of the Insured Person for the cost of physiotherapy up to the maximum amount stated in the schedule.

31. Post traumatic stress disorder – terrorism

If an Insured Person directly witnesses an Event amounting to an act of terrorism on a Conveyance other than an aircraft or ship during the Operative Time and without sustaining Bodily Injury suffers post traumatic stress disorder resulting within 6 months of the Event in Temporary Total Disablement **we** will pay **you** the percentage stated in the schedule of the amount payable under benefit 8 but not exceeding the amount stated in the schedule per week for the Benefit Period stated in the schedule.

Provided that this clause will apply only where cover in respect of Temporary Total Disablement is stated in the schedule as operative.

32. Professional Counselling Benefit

If during the Operative Time the Insured Person sustains Bodily Injury, **we** will pay the Insured Person up to the sum insured in the schedule for the reasonable expenses necessarily incurred for professional psychological counselling treatment provided that **we** are made aware of the treatment in writing.

33. Prosthetic Limbs

If **we** make a payment for Loss of Limb(s) (one or more) and/or Loss of Sight (in one or both eyes) **we** will also pay **you** up to a maximum amount stated in the schedule to acquire and have fitted a prosthetic limb, or to replace an existing prosthetic limb, provided it is deemed medically necessary for them to do so.

Where a claim results in more than one prosthetic limb being required an aggregate limit of the amount stated in the schedule multiplied by two (2) will apply.

34. Recruitment Expenses

In the event that an Insured Person sustains Bodily Injury that results in death or Permanent Total Disablement during the Operative Time **we** will pay **you** up to the sum insured stated in the schedule for reasonable expenses necessarily incurred in employing a registered recruitment company to recruit a permanent Employee as a direct replacement for the Insured Person.

35. Rehabilitation support

Where an Insured Person suffers Bodily Injury resulting in disablement for which **we** agree to pay a benefit under this section **we** will at **our** discretion for a maximum period of 12 months from the date of such disablement enlist the services of Zurich Medical Management to:

- a) carry out by telephone an initial medical assessment of the Insured Person in conjunction with the Insured Person's medical advisors and discuss options for beneficial medical, prosthetic and counselling services
- b) provide support to the Insured Person during the recovery period to minimise the effects of their Bodily Injury and to follow the agreed rehabilitation plan and to advise on and coordinate a return to work plan.

Provided that **you** or the Insured Person will bear the cost of any treatment or other services taken up as a result of such support or arrangements offered or made by Zurich Medical Management other than that cost allowed for under clause 21.

36. Retraining expenses – insured person or partner

If **we** make a payment for Permanent Total Disablement **we** will also pay **you** up to the maximum amount stated in the schedule for reasonable expenses necessarily incurred in retraining the Insured Person for an alternative occupation and in the event of the Insured Person being unable to undertake retraining for any alternative occupation **we** will pay **you** up to the maximum amount stated in the schedule for reasonable expenses incurred in retraining the Insured Person's Partner for an new or alternative occupation.

37. Simultaneous death of insured person and partner

Where Bodily Injury results in the death of an Insured Person and their Partner in a single Event and there is a Child **we** will pay **you** the number stated in the schedule times the amount stated under benefit 1 but not more than the amount stated in the schedule.

38. Suicide – recruitment costs

In the event of the death of a Director or Employee as a result of their suicide or the Permanent Total Disablement of a Director or Employee as a result of their attempted suicide **we** will pay **you** up to the maximum amount stated in the schedule for authorised and documented costs incurred in engaging a replacement Director or Employee.

39. Travel to Hospital Expenses

In the event that an Insured Person sustains Bodily Injury that results in Loss of Limb (one or more) or Loss of Sight in both eyes or Loss of Hearing or Loss of Speech or Permanent Total Disablement or permanent partial disablement as insured under additional cover 28 Permanent partial disablement or Temporary Total Disablement or Temporary Partial Disablement **we** will pay **you** up to the sum insured in the schedule for reasonable expenses necessarily incurred for taxi, the services of a chauffeur or other additional travel costs to convey a Partner, Child or parent of the Insured Person from the home of the Insured Person to a hospital where the Insured Person is an in-patient up to a maximum period of 52 weeks.

40. Travel to Work Expenses

In the event that an Insured Person sustains Bodily Injury that results in Loss of Limb(s) (one or more) or Loss of Sight in both eyes or Permanent Total Disablement or Temporary Total Disablement or Temporary Partial Disablement, **we** will pay **you** up to the sum insured in the Personal Accident Schedule for reasonable expenses necessarily incurred for the services of a chauffeur or taxi to convey the Insured Person between their usual place of employment and their home, up to a maximum period of 52 weeks.

41. Visitors Personal Accident

If a lawful visitor suffers Bodily Injury while on any premises or at any site of **yours** that results within 3 months solely and independently of any other cause in their death **we** will pay you the amount stated in the schedule.

Special exclusions

This section does not cover:

1. Excluded causes

any sickness or disease, any naturally occurring or degenerative condition, any gradually operating cause or post traumatic stress disorder other than as a direct result of Bodily Injury or as provided for under additional cover 31 Post-Traumatic Stress Disorder – Terrorism

2. Non-passenger air travel

any loss or expenses arising from an Insured Person engaging in aviation as a pilot of a fixed wing or rotary propelled aircraft

3. Suicide or self-injury

any loss or expenses arising from an Insured Person committing or attempting to commit suicide or intentionally inflicting self-injury other than as provided under additional cover 38 Suicide – recruitment costs.

Sub-Section 9 B – Business travel: overseas medical expenses

Cover

We will pay **you** or the Insured Person for Overseas Medical Expenses and Travel Expenses and Emergency Repatriation Expenses incurred as a direct result of an Insured Person becoming ill or sustaining Bodily Injury while on a Journey during the Operative Time for a period not exceeding 2 years from the date of the Bodily Injury or first diagnosis of the illness up to the sum insured in the schedule.

Provided that **you** or an Insured Person must contact Zurich Travel Assistance as soon as reasonable if illness or Bodily Injury results in the need for in-patient hospital treatment.

Additional Covers

1. Premature childbirth

In the event of the premature birth of a Child to an Insured Person while on a Journey outside of the Insured Person's Country of Permanent Residence or Country of Secondment during the Operative Time **we** will pay **you** up to the sum insured in the schedule for the Overseas Medical Expenses and repatriation expenses actually incurred in respect of the prematurely born Child.

2. Foreign coma benefit

In the event of an Insured Person while on a Journey becoming ill or sustaining Bodily Injury resulting in a state of continuous unconsciousness outside their Country of Permanent Residence or Country of Secondment **we** will pay **you** the amount stated in the schedule for each day of continuous unconsciousness up to the maximum period stated in the schedule.

3. Foreign hospital confinement benefit

In the event of an Insured Person becoming ill or sustaining Bodily Injury while on a Journey outside their Country of Permanent Residence or Country of Secondment resulting in their admission to hospital as an in-patient on the advice of a Medical Practitioner **we** will pay **you** the amount stated in the schedule for each day of confinement to hospital for the maximum period stated in the schedule.

4. Foreign funeral expenses

In the event of the death of an Insured Person while on a Journey **we** will pay up to the maximum amount stated in the schedule for the reasonable cost of funeral expenses necessarily incurred outside the Insured Person's Country of Permanent Residence or Country of Secondment.

5. Search and rescue expenses

Where an Insured Person is reported missing to the appropriate authorities during a Journey **we** will pay **you** on behalf of the Insured Person for costs incurred by recognised rescue authorities in searching for and rescuing the Insured Person up to the maximum amount stated in the schedule per Insured Person provided that **we** will not pay more than the amount stated in the schedule irrespective of the number of Insured Persons involved in one Event.

6. Supplementary hospital expenses

In the event of a valid claim under this section **we** will pay the reasonable costs of hospital in-patient medical charges necessarily incurred within the 3 months immediately following the date of return to the Insured Person's Country of Permanent Residence or Country of Secondment up to the maximum stated in the schedule.

7. United Kingdom repatriation expenses

In the event of an Insured Person becoming ill or sustaining Bodily Injury while on a Journey within the United Kingdom or the Insured Person's Country of Permanent Residence or Country of Secondment and as a direct result requiring hospital treatment as an in-patient **we** will pay **you** for the reasonable costs necessarily incurred of transporting the Insured Person and accompanying medical staff by private ambulance or air ambulance to a hospital local to the Insured Person's home address up to the maximum amount stated in the schedule.

Special exclusions

This section does not cover:

1. Non-passenger air travel

any expense arising from an Insured Person engaging in aviation as a pilot of a fixed wing or rotary propelled aircraft

2. Other insurances

any expense which has been recovered from:

- a) any other insurance policy in **your** name or the Insured Person's name
- b) any national insurance programme which is applicable to the Insured Person

3. Suicide or self-injury

any expense arising from an Insured Person committing or attempting to commit suicide or intentionally inflicting self-injury except the reasonable costs necessarily incurred in transporting the Insured Person's body or ashes back to their Country of Permanent Residence or Country of Secondment

4. Travelling against medical advice

any expense incurred if an Insured Person is travelling or intending to travel against the advice of a Medical Practitioner

5. Travelling for medical treatment or advice

any expense incurred if an Insured Person is travelling or intending to travel for the purpose of obtaining medical treatment or medical advice

6. Unapproved emergency repatriation expenses

any Emergency Repatriation Expenses incurred without the prior consent of Zurich Travel Assistance

7. Unapproved hospital treatment

any hospital treatment provided on an in-patient basis where the Insured Person has not made all reasonable attempts to obtain the prior consent of Zurich Travel Assistance or obtained the consent of Zurich Travel Assistance at the first opportunity after such treatment.

Sub-Section 9 C – Business travel: personal property

Cover

We will pay **you** or the Insured Person up to the sum insured in the schedule in the event of loss of or damage to Personal Property on a Journey during the Operative Time subject to a single article limit for each lost or damaged article of £5,000.

Additional Covers

1. Delayed personal property

We will pay **you** or the Insured Person up to the maximum amount stated in the schedule for any reasonable expenses necessarily incurred in purchasing essential replacement items if while on a Journey during the Operative Time an Insured Person's Personal Property is temporarily lost for more than the number of consecutive hours stated in the schedule during the outward or onward trip of the Journey. Any payment we make will be deducted from the total amount payable under this section if the Personal Property is permanently lost.

2. Loss of keys

We will pay **you** or the Insured Person for the replacement of the lock mechanisms up to the maximum amount stated in the schedule if the keys to the external doors, safes or alarms of the Insured Person's normal place of residence are lost, damaged or stolen while on a Journey during the Operative Time.

3. Loss of Vehicle Key

We will pay **you** or the Insured Person for the replacement of a key to the Insured Person's vehicle up to £500 if the key is lost, damaged or stolen while on a Journey during the Operative Time.

4. Passport or visa loss during a journey

We will pay **you** or the Insured Person up to the maximum amount stated in the schedule for reasonable additional travel and accommodation expenses necessarily incurred including any charges levied by the issuing office for a replacement passport or visa if an Insured Person loses or damages their passport while on a Journey during the Operative Time.

5. Pre-journey loss of passport or visa

We will pay **you** or the Insured Person up to the maximum amount stated in the schedule for reasonable additional travel and accommodation expenses necessarily incurred including any charges levied by the issuing office for a replacement passport or visa if the Insured Person's passport or visa is stolen within the 7 day period immediately prior to the planned commencement of a Journey.

Provided that the Insured Person reports the theft of the passport or visa to the Police or other appropriate authorities and obtains a written loss report from them.

6. Single Article Benefit Extension Option

We will pay for loss of a single article above £5,000, provided that **you** or the Insured Person bears the first 25% of the proportion of single article above £5,000.

This extension is not available to Insured Persons in their Country of Secondment.

Special exclusions

This section does not cover:

1. Changes in environment, moth or vermin, mechanical or electrical failure and process risks

loss or damage due to moth, vermin, wear and tear, atmospheric or climatic conditions or gradual deterioration, mechanical or electrical failure or any process of cleaning, restoring, repairing or alteration

2. Confiscation or detention

loss due to confiscation or detention by customs or any other competent authority

3. Excluded property

loss of or damage to vehicles, their accessories, spare parts or trailers

4. Loss from unattended vehicles

loss of Personal Property from any unattended vehicle unless the Personal Property was out of sight in a glove box or luggage compartment and the vehicle was locked when unattended.

Special provision

1. New for Old

Where **we** agree to replace Personal Property that is lost or beyond repair **we** will pay on the basis of a new item that is substantially the same as the item lost or beyond repair and **we** will not deduct an amount for wear and tear.

Assistance services

We will also provide assistance in replacing lost or stolen tickets, passport or other travel documents and assistance in locating lost or delayed luggage.

Sub-Section 9 D – Business travel: money

Cover

We will pay **you** or the Insured Person up to the sum insured in the schedule in the event of loss of or damage to Money or financial loss suffered as the result of the fraudulent use of credit, debit or charge cards on a Journey during the Operative Time. In respect of Money cover is extended to 120 hours immediately preceding the commencement of a Journey and for 120 hours immediately following its completion.

Conditions Applicable to Extension

1. Locked Storage

Money applicable under this extension must be stored in hotel safes when not required.

2. Whilst in Transit

The Money must be stored in the Insured Persons carry-on baggage whilst in transit.

Exclusion Applicable to Extension

This extension does not cover:

1. Seconddees

Insured Persons in their Country of Secondment.

Special exclusions

This section does not cover:

1. Cash limitation

more than the amount stated in the schedule per Insured Person in respect of loss of cash

2. Confiscation or detention

loss due to confiscation or detention by customs or any other authority

3. Failure to comply with credit, debit or charge card terms and conditions

loss arising from fraudulent use of a credit, debit or charge cards unless the Insured Person has complied where it was reasonably possible with all the terms and conditions under which the card was issued

4. Loss from unattended vehicles

loss of Money from any unattended vehicle unless the Money was out of sight in a glove box or luggage compartment and the vehicle was locked when unattended

5. Money shortages and depreciation

devaluation of currency or shortages due to errors or omissions during monetary transactions.

Assistance services

We will also provide assistance in replacing cash lost or stolen during a Journey.

Provided that:

- a) the value of any cash advanced will not exceed £3,000 and will be deducted from any subsequent claim under this section
- b) where the value of the cash advanced exceeds the amount of any subsequent claim under this section **you** will reimburse **us** the difference between the value of the cash advance and the amount of such claim
- c) where no claim is made the value of the cash advanced will be reimbursed in full by **you** to **us** upon completion of the Journey.

Sub-Section 9 E – Business travel: electronic business equipment

Cover

We will pay you up to the sum insured in the schedule in the event of loss of or damage to Electronic Business Equipment on a Journey during the Operative Time.

Special exclusions

This section does not cover:

- 1. Changes in environment, moth or vermin, mechanical or electrical failure and process risks**
loss or damage due to moth, vermin, wear and tear, atmospheric or climatic conditions or gradual deterioration, mechanical or electrical failure or any process of cleaning, restoring, repairing or alteration
- 2. Confiscation or detention**
loss due to confiscation or detention by customs or any other authority
- 3. Excess**
the first £100 of any loss or damage occurring to Electronic Business Equipment
- 4. Loss from unattended vehicles**
loss of Electronic Business Equipment from any unattended vehicle unless the Electronic Business Equipment was out of sight in a glove box or luggage compartment and the vehicle was locked when unattended
- 5. Other insurances**
loss of or damage to Electronic Business Equipment which is insured under any other insurance policy.

Sub-Section 9 F – Business travel: cancellation, curtailment, rearrangement and replacement expenses

Cover

If during the Operative Time or between the confirmed booking of the Journey and the Operative Time any part of the pre-booked travel arrangements for a Journey are cancelled, curtailed or rearranged as a direct result of any cause outside the control of **you** or the Insured Person **we** will pay **you** or the Insured Person up to the sum insured in the schedule and subject to the Cancellation or Curtailment Limit for:

- a) deposits, advance payments and other charges which have not been and will not be used but which become forfeit or payable under contract or cannot be recovered elsewhere; and
- b) reasonable additional travel and accommodation expenses necessarily incurred; and
- c) the reasonable costs of an Insured Person to returning to attend the funeral of a close relative or business associate in their Country of Permanent Residence or Country of Secondment; and
- d) an Employee to return to their Country of Secondment after having had to leave their Country of Secondment due to a medical emergency or the death of a family member in another country.

Additional Covers

1. Missed international connection and missed departure

We will pay **you** or the Insured Person up to the sum insured in the schedule for the reasonable additional costs of travel, accommodation and subsistence necessarily incurred less any amount recoverable elsewhere if an Insured Person suffers a Missed International Connection or Missed Departure during the Operative Time.

Provided that in respect of Missed International Connection or Missed Departure:

- a) an Insured Person must obtain written confirmation from the relevant travel provider detailing the actual time of arrival of the conveyance at its destination and written confirmation from the connecting operator that the connection has been missed as a result of the late arrival of the Conveyance
- b) an Insured Person must accept an alternative equivalent means of travel if this is offered by the travel provider within the period of delay.

2. Promotional vouchers and awards

We will pay **you** or the Insured Person up to the sum insured in the schedule and subject to the Cancellation or Curtailment Limit in respect of a Journey funded wholly or partially by promotional vouchers or awards which have been redeemed and which are non-refundable if during the Operative Time any part of the pre-booked travel arrangements for such Journey are cancelled, curtailed or rearranged as a direct result of any cause outside the control of **you** or the Insured Person.

3. Replacement expenses

We will pay **you** or the Insured Person up to the sum insured in the schedule for reasonable expenses limited to the cost of an air flight and other essential expenses necessarily incurred in sending a substitute person to complete the original Insured Person's Journey if during the Operative Time any part of the pre-booked travel arrangements for a Journey are cancelled, curtailed or rearranged as a direct result of any cause outside the control of **you** or the Insured Person.

4. Travel delay

If the departure of a Conveyance on which an Insured Person is booked to travel in order to get to their planned destination at the commencement, onward connection or completion of a Journey is delayed due to strike, industrial action, adverse weather conditions or mechanical breakdown **we** will pay the Insured Person the amount stated in the schedule per hour in excess of the first number of hours shown in the schedule delay up to the maximum amount stated in the schedule.

5. Travel delay caused by natural catastrophe

If the departure of a Conveyance on which an Insured Person is booked to travel on in order to get to their planned destination at the commencement, onward connection or completion of a Journey is delayed due to a Natural Catastrophe **we** will pay the Insured Person the amount stated in the schedule in excess of the first 4 hours delay.

Special exclusions

This section does not cover:

- 1. Cancellation before policy inception**
any loss arising from cancellation of pre-booked travel arrangements for a Journey where the cause of the cancellation occurs prior to the period of insurance
- 2. Cancellation or curtailment of an event held by you**
any loss arising from the cancellation or curtailment of an event held by **you** or a subsidiary or parent company of **you**
- 3. Default of transport or accommodation provider or agent**
any expense arising from the default of any provider or their agent of transport or accommodation or any agent acting for **you** or the Insured Person
- 4. Disinclination to travel**
any expense incurred solely as a result of disinclination to travel or to continue the Journey
- 5. Failure to check-in**
the failure of the Insured Person to check in for any Journey according to the itinerary supplied unless due to fortuitous circumstances beyond the control of the Insured Person
- 6. Financial circumstances**
any expense incurred due to **your** or the Insured Person's financial circumstances
- 7. Non-passenger air travel**
any loss or expenses arising from an Insured Person engaging in aviation as a pilot of a fixed wing or rotary propelled aircraft
- 8. Other insurances**
any loss which is insured under any other insurance policy
- 9. Pre-existing circumstances**
any expense due to:
 - a) failure of the means of transport other than disruption of road or rail services by avalanche, landslide, snow or flood
 - b) Natural Catastrophe, strike, labour dispute or mechanical breakdownwhich existed or for which advanced warning had been given prior to the date on which the Journey was booked
- 10. Prior redundancy or termination of employment**
any expense incurred as a result of the Insured Person's redundancy or the termination of their employment more than 31 days prior to a Journey taking place
- 11. Public authority or government regulations**
any expense incurred as a result of regulations made by any public authority or government
- 12. Suicide or self-injury**
any loss or expense arising from an Insured Person committing or attempting to commit suicide or intentionally inflicting self-injury
- 13. Travelling against medical advice or for medical treatment or advice**
any expense incurred if an Insured Person is travelling or intending to travel against the advice of a Medical Practitioner or for the purpose of obtaining medical treatment or medical advice
- 14. Withdrawal from service of aircraft or ship**
any claim for cancellation following delay to an aircraft or ship if the delay is due to withdrawal from service temporarily or permanently on the orders of any port authority or the Civil Aviation Authority or any similar body in any country.

Special provision

1. **Event Limit**

The total amount payable under this section in respect of any one Insured Person arising from any one Event will not exceed the sum insured stated in the schedule.

If the total amount of all claims under this section for loss and expense arising out of any one Event exceeds the Cancellation or Curtailment Limit each individual claim will be proportionately reduced until the total value of all claims does not exceed the Cancellation or Curtailment Limit.

Sub-Section 9 G – Business travel: kidnap, Hijack and Ransom

Cover

We will pay you up to the sum insured in the schedule for Ransom and Consultants' Costs incurred solely and independently as a result of Kidnap occurring on a Journey during the Operative Time and while outside the Insured Person's Country of Permanent Residence or Country of Secondment. Any incident that could give rise to a claim under this section must be notified immediately to Zurich Travel Assistance. Their contact number is **+44 (0)1489 868 888**.

Provided that:

- a) we will not pay for more than the Kidnap Aggregate Limit
- b) in the event of any circumstances that could give rise to a claim under this section you will give notice to Zurich Travel Assistance by the most expeditious means and provide Zurich Travel Assistance with all assistance and information in a timely manner.

Additional Cover

1. Hijack

We will pay the you up to the amount stated in the schedule for each day that an Insured Person is unjustly, forcibly or unlawfully held captive.

Special exclusions

This section does not cover:

1. Claims by parent or guardian

any claim for a Child by its parent or guardian

2. Damages and legal costs

any sums you become legally liable to pay as the result of any legal action for damages including legal costs incurred by you in defence of such action as the result of:

- a) alleged negligence or incompetence in hostage retrieval operations or negotiations following Kidnap
- b) alleged negligence in not preventing Kidnap

3. Excluded territories

any Kidnap which occurs in the Excluded Territories – Kidnap

4. Fraudulent, dishonest or criminal acts

loss due to any fraudulent, dishonest or criminal act committed or attempted by you or any Director, Employee or authorised representative of you including any person who has custody of any ransom monies

5. Prior cancellation or declinature of kidnap insurance

any claim if you or the Insured Person have had kidnap insurance declined or cancelled.

Sub-Section 9 H – Business travel: personal security assistance

Cover

In the event of an Insured Person becoming involved in a Life-Threatening Situation while on a Journey during the Operative Time we will pay **you** up to a maximum amount of £10,000 for Security Costs in extracting the Insured Person from such a situation. Any incident that could give rise to a claim under this section must be notified immediately to Zurich Travel Assistance. Their contact number is +44 (0)1489 868 888.

Special exclusions

This section does not cover:

1. **Dangerous areas**

any costs incurred in a country or part of a country where:

- a) prior to the commencement of the Journey the Foreign and Commonwealth Office or Zurich Travel Assistance issued warnings against all travel to such country or part
- b) after commencement of a Journey warnings to leave or evacuate had been given by the Foreign and Commonwealth Office or Zurich Travel Assistance but such warnings had not been heeded by the Insured Person in a reasonably timely manner

2. **Debt or fraud**

any costs incurred where the Life-Threatening Situation was due to the Insured Person's unpaid debt, or to a fraudulent, dishonest or criminal act committed by you or the Insured Person

3. **Hijack or kidnap**

any claim associated with Hijack or Kidnap

4. **Journey in excess of 30 days**

any claim for an Insured Person while on a Journey in excess of 30 days

5. **Legal liability**

any sums which **you** become legally liable to pay as a result of any legal action for damages including legal costs incurred by **you** in defence of such action arising out of alleged negligence or incompetence in extracting an Insured Person from a Life-Threatening Situation or in not preventing the involvement of an Insured Person in such a situation

6. **Unnecessary exposure to danger**

deliberate exposure of an Insured Person to danger.

Special provisions

1. **Compulsory use of Zurich Travel Assistance**

Any extraction must be organised by Zurich Travel Assistance who will use the most suitable method including if necessary the attendance of a security specialist to accompany the Insured Person.

2. **Immediate contact**

You or an Insured Person must contact Zurich Travel Assistance as soon as possible if a Life-Threatening Situation arises.

3. **Information provision**

You and the Insured Person must provide Zurich Travel Assistance with all information in a timely manner and must not make or attempt to make arrangements without the reasonable agreement of Zurich Travel Assistance.

4. **Reimbursement of costs**

You will reimburse **us** for all costs incurred in the event of security services being provided by Zurich Travel Assistance in good faith to a person that is not an Insured Person.

Sub-Section 9 I – Business travel: political and natural disaster evacuation

Cover

We will pay **you** up to the sum insured in the schedule for the reasonable costs necessarily incurred while an Insured Person is travelling on a Journey during the Operative Time outside their Country of Permanent Residence or Country of Secondment to evacuate the Insured Person to their Country of Permanent Residence or Country of Secondment or the nearest place of safety when:

- a) officials of the country to or in which the Insured Person is travelling on a Journey recommend that certain categories of person including the Insured Person should leave that country for safety reasons
- b) the British Government through its Foreign and Commonwealth Office issues a travel advice for a particular country or region in which the Insured Person is travelling on a Journey recommending that certain categories of person including the Insured Person should leave that country or region
- c) the Insured Person is expelled or declared persona non grata in the country where the Insured Person is travelling on a Journey
- d) the Insured Person's property is seized, confiscated or expropriated during a Journey
- e) a state of emergency has been declared in the country where the Insured Person is travelling on a Journey necessitating immediate evacuation.

Provided that **you** or an Insured Person must contact Zurich Travel Assistance as soon as possible if evacuation becomes necessary.

Additional Cover

1. Accommodation expenses

In the event that the Insured Person is unable to return to their Country of Permanent Residence or Country of Secondment **we** will pay **you** for reasonable accommodation costs necessarily incurred up to the maximum as stated in the schedule per day for the total of the number of days stated in the schedule.

Provided that:

- a) where the Insured Person holds a valid return ticket to their Country of Permanent Residence or Country of Secondment or to another place of safety **we** will only indemnify **you** or the Insured Person for any additional costs necessarily incurred to evacuate the Insured Person
- b) where the Insured Person is entitled to a refund on an unused ticket **we** will be entitled to deduct the value of the unused portion from the indemnity provided to **you** or the Insured Person
- c) in respect of any necessary air flight **we** will indemnify **you** or the Insured Person for the cost of an economy flight fare.

Special exclusions

We will not pay any benefit or provide any assistance in conjunction with Zurich Travel Assistance under this section if:

1. Breach of contract, bond or license

you or the Insured Person fail to honour any contractual obligation, bond or specific performance condition in a license

2. Foreseeable costs

the conditions leading to the Insured Person's departure were in existence prior to the Insured Person entering the country or where such conditions were reasonably foreseeable prior to the Insured Person entering the country on a Journey

3. Missing or invalid documentation

the Insured Person fails to produce or maintain immigration, work, residence or similar visas, permits or other relevant documentation for the country in which a Journey takes place

4. Nationality

the Insured Person is a national of the country in which they are on a Journey

5. Property repossession

property belonging to **you** or the Insured Person is repossessed by a titleholder or other interested party to satisfy any debt, insolvency, financial failure or other financial obligation of **yours** or of the Insured Person

6. Violation of laws or regulations

- a) the Insured Person has committed any:
 - i) act or alleged act which if committed by them in the United Kingdom or Country of Permanent Residence would be a criminal offence
 - ii) fraudulent or criminal act or alleged fraudulent or criminal act alone or in collusion with others in the territory in which a Journey takes place and contravenes the laws of that territory
- b) **you** or the Insured Person have failed properly to procure or maintain immigration, work or residence or similar visas, permits or other relevant documentation
- c) the Insured Person takes part in any anti-government activity or the operations of any security or armed forces.

Sub-Section 9 J – Business travel: legal expenses

Cover

We will pay **you** or the Insured Person up to the sum insured in the schedule for Legal Expenses incurred in the pursuit of a claim by an Insured Person against a third party for damages or compensation in respect of Bodily Injury, death or illness sustained while on a Journey during the Operative Time.

You or the Insured Person will have the right to appoint a suitably qualified legal representative in connection with any claim or legal proceedings including the appointment of expert witnesses.

Our consent to pay Legal Expenses must be obtained in writing. This consent will be given if **you** or the Insured Person can satisfy **us** that:

- a) there are reasonable grounds for pursuing or defending the legal proceedings and it is always more likely than not that the Insured Person will recover damages or obtain any other legal remedy which **we** have agreed or make a successful defence. The decision to grant consent will take into account **your** opinion or that of the Insured Person's appointed representative as well as that of **our** own advisors; and
- b) it is reasonable for Legal Expenses to be provided in a particular case.

Provided that if the Insured Person is successful in the claim any Legal Expenses **we** provide will be reimbursed to **us**.

Special exclusions

This section does not cover:

- 1. Claims eligible for consideration under arbitration schemes or complaints procedures**
any Legal Expenses incurred in the pursuit of any claim against a travel agent, tour operator, insurer or their agents, which are eligible for consideration under an arbitration scheme or complaints procedure
- 2. Claims or legal proceedings by third parties**
any Legal Expenses incurred for the defence of any civil claim or legal proceedings made or brought by a third party against the Insured Person
- 3. Criminal or wilful acts**
any Legal Expenses incurred in connection with any criminal or wilful act
- 4. Fines or penalties**
any fines or penalties
- 5. Late notification**
any claim or circumstance notified more than 24 months after the incident from which the cause of action arose.

Sub-Section 9 K – Business travel: personal liability

Cover

We will pay **you** or the Insured Person up to the sum insured in the schedule for any legal liability incurred by the Insured Person while on a Journey during the Operative Time in respect of:

- a) accidental bodily injury or illness of any person
- b) accidental loss of or damage to the property of any person
- c) any claimant's costs and expenses arising out of a) or b) above which the Insured Person or the Insured Person's representatives are legally liable to pay
- d) any other costs and expenses incurred with **our** prior written consent.

Provided that:

- i) no admission of liability, offer, promise, or payment will be made by **you** or the Insured Person without **our** prior written consent
- ii) **you** will provide **us** with all assistance and information required in defence of a claim under this policy
- iii) **we** or **our** appointed representatives may at **our** discretion decide to take over and conduct the defence or settlement of any claim against **you** or an Insured Person.

Special exclusions

This section does not cover:

- 1. Advice**
liability arising out of the rendering or failure to render advice
- 2. Asbestos related risks**
liability arising out of the actual, alleged or threatened contaminative, pathogenic, toxic or other hazardous properties of asbestos
- 3. Fines or penalties**
any fines or penalties
- 4. Insured person's immediate family**
injury or illness to any member of the Insured Person's immediate family
- 5. More specific insurance**
any damages which should more specifically be claimed under any other contract of insurance in **your** name or that of the Insured Person
- 6. Non-passenger air travel**
any loss or expenses arising from an Insured Person engaging in aviation as a pilot of a fixed wing or rotary propelled aircraft
- 7. Ownership or occupation of land or buildings**
liability arising out of the ownership or occupation of land or buildings
- 8. Property held in trust**
loss of or damage to property belonging to held in trust by or in the custody or control of **you** or the Insured Person, any Employee or any member of the Insured Person's immediate family
- 9. Sexually transmitted infections, AIDS or AIDS related conditions**
any damages resulting from venereal disease, sexually transmitted infections, Acquired Immune Deficiency Syndrome (AIDS) or any AIDS related condition
- 10. Suicide or self-injury**
any loss or expenses arising from an Insured Person committing or attempting to commit suicide or intentionally inflicting self-injury
- 11. Trade, business or profession**
the carrying on of any trade, business or profession
- 12. Vessels and craft**
any injury, illness, loss or damage arising directly or indirectly as a result of the ownership, possession or use of any mechanically propelled vehicle, aircraft or watercraft
- 13. Wilful, malicious or unlawful acts**
any criminal, malicious or wilful act.

Sub-Section 9 L – Business travel: rental vehicle collision damage waiver

Cover

We will pay **you** or the Insured Person up to a maximum amount stated in the schedule for loss of or damage to a rental vehicle during a Journey in respect of the monetary amount that the Insured Person is legally liable to pay as an excess or deductible to that part of a rental vehicle insurance policy or any other insurance policy applicable to the Insured Person for which cover in respect of loss of or damage to a rental vehicle is in force.

Provided that **we** will not pay more than the amount stated in the schedule in respect of all claims for such loss or damage occurring during any one period of insurance.

Special exclusions

This section does not cover:

- 1. Deliberate damage**
any loss of or damage to a rental vehicle caused deliberately by an Insured Person whether acting alone or in collusion with others
- 2. Excluded causes**
 - a) any loss of or damage to a rental vehicle arising out of wear and tear, gradual deterioration, mechanical or electrical failure not attributable to accidental damage
 - b) damage that existed at the commencement of the period of rental.

Sub-Section 9 M – General assistance services

The cover provided under this section applies where Sub-Section 9 A – personal accident is operative and includes a range of assistance services supported by the Zurich Assistance 24 hour helpline on **+44 (0)1489 868 988**.

Please note that these services are supplied by third parties who are contracted to Zurich.

Counselling and Support Services

Insured Persons may access a wide range of personal support services providing practical information, resources and counselling to help them balance their work, family and personal life.

Topics include but are not limited to the following:

- a) Work-life balance
- b) Relationships
- c) Childcare
- d) Health and well-being
- e) Debt
- f) Disability and illness
- g) Careers
- h) Bereavement and loss
- i) Stress
- j) Elder care
- k) Life events
- l) Immigration
- m) Anxiety and depression
- n) Family issues
- o) Bullying and harassment
- p) Education
- q) Consumer rights
- r) Workplace pressure

Support is for up to 6 telephone sessions available by contacting Zurich Assistance on **+44 (0)1489 868 988**.

Medical Second Opinion

Insured Persons may gain access to a medical second opinion on any critical illness they are suffering. This illness must be serious in nature and the Insured Person must already be under the care of a medical consultant who has recommended treatment, medication, surgery etc. The second opinion service is arranged via **our** partner who has a network of medical professionals who will review the Insured Person's results and reports (to be supplied by the Insured Person) and offer a written assessment to the Insured Person.

This assessment is for information purposes only and the Insured Person is under no obligation to act on it.

An initial telephone interview may be arranged by contacting Zurich Assistance on **+44 (0)1489 868 988**.

Sub-Section 9 N – Travel assistance services

The cover provided under this section applies where Sub-Sections 9 B, 9 C, 9 D, 9 F, 9 G, 9 H and 9 I are operative and includes a range of assistance services supported by the Zurich Travel Assistance 24 hour helpline.

Please note that the services stated in paragraphs A) and B) below are supplied by third parties who are contracted to Zurich.

A) Medical and Other Assistance

In the event that an Insured Person is travelling on a Journey during the Operative Time and requires assistance they should contact the emergency helpline on **+44 (0)1489 868 888**.

The helpline is manned 24 hours a day 365 days a year by multi-lingual assistance co-ordinators experienced in managing medical assistance cases with hospitals and clinics worldwide.

You or an Insured Person must contact Zurich Travel Assistance as soon as possible if illness or Bodily Injury results in the need for in-patient hospital treatment.

We will not pay for any Emergency Repatriation Expenses incurred without the prior consent of Zurich Travel Assistance or for any hospital treatment provided on an in-patient basis where the Insured Person has not made all reasonable attempts to obtain the prior consent of Zurich Travel Assistance or obtained the consent of Zurich Travel Assistance at the first opportunity after such treatment.

When seeking medical or travel assistance please make sure the following information is available:

- a) the Insured Person's name
- b) the telephone or facsimile number where an Insured Person can be contacted
- c) the Insured Person's address abroad
- d) the nature of the emergency or the assistance required
- e) the name of the Insured Person's company, employer or organisation.

The medical assistance services provided are:

Air Ambulance

The medical assistance service has the resources to provide repatriation by air ambulance or scheduled airline services depending on the circumstances. If necessary this can include a fully qualified medical escort.

Direct Billing

The medical assistance service has the ability to arrange direct billing with a network of hospitals and clinics worldwide which guarantees the payment for treatment provided.

Emergency Medical Supplies

Assistance in locating and forwarding medicine or medical equipment that might be unavailable locally.

Emergency Travel Assistance

Where an Insured Person falls ill or sustains Bodily Injury during a Journey and the attending Medical Practitioner recommends that 2 relatives or friends travel to and remain with the Insured Person assistance will be provided in making the travel and accommodation arrangements.

Medical Referral

Where out-patient treatment is required referral can be made to a suitable hospital, doctor or dentist. With access to a team of highly qualified medical consultants advice can be provided on a range of medical conditions.

Medical Staff

The medical assistance service has a team of medical consultants and nursing staff on hand at any time to coordinate any medical assistance cases, arranging hospital admissions and ensuring that the most appropriate treatment is provided.

The medical assistance services also include a range of additional services which are summarised below:

Emergency Cash Advance

Assistance in replacing cash lost or stolen during a Journey. The value of any cash advance will be deducted from any subsequent claim under Sub-Section 9D. Where no claim is made the value of the cash advanced will be reimbursed by **you** to **us** upon completion of the Journey.

Emergency Message Communication

Forwarding on messages to family and business colleagues in an emergency.

Legal Referral

The service enables the Insured Person to have access to an Embassy or Consulate if legal assistance is required including referral to an English speaking lawyer. Assistance can also be provided in facilitating the payment of bail subject to a satisfactory financial guarantee of reimbursement.

Lost Ticket and Baggage Location

Assistance in replacing lost or stolen tickets, passport or other travel documents and assistance in locating lost or delayed luggage.

On-line Information: www.zurich.co.uk/travelassistance

A web information service is also available and accessed via www.zurich.co.uk/travelassistance and provides valuable medical and travel information including online country guides that provide security information reflecting the situation in numerous territories. Access is gained by entering **your** policy number when prompted.

Travel Advice

The Insured Person has access to a wealth of helpful and relevant information including currency and banking information, visa details, health requirements and reciprocal health agreements.

Vehicle Return

The assistance service can organise the return of a rental or privately owned vehicle where an Insured Person falls ill or sustains Bodily Injury during a Journey.

B) Security Assistance Services

We have partnered with security experts **Zurich Travel Assistance** to provide **you** with a comprehensive range of complementary security services.

In the event that an Insured Person is travelling on a Journey during the Operative Time and requires security assistance they should contact the emergency helpline on **+44 (0)1489 868 888** or visit www.zurich.co.uk/travelassistance.

The security assistance services provided are:

Daily News

Subscription is available to email reports sent each weekday, covering political instability, civil unrest, disease outbreaks, crime patterns and terrorism news from around the world. Please subscribe/unsubscribe for these reports at www.zurich.co.uk/travelassistance.

Emergency Response

Where serious difficulties or a Life-Threatening Situation arise during a Journey abroad (personnel missing, attacked or kidnapped or a rapid deterioration in the safety of the location – as insured under Sub-Sections 9 G, 9 H and 9 I – the team of security specialists appointed by Zurich Travel Assistance will be available to assist **you** and **your** personnel with advice, Kidnap negotiation and coordination of their return to safety.

Please contact Zurich Travel Assistance on **+44 (0)1489 868 888**.

Travel Security Website

Security information on over 180 countries worldwide via the Zurich Travel Assistance website at www.zurich.co.uk/travelassistance.

Travel Security and Safety Briefings for High Risk Destinations

With 48 hours' notice the security partner of Zurich Travel Assistance will provide **your** personnel with a security briefing tailored for their travel itinerary for high risk destinations subject to a maximum of 2 briefings per trip or group booking. This will cover the risks, preventative measures and important contact details **your** personnel require to help them remain safe while abroad on a Journey. For all standard destinations the Zurich Travel Assistance website at www.zurich.co.uk/travelassistance is available.

Please contact Zurich Travel Assistance on **+44 (0)1489 868 888**.

Please note that the services stated in clauses C) to G) below are provided to **you** by third parties with whom **you** will have a direct contract should **you** elect to receive them and may attract costs which must be borne by **you**. Please see below for further information.

C) Airport Breakdown Assistance (Motor)

Insured Persons have access to roadside assistance in the event of their own private vehicle in which they are travelling to or from an airport in the United Kingdom suffering a breakdown or accident where their intention is to catch a flight in connection with a Journey.

We will arrange for a mechanic and/or a taxi to attend the Insured Person in order to repair or recover the vehicle or to transport the Insured Person to the airport.

This is an arrangement service only. All third party costs must be borne by **you** or the Insured Person who will be made aware of this during the call.

This service is available by contacting Zurich Travel Assistance on **+44 (0)1489 868 888**.

D) Home Emergency

If while the Insured Person is undertaking a Journey outside the United Kingdom and is made aware of a domestic emergency at their private residence they can contact Zurich Travel Assistance to organise an emergency repair.

This is an arrangement service only. All third party costs must be borne by **you** or the Insured Person who will be made aware of this during the call.

The Insured Person will need to be able to provide access to the premises and have the means available to pay for all costs upon completion of the work.

Within reason there are no limitations to the nature of services the Insured Person can request provided that they should be on an emergency repair basis only and typically for plumbing, electrical or property fabric repairs in order to make the premises sound and secure.

This service is available by contacting Zurich Travel Assistance on **+44 (0)1489 868 888**.

E) Check- In Service

A scheduled safety check service is available for Insured Persons undertaking a Journey to countries with a heightened security risk. Specific protocols can be put in place so that if a response is not received emergency contacts will immediately be notified.

The cost of the service is to be met by **you** who will benefit from a 10% discount as **our** policyholder. **You** must allow at least 5 working days' notice for Zurich Travel Assistance to arrange the necessary provisions and protocols.

This service is available by contacting Zurich Travel Assistance on **+44 (0)1489 868 888**.

F) Meet and Greet Service

You may take advantage of this airport transfer service where an Insured Person can be provided with safe and comfortable transportation in high risk locations. All drivers are vetted and have an in depth local knowledge of the region to ensure the safety of their passengers remains paramount at all times.

A quotation for a specific trip can be obtained by calling Zurich Travel Assistance on **+44 (0)1489 868 888**. **You** will be responsible for all charges for the transport and greet services arranged but as **our** policyholder **you** will have access to a 10% discount on standard fees.

You must allow at least 5 working days' notice for Zurich Travel Assistance to arrange the necessary provisions and protocols.

G) Airport Lounge Access

As **our** policyholder **you** have access to concessions for **your** personnel to enjoy the use of over 600 airport VIP lounges. Insured Persons may take advantage of this special offer by joining online at www.zurich.co.uk/zurichtravelassistance where various options on levels of membership are publicised along with available discounts. Options include access by accompanying guests.

Special Exclusions Applicable to Section 9

We will not be liable for any Bodily Injury, loss or expense suffered:

1. **Active service**
as a result of an Insured Person engaging in active service in any of the armed forces of any nation
2. **Excluded travel to dangerous or unsettled areas**
resulting from a Journey to the countries or specific areas of countries listed in the schedule
3. **War risks**
as a result of war within the Insured Person's Country of Permanent Residence or Country of Secondment.

Special Conditions Applicable to Section 9

1. **Assignment**

This insurance may not be assigned without **our** prior written consent.

2. **Cancellation**

You may cancel this section by giving us 30 days prior written notice. **We** may cancel this section by giving you 30 days prior written notice at **your** last known address except that 7 days prior written notice will be given when cancellation is for non-payment of premium. Notice will be made via special delivery mail.

We may cancel any coverage provided under this section in respect of war by sending **you** 7 days prior written notice to **your** last known address. Notice will be made via special delivery mail.

3. **Duplicate cover**

If a loss is covered under one sub-section of Section 9 **we** will provide cover under the section that provides the most cover but never under more than one section. In no event will **we** make duplicate payments for the same loss.

4. **Event aggregate limitation**

If the total amount of all claims for Bodily Injury arising out of any one Event exceeds the Event Aggregate Limit each individual claim will be proportionately reduced until the total value of all claims does not exceed the Event Aggregate Limit.

5. **Interest**

No sum payable under this policy will carry interest.

6. **Multi-engined aircraft limitation**

If the total amount of all claims for Bodily Injury arising out of any one Event involving the same multi-engined aircraft exceeds the Multi-Engined Aircraft Limit each individual claim will be proportionately reduced until the total value of all claims does not exceed the Multi-Engined Aircraft Limit.

7. **Other forms of aerial transport limitation**

If the total amount of all claims for Bodily Injury arising out of any one Event involving the same aircraft (not being a multi-engined aircraft) exceeds the Other Forms of Aerial Transport Limit each individual claim will be proportionately reduced until the total value of all claims does not exceed the Other Forms of Aerial Transport Limit.

8. **Other insurances**

If at the time of an Event insured under this section there is any other insurance covering the same loss, damage or liability or any part of them **we** will only pay **our** rateable proportion of the claim except where this is excluded under the specific sub-section.

Provided that this clause will not apply to sub-sections 9 A, 9 C, 9 D or 9 E of this section.

9. **Third party rights**

A person who is not a party to this section including specifically an Insured Person has no right under the Contracts (Rights of Third Parties) Act 1999 to enforce any term of this section.

Claims conditions Applicable to Section 9

1. Claim notification

Upon learning of any circumstances likely to give rise to a claim **you** must:

- a)
 - i) give notice to **us** as soon as reasonably possible by contacting **us** via one of the following options:
Phone: +44 (0)800 0260 184
Email: a&hclaims@uk.zurich.com
Post: Zurich Accident and Health Claims, 3000 Parkway, Whiteley, Fareham, United Kingdom PO15 7JZ
 - ii) make no admission of liability without **our** prior written consent
 - iii) provide **us** or **our** appointed representatives with:
 - 1) all necessary assistance in a timely manner
 - 2) all information reasonably required
 - 3) all documentation and records necessary to establish and assess indemnity under this policy
 - iv) prove the loss to **our** reasonable satisfaction
 - v) forward immediately to **us** or **our** representatives any letter, writ or other document received in connection with any claim made under this policy
 - vi) assist and concur with all reasonable arrangements for **our** medical advisors to examine an Insured Person in respect of which a claim has arisen; and
- b) as often as may be reasonably required provide a statutory declaration sworn before a solicitor, justice of the peace or notary public named by **us** on all matters connected with a claim at such reasonable time and place as **we** may designate.

No act by **us** or **our** representatives in connection with any investigation will be deemed a waiver of any defence which **we** might otherwise have. All acts will be deemed to have been made without prejudice to **our** liability.

We reserve the right to:

- i) take such steps as **we** deem necessary to prevent, mitigate or minimise a loss
- ii) take over and conduct the defence or settlement of claims made against an Insured Person that is covered by this policy
- iii) pursue all rights or remedies available to **you** whether or not payment has been made.

2. Subrogation rights

We reserve the right to:

- a) take such steps as **we** deem necessary to prevent, mitigate or minimise a loss
- b) take over and conduct the defence or settlement of claims made against an Insured Person that is covered by this policy
- c) pursue all rights or remedies available to **you** whether or not payment has been made.

General Provision

Brand Protection

In the event of a claim or series of claims arising out of one incident for which **you** would be entitled to receive indemnity under this policy **we** will in addition to the indemnity provided by this policy and subject to **our** prior agreement indemnify **you** for the reasonable costs **you** incur to mitigate resultant damage to **your** reputation.

Provided always that:

- a) the damage to **your** reputation is a consequence of media coverage in print or by radio or television or news agency
- b) the value of the claim or series of claims arising out of one incident which results in damage to **your** reputation occurring at any time during the period of insurance is £1,000,000 or more
- c) **our** liability under this provision will not exceed £50,000 in any one period of insurance.

General Exclusions

This policy does not cover:

1. Date Related Performance and Functionality

Not applicable to section 8

- a) loss or **damage**
- b) consequential loss, additional expenditure or extra expenses
- c) legal liability
- d) other fees, costs, disbursements, awards or other expenses

of whatsoever nature

directly or indirectly caused by or contributed to by or consisting of or arising in whole or in part from:

- i) the way in which any **data processing system** responds to or deals with or fails to respond to or fails to deal with any true calendar date
- ii) any **data processing system** responding to or dealing in any way with:
 - 1) any data denoting a calendar date or dates as if such data did not denote a calendar date or dates
 - 2) any data not denoting a calendar date or dates as if such data denoted a calendar date or dates

whether such **data processing system** is **your** property or not but in respect of all insurances excluding Public Liability or Products Liability or Contractors' Joint Indemnity or Legal Expenses this will not exclude subsequent **damage** or consequential loss, additional expenditure or extra expenses not otherwise excluded which itself results from a **defined peril** otherwise covered by this policy

2. Electronic Risk

- a) **damage** to any computer or other equipment or system or item which processes, stores, transmits, retrieves or receives data whether tangible or intangible (including but without limitation any information or programs or software) and whether the property is insured or not where such **damage** is caused by virus or similar mechanism or hacking or **denial of service attack**
- b) **business interruption** directly or indirectly caused by or arising from **virus or similar mechanism** or **hacking** or **denial of service attack**

but this will not include **damage** or **business interruption** which results from **defined peril** (including the acts of thieves but excluding the acts of malicious persons which do not involve physical force or violence)

3. Northern Ireland

Not applicable to section 8

damage or **business interruption** in Northern Ireland occasioned by or happening through or in consequence directly or indirectly of civil commotion and (except in respect of **damage** or **business interruption** by fire or explosion) strikers, locked out workers or persons taking part in labour disturbances or malicious persons

4. Nuclear and War Risks and Government or Public Authority Order

Not applicable to sections 8 or 9

any loss of or **damage** to any property whatsoever or any expense, consequential loss, legal liability directly or indirectly arising from:

- a) ionising radiations from or contamination by radioactivity from any nuclear fuel or from any nuclear waste or from the combustion of nuclear fuel
- b) the radioactive, toxic, explosive or other hazardous or contaminating properties of any **nuclear installation, nuclear reactor** or other nuclear assembly or nuclear component thereof
- c) any weapon or device employing atomic or nuclear fission and/or fusion or other like reaction or radioactive force or matter
- d) the radioactive, toxic, explosive or other hazardous or contaminating properties of any radioactive matter but this exclusion d) will not apply to radioactive isotopes excluding nuclear fuel when such isotopes are being prepared, carried, stored or used for commercial, agricultural, medical, scientific or other peaceful purposes
- e) any event arising from war, invasion, act of foreign enemy, hostilities (whether war is declared or not) civil war, rebellion, revolution, insurrection, military force or coup
- f) nationalisation, confiscation, requisition, seizure or destruction by any government or public authority.

Exclusions a), b), c) and d) will not apply to section 6 Employers' Liability except where **you** have undertaken under a contract or agreement either to indemnify another party or to assume the liability of another party in respect of such **bodily injury**.

Exclusions e) and f) will not apply to section 6 Employers' Liability

5. Sonic Bangs

Not applicable to section 8

damage arising from pressure waves caused by aircraft and other aerial devices travelling at sonic or supersonic speeds

6. Terrorism

Applicable to sections 1, 2, 3 and 5 only

loss, damage, consequential loss, cost or expense directly or indirectly caused by, contributed to by, resulting from or arising out of or in connection with **terrorism**.

In any action, suit or other proceedings where **we** allege that by reason of this General Exclusion cover is not provided under this policy the burden of proving that **terrorism** is covered will be upon **you**.

General Conditions

1. Alteration

You must notify **us** as soon as possible during the period of insurance if there is any change in circumstances or to the material facts previously disclosed by **you** to **us** or stated as material facts by **us** to **you** which increases the risk of accident, injury, loss, damage or liability.

Upon notification of any such change **we** will be entitled to vary the premium and terms for the rest of the period of insurance. If the changes make the risk unacceptable to **us** then **we** are under no obligation to agree to make them and may no longer be able to provide **you** with cover.

If **you** do not notify **us** of any such change **we** may exercise one or more of the options described in clauses c) i), ii) and iii) of General Condition 7 – Fair Presentation of the Risk but only with effect from the date of the change in circumstances or material facts.

2. Arbitration

If **we** admit liability for a claim but there is a dispute as to the amount to be paid the dispute will be referred to an arbitrator. The arbitrator will be appointed jointly by **you** and **us** in accordance with the law at the time. **You** may not take any legal action against **us** over the dispute before the arbitrator has reached a decision.

3. Cancellation

- a) **We** may cancel this policy or any section or part thereof other than any coverage in respect of War under section 9 by giving **you** 30 days' notice
- b) **we** may cancel any coverage in respect of War under section 9 by giving **you** 7 days' notice. Such notice will be given in writing by special delivery mail to **you** at **your** last known address.

In the event of a) or b) **you** will be entitled to a pro rata return of premium calculated from the date of cancellation.

4. Claims Procedure

Not applicable to sections 8 or 9

- a) **Your Responsibilities**
 - i) On the happening of any event which could give rise to a claim or on receiving verbal or written notice of any claim **you** will:
 - 1) as soon as reasonably possible give notice to **us**
 - 2) as soon as reasonably possible notify the police in respect of any **damage** by theft or attempted theft or by riot, civil commotion, strikers, locked-out workers, persons taking part in labour disturbances and malicious persons
 - 3) as soon as reasonably possible forward to **us** any writ or summons issued against **us** by a third party
 - 4) take action to minimise the **damage** and to avoid interruption or interference with the **business** and to prevent further **damage** or **bodily injury**
 - 5) at **your** own expense and within:
 - A) 7 days of **damage** caused by riot, civil commotion, strikers, locked-out workers or persons taking part in labour disturbances or malicious persons
 - B) 30 days of expiry of the Indemnity Period in respect of Section 3
 - C) 30 days of any other loss or **damage**, interruption or interference with the **business** or **bodily injury**
 - ii) No settlement, admission of liability, payment or promise of payment will be made to a third party without **our** consent.
- b) **Our Rights**

We will:

 - i) be entitled to take over the defence or settlement of any claim made upon **you** by any other party and **you** will give all assistance as **we** may reasonably require
 - ii) have the right to enter the **premises** where the **damage** has occurred and to keep possession of any of the Property Insured and to deal with the salvage in a reasonable manner but **you** will not be entitled to abandon any property to **us**

- iii) be entitled to take benefit of any of **your** rights against any other party before or after **you** have received indemnification under this policy and **you** will give all assistance as may be reasonably required by **us**
- iv) at **our** option indemnify **you** by payment, reinstatement, replacement or repair in respect of any property lost or damaged or part thereof. If **we** elect to reinstate or replace any property **we** will not be bound to reinstate or replace exactly or completely but only as circumstances permit and in reasonably sufficient manner and will not in any case be bound to expend in respect of any one of the Items insured more than the sum insured thereon
- v) before payment of an abandonment loss as insured under section 5 of this policy **we** will be entitled to take benefit of all rights, titles and interest in all underlying works as well as films or tapes and all copies and related material hereof for the **production** but this shall not apply to any sequel or prequel or any attendant merchandising rights associated with such sequel or prequel.

5. Compulsory Insurance

You must repay **us** any amounts which **we** are required by compulsory insurance legislation to pay out under this policy to the extent that **we** would not otherwise have been liable to make such payments on account of a breach of any of the terms or conditions of this policy.

6. Contribution

Not applicable to section 8

If in the event of loss or **damage** or liability under this policy there will be in force any other insurance providing cover against such claim:

our liability will be limited to its rateable proportion of such claims

but which is subject to any provision excluding it from ranking concurrently with this policy either in whole or part or from contributing rateably to the claim then **our** liability will be limited to such proportion of the claim as the sum insured bears to the value of the property.

7. Fair Presentation of the Risk

- a) At inception and renewal of this policy and also whenever changes are made to it at **your** request **you** must:
 - i) disclose to **us** all material facts in a clear and accessible manner; and
 - ii) not misrepresent any material facts.
- b) If **you** do not comply with clause a) of this condition **we** may:
 - i) avoid this policy which means that **we** will treat it as if it had never existed and refuse all claims where any non-disclosure or misrepresentation by **you** is proven by **us** to be deliberate or reckless in which case **we** will not return the premium paid by **you**; and
 - ii) recover from **you** any amount **we** have already paid for any claims including costs or expenses **we** have incurred.
- c) If **you** do not comply with clause a) of this condition and the non-disclosure or misrepresentation is not deliberate or reckless this policy may be affected in one or more of the following ways depending on what **we** would have done if **we** had known about the facts which **you** failed to disclose or misrepresented:
 - i) if **we** would not have provided **you** with any cover **we** will have the option to:
 - 1) avoid the policy which means that **we** will treat it as if it had never existed and repay the premium paid; and
 - 2) recover from **you** any amount **we** have already paid for any claims including costs or expenses **we** have incurred
 - ii) if **we** would have applied different terms to the cover **we** will have the option to treat this policy as if those different terms apply. **We** may recover any payments made by **us** on claims which have already been paid to the extent that such claims would not have been payable had such additional terms been applied
 - iii) if **we** would have charged **you** a higher premium for providing the cover **we** will charge **you** the additional premium which **you** must pay in full.
- d) Where this policy provides cover for any person other than **you** and that person would if they had taken out such cover in their own name have done so for purposes wholly or mainly unconnected with their trade, business or profession **we** will not invoke the remedies which might otherwise have been available to **us** under this condition if the failure to make a fair presentation of the risk concerns only facts or information which relate to a particular insured person other than **you**.

Provided always that if the person concerned or **you** acting on their behalf makes a careless misrepresentation of fact **we** may invoke the remedies available to **us** under this condition as against that particular person as if a separate insurance contract had been issued to them leaving the remainder of the policy unaffected.

8. Fraudulent Claims

If **you** or anyone acting on **your** behalf:

- a) makes a fraudulent or exaggerated claim under this policy; or
- b) uses fraudulent means or devices including the submission of false or forged documents in support of a claim whether or not the claim is itself genuine; or
- c) makes a false statement in support of a claim whether or not the claim is itself genuine; or
- d) submits a claim under this policy for loss or damage which **you** or anyone acting on **your** behalf or in connivance with **you** deliberately caused; or
- e) realises after submitting what **you** reasonably believed was a genuine claim under this policy and then fails to tell us that **you** have not suffered any loss or damage; or
- f) suppresses information which **you** know would otherwise enable us to refuse to pay a claim under this policy

we will be entitled to refuse to pay the whole of the claim and recover any sums that **we** have already paid in respect of the claim.

We may also notify you that **we** will be treating this policy as having terminated with effect from the date of any of the acts or omissions set out in clauses a) to f) of this condition.

If **we** terminate this policy under this condition **you** will have no cover under this policy from the date of termination and not be entitled to any refund of premium.

If any fraud is perpetrated by or on behalf of an insured person and not on behalf of **you** this condition should be read as if it applies only to that insured person's claim and references to this policy should be read as if they were references to the cover effected for that person alone and not to the policy as a whole.

9. Legal Representatives

This policy will come to an end immediately if **your** organisation ceases to exist or if **you** die where **you** are an individual except that **your** executors or personal administrators will be entitled to benefit from any cover until **your** estate has been administered.

10. Minimum Security Requirements

Damage to Property Insured at the **premises** caused by theft or attempted theft is not insured unless the following devices for security of the **premises** are installed within 30 days of the inception date of cover in respect of Property Insured at such **premises** under sections 1 and/or 2 of this policy in accordance with the following specification and all of such devices are put into full and effective operation at night and whenever the **premises** are closed for business or left unattended.

Security Requirements for the Premises

- a) All external doors of the buildings in **your** sole occupancy together with internal doors which give access to any part of the **buildings** occupied by **you** must be fitted and secured with one of the following:
 - i) a mortice deadlock with a matching boxed striking plate or a rim lock, which in either case conforms to either BS3621: Thief Resistant Lock Assemblies, or BS8621: Thief Resistant Locks
 - ii) a five (or more) lever close shackle padlock and locking bar
 - iii) in the case of aluminium or UPVC framed doors, an integral cylinder operated swingbolt mortice lock
 - iv) an alternative form of lock or locking system of at least similar quality and strength to BS3621 or BS8621 which has been approved by **us** in writing.
- b) All:
 - i) outward opening external doors of the **buildings** in **your** sole occupancy; or
 - ii) outward opening internal doors which give access to any part of the **buildings** occupied by **you**must be fitted and secured with hinge bolts.
- c) All accessible opening windows, fanlights and skylights including those accessible from decks, roofs, fire escapes or downpipes must be fitted and secured with key operated window locks. This requirement does not apply to windows protected by solid steel bars, grilles, steel shutters, expanded metal or weld-mesh.

Notes:

- i) Any door or window designated a fire exit will require consultation with the Fire Authority or other competent body so that the interests of both safety and security can be met.
- ii) The above measures comprise our minimum security requirements. Where additional protections are required by **us**, or where **we** agree to accept alternative security measures, **we** will specifically advise **you** in writing.
- iii) This condition has a continuing effect and its terms and conditions should be kept in mind. If circumstances arise which render **you** unable to comply with any part of it, **you** should advise **us** immediately to see if **we** can help **you** obtain reinstatement of cover.

11. Premium Adjustment

If any part of the premium is calculated on estimates furnished by **you** an accurate record will be kept by **you** containing all particulars relative thereto and **you** will at all times allow **us** to inspect such record. **You** will within the timescales specified under the applicable sections from the expiry of each period of insurance furnish to **us** such particulars and information as **we** may require. The premium for such period will thereupon be adjusted and the difference paid by or allowed to **you** as the case may be subject always to the minimum premium stipulated.

12. Reasonable Care

You will exercise reasonable care to avoid or diminish any loss or any circumstances likely to give rise to a claim under this policy.

You will take all reasonable steps to:

- a) protect the Property Insured
- b) comply with statutory enactments, bye-laws and any other obligations and regulations imposed by any authority
- c) employ only competent employees
- d) prevent accidents
- e) maintain all ways, works machinery and plant in sound condition.

In the event of the discovery of any defect or danger **you** will forthwith cause such defect or danger to be made good or remedied and in the meantime will cause such additional precautions to be taken as the circumstances may require.

13. Sanctions

Notwithstanding any other terms of this policy **we** will be deemed not to provide cover nor will **we** make any payment or provide any service or benefit to **you** or any other party to the extent that such cover, payment, service, benefit and/or any business or activity of yours would violate any applicable trade or economic sanctions law or regulation.

Zurich Insurance plc

A public limited company incorporated in Ireland. Registration No. 13460.

Registered Office: Zurich House, Ballsbridge Park, Dublin 4, Ireland.

UK Branch registered in England and Wales Registration No. BR7985.

UK Branch Head Office: The Zurich Centre, 3000 Parkway, Whiteley, Fareham, Hampshire PO15 7JZ.

Zurich Insurance plc is authorised by the Central Bank of Ireland and authorised and subject to limited regulation by the Financial Conduct Authority. Details about the extent of our authorisation by the Financial Conduct Authority are available from us on request. Our FCA Firm Reference Number is 203093.

Communications may be monitored or recorded to improve our service and for security and regulatory purposes.

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